

HOUSE No. 5576

House bill No. 5562, amended and passed to be engrossed by the House. July 8, 2026.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to economic development in the commonwealth.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to drive industry innovation and promote economic opportunity and job creation, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for a program of community development, economic
2 opportunities, support for local governments, increased industry innovation, job creation and the
3 promotion of economic reinvestment through the funding of infrastructure improvements the
4 sums set forth in section 2 for the several purposes and subject to the conditions specified in this
5 act, are hereby made available, subject to the laws regulating the disbursement of public funds.
6 These sums shall be in addition to any amounts previously authorized and made available for the
7 purposes of those items. The sums set forth in section 2 shall be made available until June 30,
8 2036.

9 SECTION 2.

10 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

Office of the Secretary

7002-8079 For a capital grant program to be administered by the executive office of economic development to provide grants to private businesses that are constructing or expanding commercial, industrial or manufacturing facilities in the commonwealth, which may include, but shall not be limited to: (i) the construction or expansion of facilities in a manner that eliminates or minimizes the use of fossil-fuel heating and cooling equipment, or incorporates other decarbonization measures that would not otherwise be incorporated into the facility design; (ii) the integration of design features that make a facility more resilient to the impacts of climate change, where such design features would not otherwise be economically feasible; and (iii) capital investments that support the creation of a significant number of new jobs in the commonwealth; provided, that the secretary of economic development shall issue program guidelines around the administration of the program which may include the administration of the program through a contract with the Massachusetts Development Finance Agency established in section 2 of chapter 23G of the General Laws, or any other appropriate quasi-governmental agency; and provided further, that grants shall be awarded in a manner that promotes geographic equity.....\$25,000,000

7002-8080 For the executive office of economic development to make grants to support the development and application of artificial intelligence technologies in strategically important sectors of the state's economy including, but not limited to, life sciences, healthcare, advanced manufacturing, climatetech, quantum, defense technology, transportation and robotics; provided that grants may be made from this item to public entities, non-profit entities and private businesses; and provided further, that, at the discretion of the secretary of economic development, grant funding may be administered by the Massachusetts Technology Park

34 Corporation, the Massachusetts Life Sciences Center, the Massachusetts Technology
35 Development Corporation, or the Massachusetts Clean Energy Technology
36 Center.....\$75,000,000

37 7002-8081 For the executive office of economic development to provide capital
38 grants to support the construction, fit-out, and improvement of 1 or more sites where early stage
39 and high growth business ventures are encouraged to establish operations in the commonwealth;
40 provided that the executive office may contract with the Massachusetts Development Finance
41 Agency, or other state authority as defined in section 1 of chapter 29 of the General Laws, to
42 administer the grants or other financial assistance from this line item; and provided further, that
43 grants shall be awarded in a manner that promotes geographic equity.....\$20,000,000

44 7002-8082 For the executive office of economic development for investments in
45 capital assets or public infrastructure that promote economic growth, job creation, and talent
46 recruitment and retention in the defense sector, including to support innovation in defense related
47 technologies such as artificial intelligence, cybersecurity, robotics and autonomous systems,
48 semiconductors and microelectronics, biosecurity, and advanced manufacturing; provided that
49 grants from this line item may be made to public and private entities as determined by the
50 executive office; and provided further that, at the discretion of the secretary of economic
51 development, grant funding may be administered by the Massachusetts Technology Park
52 Corporation, the Massachusetts Life Sciences Center, the Massachusetts Technology
53 Development Corporation, the Massachusetts Development Finance Agency, and the
54 Massachusetts Clean Energy Technology Center.....\$100,000,000

55 7002-8083 For the executive office of economic development to provide capital
56 grants to support food science, agricultural enterprises, locally-sourced seafood and shellfish,
57 resilient and sustainable food innovation, food and agricultural technology, and related sectors;
58 provided that the executive office may contract with the Massachusetts Development Finance
59 Agency, or other state authority as defined in section 1 of chapter 29 of the General Laws, to
60 administer the grants from this item; provided further, that the department of agricultural
61 resources shall establish a micro-grant tier within the food security infrastructure program for
62 commercial working farms operating on less than 100 acres; provided further, that said tier shall
63 utilize an expedited, low-barrier application and compliance process designed for family-owned
64 and generational agricultural operations to secure capital for climate adaptive upgrades,
65 including advanced drip irrigation, soil-erosion controls and crop canopy protection; and
66 provided further, that grants shall be awarded in a manner that promotes geographic
67 equity.....\$10,000,000

68 7002-8084 For a competitive program to be administered by the Massachusetts
69 Technology Park Corporation established in section 3 of chapter 40J of the General Laws to
70 provide capital grants to support research and development of robotics technology including, but
71 not limited to, robotics incubation, testing, training, workforce development, research and
72 development and commercialization activities; provided, that grants may be made to nonprofit
73 entities, public or private universities or private business
74 entities.....\$25,000,000

75 7002-8085 For a grant program to cities, towns, regional organizations whose
76 membership is exclusively composed of municipal governments, municipal redevelopment
77 authorities or agencies or quasi-governmental agencies to support economic development in

Massachusetts, including, but not limited to, support for the vitality, activation, improvement and competitiveness of downtowns, main streets, business districts, town centers, commercial corridors, cultural districts and other walkable mixed-use areas; provided that the executive office of economic development shall establish program requirements through regulations or policy guidelines; provided further, that not less than \$200,000 shall be expended to the 2027 Boston Calling Music Festival for the purpose of added security to be held at the Harvard Athletic Complex in the Allston section of the city of Boston; and provided further, that grants shall be awarded in a manner that promotes geographic equity.....\$25,000,000

7002-8086 For the executive office of economic development to provide capital grants to enhance the arts, culture and the creative economy in Massachusetts, including but not limited to grants to cities and towns for public realm and streetscape improvements that enhance downtown vibrancy, rehabilitation of historic districts, wayfinding and signage to support cultural institutions, improvements to public gathering and performance spaces, and permanent public art installations; provided that the executive office may contract with the Massachusetts Development Finance Agency, the Massachusetts Cultural Council or other state authority as defined in section 1 of chapter 29 of the General Laws, to administer the grants from this item; and provided further, that grants shall be awarded in a manner that promotes geographic equity.....\$25,000,000

7002-8087 For local economic development grants; provided, that not less than \$750,000 shall be expended to the city of Gloucester for upgrades, repairs or improvements to facilities on the Jodrey State Fish Pier in the city of Gloucester; provided further, that not less than \$95,000 shall be expended to the town of Boxford for the purchase of a department of public works dump truck to replace an essential vehicle to ensure safe and reliable road

101 maintenance; provided further, that not less than \$1,000,000 shall be expended to Revolutionary
102 Spaces, Inc. for construction planning, capital projects and deferred maintenance at the Old State
103 House and Old South Meeting House; provided further, that not less than \$500,000 shall be
104 expended for an independent study to evaluate the cumulative economic impacts of changes
105 associated with the route 2 Concord rotary improvements and the redevelopment of the former
106 Massachusetts correctional institution property; provided further, that not less than \$350,000
107 shall be expended to the Shrewsbury Development Corporation for the acquisition of blighted,
108 underutilized or tax-foreclosed properties within the town of Shrewsbury; provided further, that
109 not less than \$500,000 shall be expended to the city of Holyoke to support the feasibility, design
110 and early construction of anaerobic digesters at the wastewater treatment plant; provided further,
111 that not less than \$500,000 shall be expended to the city of Holyoke to develop a master plan for
112 the city's flood control system; provided further, that not less than \$500,000 shall be expended to
113 Helfrich Bros. Boiler Works, Inc. for the investment of advanced machinery specifically
114 designed for the manufacturing of greentech products; provided further, that not less than
115 \$250,000 shall be expended to the city of Lawrence for the design, engineering, replacement and
116 reconstruction of the apparatus bay floor and related infrastructure improvements at the South
117 Lawrence fire station located at 71 South Broadway; provided further, that not less than
118 \$150,000 shall be expended to the town of Andover for signalization improvements at the Essex
119 street railroad crossing; provided further, that not less than \$500,000 shall be expended to the
120 town of Acton for improvements to NARA park in the town of Acton; provided further, that not
121 less than \$50,000 shall be expended to the town of Andover for any costs related to construction
122 of a pump track at recreation park; provided further, that not less than \$500,000 shall be
123 expended to the Holyoke Redevelopment Authority for land assembly, site improvements, public

124 infrastructure and other redevelopment activities associated with mixed-use development,
125 affordable and market-rate housing projects in its urban renewal plan on Newton street and High
126 street; provided further, that not less than \$275,000 shall be expended to the city of Newburyport
127 for the final design, bidding and construction of the Market Landing park visitor center and
128 restroom facility; provided further, that not less than \$250,000 shall be expended to the
129 Southcoast LGBTQ Network, Inc. to complete construction on an LGBTQ+ Community Center
130 in the city of New Bedford; provided further, that not less than \$250,000 shall be expended to
131 The Gateway Project nonprofit in the city of New Bedford for the purpose of establishing a land
132 bank to identify and hold parcels of land that shall be developed into climate conscious buildings
133 for community-based projects and services; provided further, that not less than \$250,000 shall be
134 expended to The Gateway Project, Inc. in the city of New Bedford for the purposes of
135 conducting a neighborhood revitalization study to assess the viability of climate-conscious and
136 energy-efficient renovations to buildings in downtown New Bedford; provided further, that not
137 less than \$50,000 shall be expended to the town of Avon for food pantries; provided further, that
138 not less than \$50,000 shall be expended to the town of Canton for food pantries; provided
139 further, that not less than \$50,000 shall be expended to the town of Stoughton for food pantries;
140 provided further, that not less than \$100,000 shall be expended to the Wilbraham Nature and
141 Cultural Center, Inc. for sidewalk, roadway and gazebo repairs and upgrades to Fountain park in
142 the town of Wilbraham; provided further, that not less than \$50,000 shall be expended to the city
143 known as the town of East Longmeadow for the preservation, repair, maintenance and
144 enhancement of the veterans' memorial in the city known as the town of East Longmeadow, to
145 be administered in consultation with the East Longmeadow Veterans Memorial Committee;
146 provided further, that not less than \$50,000 shall be expended to the town of Monson for interior

147 repairs and renovations, including the reading room and foyer, at the Monson Free library;
148 provided further, that not less than \$300,000 shall be expended to the city of Springfield for
149 parking lot restoration at the Springfield Technology Park, in support of the Springfield
150 Technology Park and the Western Massachusetts quantum project; provided further, that not less
151 than \$600,000 shall be expended to the town of Wilbraham to construct a new sidewalk on Stony
152 Hill road from Wilbraham commons to the intersection of Boston road; provided further, that not
153 less than \$250,000 shall be expended to Northern Essex Community College to establish an
154 artificial intelligence workforce navigator and apprenticeship innovation pilot program to expand
155 access to registered apprenticeship programs and careers in high-demand industries; provided
156 further, that not less than \$100,000 shall be expended to the town of Sutton for the renovation of
157 the facilities and infrastructure at Marion's camp; provided further, that not less than \$20,000
158 shall be expended to the town of Brimfield to purchase and install a military memorial on the
159 Brimfield town common; provided further, that not less than \$250,000 shall be expended to the
160 Revere and Son Heritage Trust Corporation for the museum at the Paul Revere Heritage Site in
161 the town of Canton; provided further, that not less than \$200,000 shall be expended to the
162 Coonamessett Farm Foundation, Inc. for a pilot program to retrofit scallop fishing vessels with
163 advanced jigging technology and LED light arrays to develop a new sustainable oceanic neon
164 flying squid fishery; provided further, that not less than \$250,000 shall be expended to the
165 Canton Housing Authority in the town of Canton for the purposes of making improvements and
166 revitalizing public housing stock; provided further, that not less than \$150,000 shall be expended
167 to the town of Avon for improvements to the industrial park in the town of Avon; provided
168 further, that not less than \$650,000 shall be expended to the city of Methuen for capital
169 improvements to the central fire station located at 24 Lowell street; provided further, that not less

170 than \$100,000 shall be expended to Waters Farm Preservation, Inc. in the town of Sutton for the
171 completion of the facilities and infrastructure at the welcome center and historic museum;
172 provided further, that not less than \$250,000 shall be expended to the Blue Hill Observatory &
173 Science Center, Inc.; provided further, that not less than \$1,000,000 shall be expended to
174 reimburse businesses in the designated clean zone of Gillette stadium in the town of Foxborough
175 for loss of revenue during the World Cup games held in June and July of 2026; provided further,
176 that not less than \$500,000 shall be expended to the town of Scituate for the North Scituate sewer
177 project; provided further, that not less than \$200,000 shall be expended to the Mashpee
178 Improvement Fund Inc for the design and construction of an upper cape food hub and shared-use
179 community kitchen to coordinate a resilient local food network; provided further, that not less
180 than \$200,000 shall be expended to the Lawrence Housing Authority for capital improvements
181 and modernization of the Stadium courts and Hancock courts family housing developments;
182 provided further, that not less than \$100,000 shall be expended to the Methuen Housing
183 Authority for hallway and flooring restoration; provided further, that not less than \$1,000,000
184 shall be expended to the town of Bedford to repurpose the existing fire station headquarters
185 building upon its vacancy in the spring of 2027; provided further, that not less than \$500,000
186 shall be expended to the town of Burlington for the construction of multimodal transportation
187 and connectivity improvements to improve safety, mobility and economic competitiveness along
188 the Middlesex turnpike; provided further, that not less than \$500,000 shall be expended to the
189 International Brotherhood of Electrical Workers IBEW Local Union 96 to develop space in the
190 city of Worcester for an economic empowerment and workforce training center; provided
191 further, that not less than \$1,000,000 shall be expended to the Massachusetts Association
192 Minority Law Enforcement Officers for capital improvement projects to reconstruct and

193 redevelop their headquarters located at 61 Columbia road in the Dorchester section of the city of
194 Boston; provided further, that not less than \$250,000 shall be expended to the city of Worcester,
195 in partnership with the Seven Hills Foundation, to complete the renovation of the historic Stearns
196 tavern for space to be used for workforce training programs for persons with disabilities,
197 community meeting spaces, and visitor information services; provided further, that not less than
198 \$250,000 shall be expended to the Main South Community Development Corporation to develop
199 streetscape improvements and public art installations on the Main Street and Park Avenue
200 commercial corridors in the city of Worcester; provided further, that not less than \$500,000 shall
201 be expended to the town of Westborough for economic development projects, including a study
202 of the route 9 corridor and the development of the Westborough community center; provided
203 further, that not less than \$300,000 shall be expended to the town of Northborough for economic
204 development projects, including municipal communications infrastructure, municipal energy
205 efficiency upgrades, downtown revitalization; provided further, that not less than \$300,000 shall
206 be expended to the town of Southborough for economic development projects, including
207 downtown revitalization in the town of Southborough; provided further, that not less than
208 \$30,000 shall be expended to the town of Southborough for tricentennial celebrations and
209 festivities; provided further, that not less than \$1,000,000 shall be expended for the project of
210 dredging the Ten Mile river; provided further, that not less than \$1,000,000 shall be expended to
211 Boston public schools for the design and construction of the Ruth Batson Academy in the
212 Dorchester section of the city of Boston; provided further, that not less than \$15,000 shall be
213 expended to the town of Randolph for the substance misuse prevention coalition, HEY Randolph
214 program; provided further, that not less than \$150,000 shall be expended for the engineering,
215 design, assessment and repair planning deemed necessary by the department of conservation and

216 recreation to support the rehabilitation and eventual replacement of the Scusset beach state
217 fishing pier located within Scusset beach state reservation in the town of Sandwich; provided
218 further, that not less than \$50,000 shall be expended to the town of Groveland for costs related to
219 the redevelopment of the 150 Center Street property; provided further, that not less than \$50,000
220 shall be expended to Downtown Framingham, Inc. for the Framingham Business Trade Show;
221 provided further, that not less than \$300,000 shall be expended to the town of West Newbury for
222 the replacement of aging water mains; provided further, that not less than \$150,000 shall be
223 expended to the Bristol County Agricultural high school for expanded integrated secondary and
224 adult agricultural workforce development initiatives; provided further, that not less than
225 \$100,000 shall be expended to the Bristol County Agricultural high school for an elementary and
226 middle school agricultural career pathways initiative; provided further, that not less than
227 \$100,000 shall be expended to the town of Boxford for the replacement of an existing retaining
228 wall on Main street; provided further, that not less than \$150,000 shall be expended to the town
229 of Orange's Economic Development & Industrial Corp for the redevelopment of Butterfield
230 school; provided further, that not less than \$150,000 shall be expended to the Franklin County
231 Community Development Corporation for their food processing center; provided further, that not
232 less than \$100,000 shall be expended to the town of Royalston for the redevelopment of the
233 Raymond school; provided further, that not less than \$100,000 shall be expended to the city of
234 Greenfield for the redevelopment of the Green River school; provided further, that not less than
235 \$150,000 shall be expended to the town of South Hadley for the South Hadley Falls Business
236 Improvement Program to support building façade and other property improvements; provided
237 further, that said funds may also be used to support projects that encourage entrepreneurship,
238 sustainability, economic growth and commercial revitalization within the South Hadley Falls

239 Urban Renewal and Redevelopment District; provided further, that not less than \$250,000 shall
240 be expended to the city of Easthampton for the Nashawannuck Pond Boardwalk Extension
241 project, including supporting improved pedestrian connectivity, public access, economic
242 development, tourism and recreational opportunities; provided further, that not less than
243 \$500,000 shall be expended to the city of Easthampton for the design, engineering, permitting
244 and construction of the Lower Mill Pond Footbridge project; provided further, that not less than
245 \$200,000 shall be expended to the city of Easthampton for public realm enhancements,
246 pedestrian safety improvements and commercial corridor activation within the state-designated
247 Cottage Street Cultural District; provided further, that not less than \$145,000 shall be expended
248 to the town of Hadley for a commercial corridor improvement grant program to support business
249 along route 9 and Russell street business districts with ADA-compliant infrastructure, façade
250 enhancements and signage upgrades; provided further, that not less than \$100,000 shall be
251 expended to the town of South Hadley for economic planning, engineering, design and
252 commercial site readiness blueprints for the modernization of the Main street commercial
253 pumping station corridor; provided further, that not less than \$197,000 shall be expended to the
254 Easthampton public schools for information technology infrastructure modernization, including
255 the replacement of obsolete server hardware with a modern virtual server environment to support
256 critical school operations, improve network reliability and cybersecurity, ensure business
257 continuity and reduce long-term operating and energy costs; provided further, that not less than
258 \$54,085 shall be expended to the city of Easthampton for municipal Wi-Fi infrastructure
259 improvements, including the installation and enhancement of outdoor public wireless internet
260 access at the city hall parking lot, pond area and public pool; provided further, that not less than
261 \$1,000,000 shall be expended to the city of Watertown for the planning, design, engineering and

262 construction of an Armenian Cultural Association of America; provided further, that not less
263 than \$500,000 shall be expended to the Fitchburg Redevelopment Authority for downtown
264 redevelopment projects in the city of Fitchburg; provided further, that not less than \$500,000
265 shall be expended to the city known as the town of Braintree for economic development;
266 provided further, that not less than \$500,000 shall be expended to Fitchburg State University to
267 support the redevelopment and improvement of the theater block and enhance the IdeaLab and
268 game design studio; provided further, that not less than \$250,000 shall be expended to the town
269 of Holbrook for economic development; provided further, that not less than \$300,000 shall be
270 expended to the Massachusetts Economic Development Foundation, Inc. to expand marketing
271 resources for municipalities and nonprofit partners; provided further, that not less than \$250,000
272 shall be expended to the town of Halifax for improvements to their senior center and to support
273 programming and staff at their council on aging; provided further, that not less than \$250,000
274 shall be expended to the town of Plympton for projects associated with improving Plympton's
275 downtown and municipal complex area; provided further, that not less than \$200,000 shall be
276 expended to the town of Kingston for projects associated with improving their downtown;
277 provided further, that not less than \$500,000 shall be expended to the department of higher
278 education to continue the operation of the Education to Workforce Marketplace pilot program;
279 provided further, that not less than \$200,000 shall be expended to the Plymouth Philharmonic
280 Orchestra Inc. to support their youth programming; provided further, that not less than \$500,000
281 shall be expended to the city of Boston for the Homeownership Accelerator Fund pilot program
282 to reducing financing barriers for construction projects that include income-restricted units, as
283 well as other identified housing projects within the pilot program; provided further, that not less
284 than \$150,000 shall be expended to the town of Milton for street light improvements to the East

285 Milton square business district; provided further, that not less than \$750,000 shall be expended to
286 the city of New Bedford, the New Bedford Port Authority or a designee for coordinated
287 pedestrian and vehicular wayfinding signage, streetscape elements and public-realms
288 improvements that enhance safety, accessibility and navigation at the port of New Bedford and
289 strengthen physical and visual connections between the working waterfront, downtown New
290 Bedford, local businesses and cultural destinations; provided further, that not less than
291 \$1,000,000 shall be expended to the town of Westport for improvements to the water and sewer
292 utility systems along state highway route 6; provided further, that not less than \$50,000 shall be
293 expended to the metropolitan area planning council to facilitate regional coordination of
294 municipal affordable housing trusts and a regional housing strategy; provided further, that not
295 less than \$50,000 shall be expended to the town of Scituate for the replacement of the Scituate
296 Harbor Gazebo and related site improvements; provided further, that not less than \$500,000 shall
297 be expended to the town of Natick for economic development programming; provided further,
298 that not less than \$500,000 shall be expended to the town of Wayland for economic development
299 programming; provided further, that not less than \$125,000 shall be expended to the New
300 Bedford Port Authority for an economic impact study of the port of New Bedford, which shall
301 evaluate the port's contributions to: (i) regional and statewide employment; (ii) commercial
302 fishing; (iii) seafood processing; (iv) maritime commerce; (v) offshore wind development; (vi)
303 tax revenues; and (vii) supply-chain activity; provided further, that the results of said study shall
304 be made available to the executive office of economic development and the clerks of the house
305 of representatives and the senate upon completion; provided further, that not less than \$500,000
306 shall be expended to the city of Boston for Vision Zero intersection improvements as required
307 for the redevelopment of the former Edison Power Station in South Boston; provided further,

308 that not less than \$1,000,000 shall be expended for competitive grants to higher education
309 institutions to support research and development projects advancing plant-based, cell-cultured or
310 fermentation technologies and sources to create meat and dairy analogues; provided further, that
311 not less than \$2,000,000 shall be expended to the Courageous Sailing Center for Youth, Inc. for
312 the planning, demolition and reconstruction of Pier 5 in the Charlestown section of the city of
313 Boston; provided further, that not less than \$150,000 shall be expended to the city of for the
314 assessment, remediation, environmental cleanup, restoration and site preparation of the Cedar
315 Swamp area to facilitate future economic development, environmental resilience and wealth
316 creation opportunities, including activities necessary to prepare the site for future public or
317 private investment; provided further, that not less than \$100,000 shall be expended to the town of
318 Rockland for the Rockland Sewer Project to support infrastructure improvements necessary to
319 advance transit-oriented housing, mixed-use development and the revitalization of the Rockland
320 center as an economic hub; provided further, that not less than \$500,000 shall be expended to the
321 town of Lexington for the design and construction of pedestrian bicycle infrastructure and safety
322 improvements to enhance connectivity and improve walkability to and around Lexington center;
323 provided further, that not less than \$1,000,000 shall be expended on a grant program to provide
324 incentive funds to small businesses and municipalities to transition landscape maintenance
325 equipment to low noise, low emissions equipment including, but not limited to, staffing, grants
326 and administrative expenses; provided further, that not less than \$100,000 shall be expended to
327 the town of Bridgewater for traffic and pedestrian sidewalk improvements in downtown
328 Bridgewater; provided further, that not less than \$100,000 shall be expended to the town of
329 Bridgewater to establish a downtown business façade improvement program; provided further,
330 that not less than \$100,000 shall be expended to the town of Bridgewater for water infrastructure

331 improvements; provided further, that not less than \$150,000 shall be expended to the town of
332 Raynham for improvements to the Raynham Woods Commerce Center; provided further, that
333 not less than \$100,000 shall be expended to the town of Raynham for the development of the
334 South street east recreational area along the Taunton river; provided further, that not less than
335 \$400,000 shall be expended to the Massachusetts Manufacturing Extension Partnership, Inc. to
336 establish and implement a statewide advisory committee comprised of representatives from
337 Massachusetts manufacturers, public high schools and vocational technical schools to review and
338 evaluate the Massachusetts Career and Workplace Integrated Curriculum and identify curriculum
339 enhancements and additional course offerings necessary to meet the current and future workforce
340 needs of Massachusetts manufacturers; provided further, that said advisory committee shall also
341 evaluate the integration of a manufacturing pre-apprenticeship program with the MACWIC
342 curriculum and determine the feasibility of delivering both programs through secondary schools
343 as a comprehensive manufacturing career pathway; provided further, that said funds shall
344 support the development of an enhanced curriculum, implementation of pilot programs in three
345 Massachusetts schools, evaluation of student and employer outcomes and incorporation of
346 stakeholder feedback; provided further, that not less than \$500,000 shall be expended to the
347 Boston Caribbean American Association Inc. for developing a cultural district and center in the
348 city of Boston in coordination with the Massachusetts Caribbean Cultural Commission; provided
349 further, that not less than \$250,000 shall be expended to the town of Hardwick for equipment
350 purchases and upgrades at its police station; provided further, that not less than \$500,000 shall be
351 expended to the town of Tewksbury for water infrastructure improvements; provided further, that
352 not less than \$50,000 shall be expended to Field's Corner Main Streets for community
353 programming and services; provided further, that not less than \$50,000 shall be expended to

354 Greater Ashmont Main Streets for community programming and the annual Dorchesterfest; provided
355 further, that not less than \$50,000 shall be expended to Upham's Corner Main Street for
356 community programming and services; provided further, that not less than \$500,000 shall be
357 expended to the city of Chicopee for the provision of economic development grants and technical
358 assistance; provided further, that not less than \$250,000 shall be expended to the city of
359 Chicopee for community playground investments; provided further, that not less than \$250,000
360 shall be expended to the city of Malden for economic development programs and initiatives;
361 provided further, that not less than \$200,000 shall be expended to the town of Brewster for the
362 redevelopment of the Sea Camps properties; provided further, that not less than \$25,000 shall be
363 expended to Circle of Hope, Inc. in the town of Needham for an inventory management system;
364 provided further, that not less than \$750,000 shall be expended to the town of Needham for the
365 design and construction of improvements to Great Plain avenue; provided further, that not less
366 than \$30,000 shall be expended to the town of Needham for town website accessibility
367 improvements; provided further, that not less than \$100,000 shall be expended to the town of
368 Natick for landscaping and safety improvements to be made to the rotary located at the
369 intersection of North Main street and Pine street; provided further, that not less than \$250,000
370 shall be expended to the city of Boston for a school safety data grant pilot program within the
371 Boston public school district; provided further, that not less than \$25,000 shall be expended to
372 the town of Acton and the town of Concord for road and transportation infrastructure
373 improvements at Kelley's corner; provided further, that not less than \$1,000,000 shall be
374 expended to the city of Boston to upgrade its fire department fleet; provided further, that not less
375 than \$25,000 shall be provided to the Acton memorial library for the development and expansion
376 of a children's program room and other related expenses; provided further, that not less than

377 \$500,000 shall be expended to the city of Boston for the renovation of the central library's
378 McKim building in Back Bay; provided further, that not less than \$250,000 shall be expended to
379 the town of town of Clinton for projects associated with improving their downtown and
380 economic development; provided further, that not less than \$250,000 shall be expended to the
381 city of Malden for economic development programs and initiatives; provided further, that not
382 less than \$250,000 shall be expended to the town of Berlin for projects associated with
383 improving their downtown and economic development; provided further, that not less than
384 \$250,000 shall be expended to the town of Boylston for projects associated with improving their
385 downtown and economic development; provided further, that not less than \$250,000 shall be
386 expended to the town of Lancaster for projects associated with improving their downtown and
387 economic development; provided further, that not less than \$250,000 shall be expended to the
388 town of Sterling for projects associated with improving their downtown and economic
389 development; provided further, that not less than \$25,000 shall be expended to the town of Acton
390 for firefighter turnout gear and other related expenses; provided further, that not less than
391 \$500,000 shall be expended to the New England Culinary Arts Training Center for costs
392 associated with the new training center; provided further, that not less than \$25,000 shall be
393 expended to the town of Dover for improving accessibility at the Dover town library; provided
394 further, that not less than \$25,000 shall be expended to the town of Shirley for improving
395 accessibility to the Shirley war memorial building; provided further, that not less than
396 \$1,000,000 shall be expended to Ascentria Care Alliance, Inc. for the dedensification at the
397 Laurel Ridge Rehabilitation & Skilled Care Center; provided further, that not less than \$25,000
398 shall be expended to the chamber of commerce in Malden for events and programming; provided
399 further, that not less than \$500,000 shall be expended to the city of Boston for safety

400 improvements on Wood avenue in Hyde Park; provided further, that not less than \$200,000 shall
401 be expended to the town of Dennis for the development and implementation of a blue economy
402 and technology curriculum for Dennis-Yarmouth high school; provided further, that not less than
403 \$20,000 shall be expended to the town of Dover for the purchase and setup of financial
404 budgeting software; provided further, that not less than \$25,000 shall be expended to the Malden
405 festivals for additional programming and activities for the Malden farmers market; provided
406 further, that not less than \$157,000 shall be expended to the Pillar & Post Dracut Farmers Hall
407 LLC in the town of Dracut for the installation of an elevator at the historic 1903 Dracut Grange
408 Hall to enable accessibility for all persons; provided further, that not less than \$1,000,000 shall
409 be expended to the city of Taunton for economic development projects such as municipal energy
410 efficiency upgrades and downtown revitalization; provided further, that not less than \$729,000
411 shall be expended to Pillar & Post Dracut Farmers Hall LLC for renovations to the exterior of the
412 1903 Grange Hall building in Dracut; provided further, that not less than \$250,000 shall be
413 expended to Worcester Olympia Theater for construction and infrastructure projects; provided
414 further, that not less than \$1,000,000 shall be expended to New England Life Flight, Inc., d/b/a
415 Boston MedFlight for critical care operations; provided further, that not less than \$75,000 shall
416 be expended to the town of Norfolk for network infrastructure upgrades; provided further, that
417 not less than \$1,000,000 shall be expended to the city of Boston for Poplar street improvements
418 in Roslindale; provided further, that not less than \$100,000 shall be expended to the town of
419 Wrentham for improvements to Diplacido field, including turf restoration, irrigation upgrades
420 and ADA-compliant seating; provided further, that not less than \$25,000 shall be expended to the
421 town of Dedham for light and sound abatement along the Providence highway of the Dedham
422 mall; provided further, that not less than \$10,000 shall be expended to the Malden YWCA for

423 supportive services and programming, including but not limited to financial coaching services,
424 financial literacy workshops, webinars and educational resources; provided further, that not less
425 than \$500,000 shall be expended to the Brookline teen center for facility upgrades consistent
426 with the YMCA of Greater Boston merger; provided further, that not less than \$100,000 shall be
427 expended to the town of Plainville for the installation of green infrastructure and electric vehicle
428 charging stations; provided further, that not less than \$50,000 shall be expended to the town of
429 Dedham for pest mitigation under the Harris street bridge; provided further, that not less than
430 \$250,000 shall be expended to the town of Tyngsborough for economic development; provided
431 further, that not less than \$200,000 shall be expended to the town of Dudley for formal planning
432 and contingency work related to the town's gateway revitalization plan; provided further, that not
433 less than \$1,000,000 shall be expended to the city of Worcester for the redevelopment of Lincoln
434 square; provided further, that not less than \$50,000 shall be expended to the city of Medford for
435 instructional and curriculum materials for students; provided further, that not less than \$150,000
436 shall be expended to the city of Medford for stormwater management, tree planting and other
437 park improvements at Tufts park; provided further, that not less than \$100,000 shall be expended
438 to the town of Mattapoisett for the establishment of an affordable housing trust and the
439 development of a housing production plan; provided further, that not less than \$100,000 shall be
440 expended to the Somerville housing authority for an upgraded field at mystic river view housing
441 in Somerville; provided further, that not less than \$500,000 shall be expended to town of
442 Belchertown for housing and related facilities at the former Belchertown state school campus;
443 provided further, that not less than \$250,000 shall be expended to the city of Lowell for the
444 installation of seating, bus shelters and related pedestrian improvements at public transit stops
445 throughout the city to improve accessibility, comfort and safety for transit riders; provided

446 further, that not less than \$200,000 shall be expended to the town of Southbridge for the
447 renovation of 39 Elm street; provided further, that not less than \$200,000 shall be expended to
448 the Wendell Historical Society for the purpose of facility improvements to the Wendell History
449 Museum; provided further, that not less than \$250,000 shall be expended to the town of
450 Rochester for planning, engineering, environmental review, permitting and preliminary design of
451 a regional shared-use path connecting Rochester to the Marion shared-use path and advancing
452 regional trail connectivity to support economic development, tourism and access to local
453 businesses; provided further, that not less than \$500,000 shall be expended to the city of Boston
454 for heat pump conversion and repairs at Orchard Gardens school in the Roxbury section of the
455 city of Boston; provided further, that not less than \$200,000 shall be expended to the Town of
456 Belchertown for the purpose of improvements to the Belchertown cultural district; provided
457 further, that not less than \$300,000 shall be expended to the city of Lowell for the planning,
458 design and construction of sidewalk improvements along Western avenue in the Acre
459 neighborhood to improve pedestrian accessibility and safety, increase public access to local arts
460 and cultural destinations, support the creative economy and local artists, and create a more
461 welcoming and vibrant corridor for residents and visitors; provided further, that not less than
462 \$500,000 shall be expended to the town of Marion for town center revitalization and pedestrian
463 safety improvements within the village corridor from Island wharf to Silvershell beach,
464 including, but not limited to, sidewalk reconstruction, ADA upgrades, curb cuts, and utility pole
465 relocation to improve connectivity between the town center, waterfront and public beach
466 facilities and support economic activity and visitor access; provided further, that not less than
467 \$250,000 shall be expended to Hope Community Development Corporation in the city of
468 Springfield; provided further, that not less than \$500,000 shall be expended to the city of Lowell

469 for the planning, design, renovation, expansion and capital improvements of emergency
470 homeless shelter facilities to increase shelter capacity and improve access to safe, temporary
471 housing for individuals and families experiencing homelessness; provided further, that not less
472 than \$500,000 shall be expended to the city of Brockton for construction of a sidewalk on Court
473 street from the city line to the intersection with Quincy street; provided further, that not less than
474 \$500,000 shall be expended for Route 203 Safety Improvements to make Franklin park
475 accessible with sidewalks that connect from Harvard street to Forest Hills street in the Mattapan,
476 Dorchester and Jamacia Plain sections of the city of Boston; provided further, that not less than
477 \$80,000 shall be expended to the town of Acushnet to conduct a planning and zoning study of
478 the downtown South Main street/Main street corridor to evaluate development potential and
479 create a new mixed-use zoning district that supports economic development and downtown
480 revitalization; provided further, that not less than \$75,000 shall be expended to the Worcester
481 Open Streets Program to encourage walking, biking and other forms of active transportation;
482 provided further, that not less than \$1,000,000 shall be expended to the city of Boston for
483 renovations at South Boston high school in the South Boston section of the city of Boston;
484 provided further, that not less than \$150,000 shall be expended to Springfield Partners for
485 Community Action, Inc.; provided further, that not less than \$150,000 shall be expended to the
486 town of Sudbury for consulting services to modify the Village Business District: increasing the
487 area of the zoning district, amending allowed uses to reflect the contemporary economy through
488 mixed use development along Boston Post road (route 20) from Massasoit avenue, to Fire
489 Station No. 2; provided further, that not less than \$1,000,000 shall be expended to complete
490 phase 2 restorations at Hazelwood park in the South End section of the city of New Bedford,
491 which shall include, but not be limited to, the creation of new playground facilities for children,

492 construction of a community amphitheater and upgrades to the historic Congdon-Lucas House;
493 provided further, that not less than \$100,000 shall be expended to Springfield Bright Minds;
494 provided further, that not less than \$250,000 shall be expended to the town of Sandisfield for the
495 engineering phase and associated costs of replacing the Buck river bridge, a critical public safety
496 route serving EMS, fire services and the town's nursing home; provided further, that not less than
497 \$100,000 shall be expended to Nonprofit Center of the Berkshires Inc. for costs associated with
498 the transition to the Commonwealth Benefits Collaborative, a statewide health insurance
499 initiative designed to help nonprofit organizations in Massachusetts; provided further, that not
500 less than \$100,000 shall be expended to the town of Washington for urgent repairs to the roof of
501 the historic Old Town Hall; provided further, that not less than \$50,000 shall be expended to the
502 town of Auburn for the installation of lighting and associated equipment to enhance Goddard
503 park as a major gateway and celebration space; provided further, that not less than \$10,000 shall
504 be expended to Action for Boston Community Development, Inc. for supportive career
505 development and financial services and programming, including but not limited to tax assistance
506 services, financial literacy, youth internship programs, employment and job training services;
507 provided further, that not less than \$500,000 shall be expended to the town of Charlton for the
508 engineering, design and fieldwork associated with the development of a municipal light plant for
509 a program to improve internet service and delivery; provided further, that not less than \$100,000
510 shall be expended to the Massachusetts Department of Transportation to produce a study
511 regarding potential air rights over the Massachusetts Turnpike for the section that runs through
512 the city of Newton; provided further, that not less than \$250,000 shall be expended to the city of
513 Newton for the design and construction of pedestrian and bicycle infrastructure and safety
514 improvements to enhance connectivity and improve walkability between both sides of

515 Washington street in Newton Corner that are divided by the Massachusetts Turnpike; provided
516 further, that not less than \$500,000 shall be expended to the New Bedford Art Museum for
517 museum renovations; provided further, that not less than \$25,000 shall be expended to the city of
518 Newton Arts and Culture Department to assist with the creation of the West Newton Cultural
519 District; provided further, that not less than \$250,000 shall be expended for the restoration of the
520 Strand Theatre/Cape Verdean Association in New Bedford, Inc.'s cultural center to foster the
521 economic development and cultural exchange relationships between the city of New Bedford and
522 Cabo Verde while providing education, arts and cultural programs for youth; provided further,
523 that not less than \$250,000 shall be expended to the Rotch-Jones-Duff House and Garden
524 Museum in New Bedford for a wheelchair lift and accessibility improvements to the museum;
525 provided further, that not less than \$70,000 shall be expended to the town of Chelmsford for
526 watershed assessments and studies of stormwater, culvert and drainage infrastructure needs,
527 including but not limited to the Sandra drive and Donna road watershed area, to identify
528 infrastructure needs related to future climate and flooding scenarios; provided further, that not
529 less than \$5,000,000 shall be expended to construct shore power at Foss New Bedford Marine
530 Terminal to support the economic competitiveness and innovation of the maritime sector;
531 provided further, that not less than \$200,000 shall be expended to the city of Westfield for urban
532 renewal and industrial park development; provided further, that not less than \$500,000 shall be
533 expended to the city of Malden for transportation improvement projects aimed to boost economic
534 activity in vital neighborhoods, including commercial corridors and the downtown district;
535 provided further, that not less than \$250,000 shall be expended to the New Art Center for
536 emergency repairs and longer-term restoration and renovation of the New Art Center building;
537 provided further, that not less than \$300,000 shall be expended to Child Care of the Berkshires,

538 Inc.; provided further, that not less than \$500,000 shall be expended to the city of Everett for the
539 planting and maintenance of street trees; provided further, that not less than \$500,000 shall be
540 expended to the city of Everett for the construction of a floating boardwalk, creating a
541 connection between Rivergreen park and Village Landing park; provided further, that not less
542 than \$500,000 shall be expended to the city of Everett for the construction of a boardwalk in
543 Gateway park; provided further, that not less than \$300,000 shall be expended to the Greylock
544 Glen environmental conference center; provided further, that not less than \$100,000 shall be
545 expended to the town of Blackstone for the economic development and revitalization of Main
546 street; provided further, that not less than \$100,000 shall be expended to the town of Bellingham
547 for the economic development and revitalization of Pulaski boulevard; provided further, that not
548 less than \$100,000 shall be expended the town of Uxbridge for the economic development and
549 revitalization of the town center; provided further, that not less than \$75,000 shall be expended
550 to the town of Millville for the economic development and revitalization of the town center;
551 provided further, that not less than \$100,000 shall be expended to the St. Jean Baptiste project in
552 Lynn for the construction, fit-out and improvement of commercial space, supportive services,
553 workforce and financial skills training and coaching to residents of affordable housing; provided
554 further, that not less than \$250,000 shall be expended to the Adams Housing Authority for a fire
555 suppression system; provided further, that not less than \$350,000 shall be expended to the
556 Northern Berkshire Community Coalition; provided further, that not less than \$150,000 shall be
557 expended to the Images Cinema in Williamstown; provided further, that not less than \$250,000
558 shall be expended to the West Newton Cinema Foundation for restoration and renovation of the
559 historic West Newton Cinema; provided further, that not less than \$200,000 shall be expended to
560 the town of Southampton to develop and maintain 52 acres located in the town center for

561 economic development for mixed use commercial and affordable housing, along with developing
562 city services within the land; provided further, that not less than \$150,000 shall be expended to
563 Williamstown Meetinghouse Preservation Fund, Inc.; provided further, that not less than
564 \$125,000 shall be expended to the city of Newton for economic development projects, including
565 village center revitalization and foot traffic initiatives, construction remediation for small
566 businesses, and other projects; provided further, that not less than \$125,000 shall be expended to
567 the city of Newton to support arts and culture projects and programming; provided further, that
568 not less than \$1,000,000 shall be expended to the executive office of housing and livable
569 communities to assist with the redevelopment, renovation, and site improvements of
570 underutilized properties in the communities of the First Berkshire representative district, as
571 defined in section 4 of chapter 57 of the General Laws, for the purposes of providing additional
572 housing capacity for first time homebuyers; provided further, that not less than \$1,000,000 shall
573 be expended to the city of Peabody for the acquisition and development of land and water
574 resources belonging to the former Rousselot Peabody Inc. in Peabody; provided further, that not
575 less than \$500,000 shall be expended to the city of Boston for the Huntington avenue redesign
576 coordination with the Massachusetts Bay Transportation Authority in the Mission Hill section of
577 the city of Boston; provided further, that not less than \$500,000 shall be expended to the town of
578 Reading for the design and implementation of the Walkers Brook Drive Redesign Project;
579 provided further, that not less than \$500,000 shall be expended to the city of Woburn for the
580 design and construction of a pedestrian bridge at the Anderson Regional Transportation Center;
581 provided further, that not less than \$100,000 shall be expended to the town of Dighton for the
582 modernization efforts to the aging highway department and its equipment in the town of
583 Dighton; provided further, that not less than \$500,000 shall be expended to the Woburn Golf and

584 Ski Authority for water delivery system improvements, including irrigation; provided further,
585 that not less than \$100,000 shall be expended to the Somerset Historical Society for repairs and
586 improvements; provided further, that not less than \$1,000,000 shall be expended to the Samuel
587 Adams Elementary School for renovations in the East Boston section of the city of Boston;
588 provided further, that not less than \$1,000,000 shall be expended to La Colaborativa for their
589 Economic Development Center; provided further, that not less than \$250,000 shall be expended
590 to Everett Haitian Community Center for the purchase of an office space to support economic
591 and workforce development for Haitians; provided further, that not less than \$250,000 shall be
592 expended to the Caribbean Integration Community Development, Inc. in Mattapan for
593 programming; provided further, that not less than \$260,000 shall be expended to the town of
594 Medfield for pipe and manhole rehabilitation construction costs; provided further, that not less
595 than \$150,000 shall be expended to the Community Economic Development Center (CEDC) of
596 New Bedford for the Building Pathways South pre-apprenticeship program in Taunton; provided
597 further, that not less than \$300,000 shall be expended to the city of Amesbury for streetscaping
598 and placemaking improvements in the Lower Millyard.; provided further, that not less than
599 \$100,000 shall be expended to the Brighton Main Streets, Inc. mural revitalization program;
600 provided further, that not less than \$10,000 shall be expended to the Mystic Valley YMCA for
601 new equipment and the continued operation of the Malden YMCA Food Market; provided
602 further, that not less than \$300,000 shall be expended to the town of North Andover for planning
603 and improvement studies downtown; provided further, that not less than \$50,000 shall be
604 expended to the Winthrop Chamber of Commerce, Inc. to support economic development,
605 tourism promotion, small business assistance, organizational capacity building and activities
606 associated with the development and implementation of a tourism management district; provided

607 further, that not less than \$500,000 shall be expended to the town of Middleton for the
608 redevelopment of the old Middleton Fire Station Parcel in the heart of Middleton Square;
609 provided further, that not less than \$250,000 shall be expended to the town of Danvers for the
610 construction of the Rail Trail Crossing on Maple street in Danvers; provided further, that not less
611 than \$500,000 shall be expended to the city of Revere for the planning, development,
612 establishment, operation and support of a regional food hub; provided further, that not less than
613 \$50,000 shall be expended to the Revere Chamber of Commerce to support economic
614 development, tourism promotion, small business assistance, organizational capacity building and
615 activities associated with the development and implementation of a tourism management district;
616 provided further, that not less than \$100,000 shall be expended to the town of Marblehead for an
617 economic growth and parking optimization plan, including economic development planning, a
618 market and local asset assessment, and a parking analysis for the town's business districts;
619 provided further, that not less than \$500,000 shall be expended to the town of Swampscott for
620 the public development and redevelopment of the waterfront property formerly occupied by
621 Hawthorne by the Sea, including planning, design, site preparation, public open-space
622 improvements, infrastructure and related economic development purposes; provided further, that
623 not less than \$100,000 shall be expended to the town of Wayland for their United States
624 Highway Route 20 corridor economic development plan; provided further, that not less than
625 \$100,000 shall be expended to the town of Georgetown for water and wastewater infrastructure
626 for downtown development; provided further, that not less than \$100,000 shall be expended for
627 Mattapan/ Greater Boston Technology Learning Center, Inc. to support costs including but not
628 limited to personnel, employee salaries and related expenses, expansion of workforce
629 development programming, digital literacy training, youth STEM programs, and community-

630 based technology initiatives serving residents of Roxbury, Mattapan, Dorchester, Hyde Park, and
631 the Greater Boston area; provided further, that not less than \$195,000 shall be expended for the
632 purpose of promoting economic development and making improvements in the town of Upton;
633 provided further, that not less than \$100,000 shall be expended to the town of Hamilton for
634 completion of renovations to the historic Town Hall, provided further, that not less than
635 \$500,000 shall be expended to the city known as the town of Winthrop to support economic
636 development, tourism promotion, small business assistance by revitalizing historic French
637 Square; provided further, that not less than \$50,000 shall be expended to the Sports Museum of
638 New England, Inc. for the enhancement of their Museum Boston v. Bullies program; provided
639 further, that not less than \$195,000 shall be expended for the purpose of promoting economic
640 development and making improvements in the town of Northbridge; provided further, that not
641 less than \$100,000 shall be expended to the town of Newbury for improvements to the site of the
642 Larkin Dam Removal Project, the Plum Island shoreline and other natural resource areas;
643 provided further, that not less than \$250,000 shall be expended to the Representative Doris Bunte
644 Scholarship Fund, which is managed and disbursed by the Massachusetts Black and Latino
645 Legislative Caucus; provided further, that a portion of said funds may be expended for the
646 creation of a commemorative memorial portrait in the Massachusetts State House in honor of
647 State Representative Doris Bunte; provided further, that the superintendent of the bureau of the
648 state house shall, subject to the approval of the art commission for the state house, established in
649 section 6 of chapter 20 of the General Laws, as to size and content, install and maintain a portrait
650 in a suitable space in the Massachusetts State House; provided further, that when determining the
651 location of such portrait, the art commission for the state house shall consult with the house
652 committee on rules and the Massachusetts Black and Latino Legislative Caucus; provided

653 further, that not less than \$500,000 shall be expended for downtown Methuen for the restoration
654 and adaptive re-use of the historic Edward F. Searles Estate; provided further, that not less than
655 \$500,000 shall be expended to downtown Methuen for facade improvements in historic
656 downtown Methuen; provided further, that not less than \$2,500,000 shall be expended to the city
657 of Revere for the construction of Route 1A improvements at Tomasello way located in Revere
658 and Boston; provided further, that not less than \$500,000 shall be expended to Methuen for road,
659 sidewalk and traffic safety improvements in the commercial corridor on Pelham street at Cross
660 street in Methuen; provided further, that not less than \$100,000 shall be expended to the town of
661 Rowley for water infrastructure within the town to support housing and economic growth;
662 provided further, that not less than \$195,000 shall be expended for the purpose of promoting
663 economic development and making improvements in the town of Grafton; provided further, that
664 not less than \$100,000 shall be expended to the town of Topsfield for improvements to water
665 infrastructure in support of housing and economic growth; provided further, that not less than
666 \$300,000 shall be expended to the Keefe Regional Technical School for post-graduate grants to
667 enable chapter 74 Career and Technical graduates, advancing in their own careers and not
668 enrolled in higher education, for training, certification, licensure, and equipment to facilitate
669 future economic development and wealth creation opportunities; provided further, that not less
670 than \$500,000 shall be expended to the city of Brockton to repurpose the existing Central Fire
671 Station (Station #1) on Pleasant street building upon its vacancy; provided further, that not less
672 than \$1,000,000 shall be expended to the department of correction for the purpose of continuing
673 and expanding its work in reducing recidivism through the deployment of technology solutions
674 that improve case management efficiency and support successful reentry outcomes; provided
675 further, that not less than \$1,000,000 shall be expended to the city of Lawrence for

676 improvements to Campagnone Common to support downtown revitalization efforts and to attract
677 small businesses; provided further, that not less than \$500,000 shall be expended to the city of
678 Brockton for the support of downtown revitalization efforts.; provided further, that not less than
679 \$50,000 shall be expended to the town of Danvers for planning and infrastructure improvements
680 to address the safe use of sidewalks, streets, rail trails, and paths in anticipation of micromobility
681 safety measures; provided further, that not less than \$100,000 shall be expended to commercial
682 shellfish harvesters be put in reserve to mitigate the economic loss to commercial shellfish
683 harvesters impacted by the Haverhill sewer main break in the Merrimack river in the summer of
684 2026; provided further, that not less than \$30,000 shall be expended to the United States
685 Capoeira Federation (USCF) Massachusetts Tournament to host teams from all over the world in
686 Massachusetts; provided further, that not less than \$1,000,000 shall be expended to the city of
687 Lawrence to remediate and restore the Merrimack Paper Site, to utilize this space for economic
688 development initiatives; provided further, that not less than \$1,000,000 shall be expended to the
689 town of Andover for improvement to town-owned historic buildings to support economic
690 development initiatives in the downtown area; provided further, that not less than \$400,000 shall
691 be expended to the city of Pittsfield for the Reconnecting Communities Project to reestablish a
692 pedestrian way that was severed during urban renewal; provided further, that not less than
693 \$500,000 shall be expended to Tufts University for the Center for Maternal Health
694 Advancement; provided further, that not less than \$1,000,000 shall be expended to the city of
695 Pittsfield for the development of the William Stanley Business Park; provided further, that not
696 less than \$500,000 shall be expended to the city of Brockton for road work, trails, stormwater
697 management, parking lot expansion and safety improvements at D.W. Field Park; provided
698 further, that not less than \$500,000 shall be expended to the city of Brockton for transportation,

699 bike and walkability improvement projects aimed to boost economic activity in the downtown;
700 provided further, that not less than \$1,000,000 shall be expended to the city of Boston for
701 renovations at Brighton High School in Brighton; provided further, that not less than \$250,000
702 shall be expended to the town of Fairhaven for, but not limited to, planning, feasibility studies,
703 site assessment, engineering, environmental review, surveying, infrastructure evaluation,
704 permitting and preliminary design necessary to identify, evaluate and prepare municipally-owned
705 and other strategic properties for commercial, industrial, mixed-use, marine-related and other
706 economic development opportunities that support private investment, job creation and expansion
707 of the local tax base; provided further, that not less than \$25,000 shall be expended to the town
708 of Harvard for developing an energy consortium to lower energy costs, including but not limited
709 to creating and developing a feasibility study and constructing a solar power plant in the town of
710 Harvard, and other related expenses; provided further, that not less than \$500,000 shall be
711 expended to the town of Tewksbury for any costs related to improving and repairing the town's
712 sewer infrastructure; provided further, that not less than \$500,000 shall be expended to the
713 STEMatch COMPETE Program; provided further, that not less than \$500,000 shall be expended
714 to the Winchendon Redevelopment Authority to support the business and industrial park
715 development on Route 140 in the town of Winchendon; provided further, that not less than
716 \$500,000 shall be expended to the city of Gardner to support housing development in the Rear
717 Main Redevelopment Project in downtown Gardner; provided further, that not less than \$70,000
718 shall be expended to the South Shore Irish Heritage Trail for investments in the physical trail and
719 for technology to enhance digital programming; provided further, that not less than \$100,000
720 shall be expended to the town of Ipswich for infrastructure to facilitate economic development in
721 downtown Ipswich; provided further, that not less than \$50,000 shall be expended to the town of

722 Hull to support the investments of the Hull Beautification Committee to invite tourism into the
723 main street economy; provided further, that not less than \$300,000 shall be expended to new
724 lights at Harris Field in the town of Belmont; provided further, that not less than \$1,000,000 shall
725 be expended to the inclusion of combined sewer overflow mitigation measures in the
726 redevelopment of the Alewife Garage; provided further, that not less than \$50,000 shall be
727 expended to the town of Cohasset for investments in Cohasset Town Center; provided further,
728 that not less than \$125,000 shall be expended to the city of Woburn Main Street makeover grant
729 program which includes grants for facades, awnings, and signs; provided further, that not less
730 than \$500,000 shall be expended to the city of Haverhill for upgrades to sewer treatment
731 infrastructure in the city; provided further, that not less than \$500,000 shall be expended to the
732 city of Brockton to support programming and staff at the council on aging; provided further, that
733 not less than \$50,000 shall be expended to the Hingham Historical Society to steward
734 investments in the Downtown Hingham Overlay District; provided further, that not less than
735 \$200,000 shall be expended to the town of Carlisle for the design and construction of Carlisle
736 town center sidewalk infrastructure; provided further, that not less than \$500,000 shall be
737 expended to the city of Haverhill for Haverhill City Hall improvements, including but not limited
738 to the auditorium to support arts and culture programming; provided further, that not less than
739 \$100,000 shall be expended to the city known as the town of Amherst to support fire station
740 modernization activities including, but not limited to, fire station construction or renovation;
741 provided further, that not less than \$1,000,000 shall be expended to the city known as the town
742 of Amherst for road repairs; provided further, that not less than \$100,000 shall be expended to
743 the planning and development of the housing authority in the town of Abington; provided
744 further, that not less than \$100,000 shall be expended to the repair and maintenance of an

745 educational public facility located in the Strathmore Road neighborhood of the Brighton section
746 of the city of Boston; provided further, that not less than \$100,000 shall be expended to East
747 Boston Main Streets for their work supporting local businesses and fostering vibrant main streets
748 and business corridors in East Boston; provided further, that not less than \$100,000 shall be
749 expended to design review funding, including zoning and regulatory review, for Bradford Square
750 in the city of Haverhill; provided further, that not less than \$250,000 shall be expended to the
751 town of Granby to support the consolidation of municipal offices in a renovated and centralized
752 location, including the Granby Senior Center; provided further, that not less than \$1,000,000
753 shall be expended to the town of West Springfield for the improvement of accessibility and
754 interconnectivity of bike trail infrastructure; provided further, that not less than \$100,000 shall be
755 expended to Ancestral Bridges in the city known as the town of Amherst to support the
756 development and execution of a marketing plan to attract visitors to the organization and to the
757 town; provided further, that not less than \$100,000 shall be expended to Ancestral Bridges in the
758 city known as the town of Amherst to support the development and execution of a marketing
759 plan to attract visitors to the organization and to the town; provided further, that not less than
760 \$100,000 shall be expended to Amherst Cinema in the city known as the town of Amherst to
761 support the development of marketing infrastructure to attract visitors to the organization and to
762 the town, including the development of a new website; provided further, that not less than
763 \$100,000 shall be expended to the Peabody Area Chamber of Commerce for expanding access to
764 small and medium sized businesses in Peabody; provided further, that not less than \$1,000,000
765 shall be expended to the town of Weymouth for economic development; provided further, that
766 not less than \$60,000 shall be expended to the Amherst Business Improvement District in the
767 city known as the town of Amherst to support the first phase of construction of a performance

768 shell on the Amherst town Common; provided further, that not less than \$250,000 shall be
769 expended to the town of Weymouth for the expansion of the adult career technology education
770 program; provided further, that not less than \$100,000 shall be expended to the Hispanic
771 American Institute for their work, including, but not limited to, the Immigrant Business
772 Accelerator and the Immigrant Small Business Legal and Development Initiative; provided
773 further, that not less than \$200,000 shall be expended to the Newton housing authority for capital
774 improvements to Jackson Gardens located on Kennedy Circle and Greens street in the city of
775 Newton; provided further, that not less than \$500,000 shall be expended to the city of Revere for
776 the expansion and improvement of Gibson Park, including the redevelopment of the former
777 boatyard property, demolition, site preparation, public open space improvements, shoreline
778 access enhancements and the establishment of a community boating center; provided further, that
779 not less than \$100,000 shall be expended to the North and South Rivers Watershed Association
780 for permitting, design and construction associated with the Association's River Center plan,
781 including the construction of a boardwalk and dock to support environmental education,
782 stewardship and monitoring; provided further, that not less than \$100,000 shall be expended to
783 WeReach in East Boston for their workforce development and equity programs; provided
784 further, that not less than \$250,000 shall be expended to the Irish Pastoral Centre Boston for cost
785 associated with promoting cultural education and economic development, provided further, that
786 not less than \$30,000 shall be expended to the town of Princeton for infrastructure modernization
787 and Per- and polyfluoroalkyl substance mitigation; provided further, that not less than \$30,000
788 shall be expended to the renovation and rehabilitation of 10 West street in the town of Paxton for
789 the development of a community center; provided further, that not less than \$30,000 shall be
790 expended to planning, design and implementation of activities related to the enhancement of the

791 town of Rutland's village center and the promotion of economic development within the town;
792 provided further, that not less than \$1,000,000 shall be expended to Harbor Place in Haverhill to
793 support the construction, fit-out and improvement of commercial space for enhanced economic
794 and workforce development; provided further, that not less than \$250,000 shall be expended to
795 the South Shore Irish Heritage Trail in the town of Weymouth for the extension of the trail and to
796 promote economic development; provided further, that not less than \$100,000 shall be expended
797 to the Marshfield Chamber of Commerce for the continuation of its Open for Business
798 promotional program to support small businesses; provided further, that not less than \$100,000
799 shall be expended to the town of East Bridgewater for the design and implementation of a
800 downtown improvement plan; provided further, that not less than \$250,000 shall be expended to
801 the town of East Bridgewater for the public safety building feasibility study; provided further,
802 that not less than \$1,000,000 shall be expended to an academic medical center in the city of
803 Springfield to accelerate regional job creation and economic development in western
804 Massachusetts, secure critical capital infrastructure, provide facility modernization and clinical
805 capacity expansion related to the acquisition of a community hospital in said city; provided
806 further, that not less than \$95,000 shall be expended to the town of Tewksbury for the purchase
807 of a department of public works dump truck and like vehicles to replace essential vehicles to
808 ensure safe and reliable road maintenance; provided further, that not less than \$1,500,000 shall
809 be expended to the city of Worcester for accessibility improvements as part of the redevelopment
810 of the Worcester Memorial Auditorium into a multipurpose, technology-forward, artificial
811 intelligence innovation center and entertainment facility; provided further, that not less than
812 \$250,000 shall be expended to HVAC improvements at the Melrose Public Schools; provided
813 further, that not less than \$250,000 shall be expended for bathroom accessibility upgrades at

814 Melrose City Hall; provided further, that not less than \$250,000 shall be expended to the city of
815 Melrose for interior renovations to Soldiers and Sailors Memorial Hall; provided further, that not
816 less than \$100,000 shall be expended to the town of Danvers and North Shore Community
817 College to conduct a feasibility study on the transportation connections from the Danvers NSCC
818 campus to Danvers Square; provided further, that not less than \$250,000 shall be expended to the
819 town of Wakefield to support economic development projects and initiatives including but not
820 limited to those that advance the Town's efforts to support its small business community and
821 enhance its commercial districts; provided further, that not less than \$250,000 shall be expended
822 to the town of West Bridgewater to support programming and staff at the Council on Aging;
823 provided further, that not less than \$100,000 shall be expended to the Waltham Housing
824 Authority for capital improvements at 48 Pine St. in the city of Waltham; provided further, that
825 not less than \$60,000 shall be expended to the Western Massachusetts Economic Development
826 Council (EDC) to support regional economic development efforts focused on food science,
827 entrepreneurship and advanced manufacturing; provided further, that not less than \$50,000 shall
828 be expended to the town of Holden for the renovation and relocation of the fire substation;
829 provided further, that not less than \$150,000 shall be expended to the town of Wenham for its
830 Downtown Vibrancy initiative; provided further, that not less than \$250,000 shall be expended to
831 the Iron Horse Music Hall to support economic development and tourism promotion; provided
832 further, that not less than \$100,000 shall be expended to the Waltham Housing Authority for
833 capital improvements at 326-340 Grove St. in the city of Waltham; provided further, that not less
834 than \$200,000 shall be expended to the city of Springfield for lighting and security
835 improvements in the North End bike path; provided further, that not less than \$4,000,000 shall be
836 expended to the city of Fall River for a parking garage to support the Davol Street/Route 79

837 economic development project; provided further, that not less than \$1,000,000 shall be expended
838 for a planning grant for the further development and expansion of the MWRA's water delivery
839 system; provided further, that not less than \$250,000 shall be expended to the town of
840 Wilmington for the design and construction of multimodal access and upgrade or replacement of
841 roads/entrances for all transportation modes at the North Intermediate School project; provided
842 further, that not less than \$250,000 shall be expended to the town of Goshen to support economic
843 development and tourism promotion; provided further, that not less than \$500,000 shall be
844 expended to the city of Beverly for revitalization and activation of the Bass River and Waterfront
845 districts as mixed-use walkable areas; provided further, that not less than \$500,000 shall be
846 expended to the city of Lynn for improvements of the Seaport Landing Marina; provided further,
847 that not less than \$100,000 shall be expended to the MBTA and MassDOT to design and
848 approvals for portions of the Grand Junction Path where right-of-way concerns have yet to be
849 resolved in the city of Cambridge; provided further, that not less than \$1,000,000 shall be
850 expended to the city of Springfield for the planning, development, enhancement and promotion
851 of the Indian Orchard Food & Arts Cultural District to strengthen the neighborhood as a regional
852 destination for dining, arts, culture, entertainment, and small business growth; provided further,
853 that the city of Springfield shall partner with the Latino Economic Development Corporation to
854 lead and implement the initiative, including business/restaurant recruitment and retention,
855 technical assistance, marketing and branding, placemaking, public events, façade and streetscape
856 enhancements and other economic development activities that support the district's long-term
857 vitality; provided further, that not less than \$100,000 shall be expended to the city of Newton for
858 improvements to the Newton Centre Plaza outdoor gathering space including for outdoor
859 amenities, wayfinding to direct foot traffic, streetscape and lighting improvements and other

860 improvements to support local business activity; provided further, that not less than \$250,000
861 shall be expended to the town of Cummington to support economic development through the
862 redevelopment of the Berkshire Trail Elementary School; provided further, that not less than
863 \$120,000 shall be expended to the University of Massachusetts Amherst for a mural project in
864 the city of Springfield; provided further, that not less than \$1,000,000 shall be expended to the
865 town of West Boylston for improvements related to water and sewer infrastructure necessary to
866 support existing business and enable future commercial growth; provided further, that not less
867 than \$200,000 shall be expended to the Council on American-Islamic Relations, Massachusetts
868 Chapter (CAIR-MA, INC) to provide litigation support and legal assistance for indigent victims
869 of religious harassment and discrimination; provided further, that not less than \$230,000 shall be
870 expended to the town of Lincoln for a comprehensive economic development/strategic plan;
871 provided further, that not less than \$250,000 shall be expended to the Wilmington housing
872 authority in the town of Wilmington for the purposes of making improvements and revitalizing
873 the authority's public housing stock; provided further, that not less than \$250,000 shall be
874 expended to the city of Northampton to support local businesses during the Picture Main Street
875 redesign project; provided further, that not less than \$100,000 shall be expended to the Eric Carle
876 Museum of Picture Book Art in the city known as the town of Amherst to support the purchase
877 and installation of ADA accessible sliding doors for the museum's entryway; provided further,
878 that not less than \$250,000 shall be expended to the town of Belmont for clocks and a PA system
879 at Chenery School; provided further, that not less than \$500,000 shall be expended to Barnstable
880 County's Massachusetts Alternative Septic System Technology Center to evaluate the feasibility
881 of using urine diverting eco-toilet systems to reduce nutrient pollution in nitrogen sensitive areas
882 of the lower and outer region of Cape Cod; provided further, that not less than \$100,000 shall be

883 expended to the Watertown housing authority for capital improvements to E. Joyce Munger on
884 Warren street in the city of Watertown; provided further, that not less than \$100,000 shall be
885 expended to the Watertown housing authority for capital improvements to Woodland Towers in
886 the city of Watertown; provided further, that not less than \$1,000,000 shall be expended to the
887 town of Winchester for the town's downtown and light industrial revitalization; provided further,
888 that not less than \$150,000 shall be expended to the town of Westminster for development and
889 event infrastructure improvements to Academy Hill; provided further, that not less than \$250,000
890 shall be expended to the Belchertown Water District for groundwater and water district
891 expansion work; provided further, that not less than \$50,000 shall be expended to the city of
892 Newton for a study of ways to support economic development by integrating the Wells Park
893 commercial area with the University of Massachusetts Charles River Campus; provided further,
894 that not less than \$1,000,000 shall be expended to the town of Stoneham for downtown
895 revitalization and the small business grant program; provided further, that not less than \$200,000
896 shall be expended to the town of Arlington for the installation of electric vehicle charging
897 stations in the East Arlington business district; provided further, that not less than \$250,000 shall
898 be expended to Gore Place in Waltham to preserve historic open space and support community
899 programming; provided further, that not less than \$300,000 shall be expended to the town of
900 Arlington for streetscape improvements in the East Arlington business district; provided further,
901 that not less than \$5,000,000 shall be expended to the Commonwealth Zoological Corporation
902 established in section 2 of chapter 92B of the General Laws for costs associated with the
903 preparation of plans, studies and specifications, repairs, construction, renovations,
904 improvements, maintenance, asset management and demolition and other capital improvements
905 including those necessary for the operation of facilities operated by Zoo New England, including

906 the Franklin Park Zoo and the Walter D. Stone Memorial Zoo; provided further, that not less
907 than \$250,000 shall be expended to the city of Newton to pilot temporary, safe and accessible
908 transportation for Newton's senior residents, including but not limited to those residing at Golda
909 Meir House & the Nahanton Campus, to ensure reliable access to area businesses and parts of the
910 city no longer accessible by public transportation; provided further, that not less than \$100,000
911 shall be expended to the town of Plymouth for the workforce development for the Plymouth
912 Public School Career Technical Education Program; provided further, that not less than \$250,000
913 shall be expended to the city of Beverly for improvements to city properties, including but not
914 limited to the Lynch Park Carriage House and Beverly Golf and Tennis Club, that prioritize
915 economic activity, municipal revenue, environmental sustainability, historic preservation and
916 increased recreational and community use; and provided further, that not less than \$500,000 shall
917 be expended to the city of Springfield to create a strategic community-based agenda to address
918 youth and gun violence in Springfield that requires a comprehensive approach and emphasizes
919 prevention, community engagement and mental health support.....\$135,497,085

920 EXECUTIVE OFFICE OF LABOR AND WORKFORCE DEVELOPMENT

921 *Office of the Secretary*

922 7003-8088 For the executive office of labor and workforce development for a grant
923 program to support commonwealth-based employers in assisting current or former employees
924 who were authorized to work pursuant to the federal Temporary Protected Status program to
925 obtain alternate work authorization in a manner consistent with federal law; provided, that grants
926 shall be awarded in a manner that prioritizes current or former employees with experience in
927 high-demand or difficult to staff occupations, including but not limited to health care and related

928 fields; provided further, that grants shall be awarded in a manner that prioritizes geographic areas
929 in which it is most difficult for employers to find adequate numbers of employees in said high-
930 demand or difficult to staff occupations; and provided further, that not later than April 1, 2027,
931 the secretary of labor and workforce development shall produce a report to the house and senate
932 committees on ways and means, which shall include all grants awarded, including the amounts of
933 the grants, along with the secretary's analysis of the impact of the grants on the ability of
934 employees to fill high-demand or difficult to staff occupations and recommendations regarding
935 the advisability of continuing the program along with recommendations regarding the
936 implementation thereof.....\$500,000

937

938

939 EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES

940 *Office of the Secretary*

941 7004-0092 For grants and technical assistance for municipalities for the conversion of
942 commercial properties into residential housing\$50,000,000

943 7004-0094 For the veterans supported housing initiative program established in
944 section 35 of chapter 23B of the General Laws; provided, that the executive office of housing
945 and livable communities shall partner with a qualified non-profit organization, as defined in said
946 section 35 of said chapter 23B, to implement and operate the program; and provided further, that
947 the qualified non-profit organization shall receive not more than \$20,000 in a 12-month period
948 for each eligible veteran.....\$20,000,000

949 7004-0095 For grants to support remediation efforts at former state-owned buildings;
950 provided, that grants shall be to support housing development projects on lands and in buildings
951 previously owned by the commonwealth and that require asbestos, lead or hazardous material
952 demolition and remediation; and provided further, that the secretary of housing and livable
953 communities, in consultation with the department of environmental protection, shall report to the
954 clerks of the house of representatives and the senate and the house and senate committees on
955 ways and means all grants awarded, including the amounts of the
956 grants.....\$50,000,000

957 SECTION 3. Section 204 of chapter 6 of the General Laws, as appearing in the 2024
958 Official Edition, is hereby amended by striking out, in lines 20 and 21, the words “but shall not
959 serve for longer than 8 consecutive years”.

960 SECTION 4. Section 16I of chapter 6A of the General Laws, as so appearing, is hereby
961 amended by striking out, in line 13, the words “housing and”.

962 SECTION 5. Said section 16I of said chapter 6A, as so appearing, is hereby further
963 amended by striking out, in line 20, the word “community” and inserting in place thereof the
964 following word:- economic.

965 SECTION 6. Section 35FF of chapter 10 of the General Laws is hereby repealed.

966 SECTION 6A. Section 55 of chapter 13 of the General Laws, as appearing in the 2024
967 Official Edition, is hereby amended by adding the following paragraph:-

968 The board shall publish, not less than annually: (i) an account of newly licensed
969 members; (ii) a summary of complaints filed against licensed members; (iii) the actions taken by

970 the board to investigate such complaints, disciplinary hearings, disciplinary actions or
971 suspensions or revocations of licenses; and (iv) the reason for such actions by the board, pursuant
972 to clause (iii), including any findings, in which the finding has become final, of discrimination
973 against any classes protected by chapter 151B or otherwise protected by any other general or
974 special law or federal statute, and the name of the affected license holder.

975 SECTION 7. Chapter 23 of the General Laws is hereby amended by adding the following
976 section:-

977 Section 28. (a) The secretary of labor and workforce development, in consultation with
978 the secretary of education and the secretary economic development, shall produce a report every
979 other year, in even-numbered years, on the current status of the commonwealth's job market and
980 an analysis of the labor market need for the following 5-year period. The report and analysis
981 shall provide necessary information to ensure the economic competitiveness of the
982 commonwealth, including guiding decision-making within agencies related to policy adoption
983 and development and state funding investments. The report shall include, but shall not be limited
984 to:

985 (i) recommendations related to policies and investments to ensure the commonwealth has
986 the necessary workforce to address any known or reasonably anticipated future labor market
987 needs, including identification of business sectors poised to experience growth and anticipated
988 gaps in filling employment need in such sectors;

989 (ii) a progress report on the status of career pathway programs in the commonwealth's
990 high schools, institutions of higher education and workforce training programs in targeted
991 industries; and

(iii) an analysis of data regarding the skills required for jobs in key industries as identified by the secretary of labor and workforce development or enumerated in line item 7002-8070 of section 2 of chapter 238 of the acts of 2024.

(b) Bi-annually, not later than December 31, the secretary of labor and workforce development, in consultation with the secretary of education and the secretary of economic development, shall make the report, and any recommendations, available to the public on the executive office of labor and workforce development's website and shall submit the report to: (i) the governor; (ii) any relevant state agencies, as determined by the secretary of labor and workforce development; and (iii) the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the chairs of the joint committee on labor and workforce development.

SECTION 7A. Section 3E of chapter 23A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 10 to 12, inclusive, the words "or (iii) a private project or investment that contributes significantly to the resiliency of the local economy" and inserting in place thereof the following words:- (iii) the creation of new housing units; or (iv) a private project or investment that contributes significantly to the resiliency of the local economy.

SECTION 7B. Said section 3E of said chapter 23A, as so appearing, is hereby further amended by adding the following subsection:-

(d) If a municipality offers tax increment financing to the owner of a residential or mixed-use real estate project, the municipality shall notify the executive office of housing and

1013 livable communities by submitting a fully executed copy of the adopted local incentive
1014 agreement and any amendments thereto.

1015 SECTION 8. Chapter 23B of the General Laws is hereby amended by adding the
1016 following section:-

1017 Section 37. (a) The executive office of housing and livable communities shall establish a
1018 training program for members of local planning boards, special permit granting authorities and
1019 zoning boards of appeals to provide education and self-evaluation. The training program shall be
1020 an annual training that is offered at no cost to municipalities. In developing the training program,
1021 the executive office shall consult with the Massachusetts Association of Planning Directors, Inc.,
1022 the Massachusetts Association of Regional Planning Agencies, the Massachusetts Chapter of the
1023 American Planning Association, Inc. and the Citizen Planner Training Collaborative. The
1024 training program shall cover: (i) special permits; (ii) subdivision control; (iii) variances; (iv) fair
1025 housing; and (v) any other laws that govern the role and responsibility of the local planning
1026 board. To the extent practicable, the training programs shall be offered online and in various
1027 locations throughout the commonwealth, at various times of the year.

1028 (b) Each member of a local planning board, special permit granting authority and zoning
1029 board of appeals shall, not later than 60 days after becoming a board member, and every 2 years
1030 thereafter, complete the training program. Each member shall, upon completion of the training
1031 program, provide notice to the town or city clerk and such notice shall be retained for 6 years.

1032 SECTION 9. Section 5 of chapter 23I of the General Laws, as appearing in the 2024
1033 Official Edition, is hereby amended by striking out, in line 37, the word “3F” and inserting in
1034 place thereof the following word:- 3C.

SECTION 10. Subsection (b) of said section 5 of said chapter 23I, as so appearing, is hereby amended by adding the following 2 sentences:- The decision by the center to certify or deny certification of a life sciences company and the decision to award or deny any incentives pursuant to subsections (c) or (d), including, but not limited to, the amount of such award and any conditions or limitations on such authorization, shall be decisions that are in the sole discretion of the center. The decision by the center shall be final and shall not be subject to administrative appeal or judicial review pursuant to chapter 30A or give rise to any other cause of action or legal or equitable claim or remedy.

SECTION 11. Said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out subsection (d) and inserting in place thereof the following subsection:-

(d)(1) There shall be established a life sciences tax incentive program. The center, in consultation with the department, may authorize incentives, including incentives carried forward or refunded pursuant to subsections (m), (n) and (r) of section 6 of chapter 62, paragraph 17 of section 30 of chapter 63, section 31M of said chapter 63, subsection (f) of section 38 of said chapter 63, subsection (k) of section 38M of said chapter 63, section 38U of said chapter 63, section 38V of said chapter 63, section 38W of said chapter 63, section 38CC of said chapter 63, the second paragraph of subsection (c) of section 42B of said chapter 63 and subsection (xx) of section 6 of chapter 64H in a cumulative amount, including the current year cost of incentives allowed in previous years, that shall not exceed \$40,000,000 annually. The center may authorize incentives to a life sciences company that spans multiple years if the total amount of incentives due to be taken in any single calendar year does not exceed the applicable cap. The center shall determine the amount and type of any such incentive to authorize and the schedule on which those incentives may be claimed. The center may, in consultation with the department, limit any

1058 incentive to a specific dollar amount or time duration or in any other manner deemed appropriate
1059 by the department; provided, however, that the department shall only allocate any such
1060 incentives among commonwealth certified life sciences companies pursuant to subsection (b)
1061 and shall award such tax incentives pursuant to subsection (c).

1062 (2) The center shall provide an estimate to the secretary of administration and finance of
1063 the tax cost of extending benefits to a proposed project before certification, as approved by the
1064 commissioner of revenue, based on reasonable projections of project activities and costs. Tax
1065 incentives shall not be available to a certified life sciences company unless expressly granted by
1066 the secretary of administration and finance in writing.

1067 (3) When authorizing incentives pursuant to this subsection, the center shall require the
1068 certified life sciences company to execute a written agreement setting forth the terms and
1069 conditions on which the tax credits may be claimed. The written agreement shall set forth: (i) the
1070 company's permanent new or retained full-time employees; (ii) commitments over 1 or more
1071 years; (iii) a schedule on which the credits may be claimed; and (iv) other such terms or
1072 conditions as the center may, in its discretion, require. The written agreement may, at the
1073 center's discretion, limit or restrict the right of the certified life sciences company to carry
1074 unused tax credits forward to subsequent tax years.

1075 SECTION 12. Subsection (e) of said section 5 of said chapter 23I, as so appearing, is
1076 hereby amended by striking out paragraphs (1) and (2) and inserting in place thereof the
1077 following 2 paragraphs:-

1078 (1) Certification granted pursuant to subsection (b) shall be valid starting with the tax
1079 year in which certification is granted. Each certified life sciences company shall file an annual

report with the center certifying whether the company has achieved the job commitments, met the specific targets established in the proposal pursuant to subclause (A) of clause (i) of said subsection (b) and other material obligations or representations set forth in the written agreement pursuant to paragraph (3) of subsection (d).

(2) The certification of a life sciences company may be revoked by the center after an investigation and determination that representations made by the certified life sciences company in its certification proposal or written agreement pursuant to paragraph (3) of subsection (d) are materially at variance with the conduct of the life sciences company after receiving certification; provided, however, that the center shall review the certified life sciences company not less than annually; and provided further, that the center shall have the discretion to determine whether the material variance shall result in revocation of a project certification, taking into account: (i) the conduct of the certified life sciences company subsequent to the project certification; (ii) the extent to which the material variance is the result of unforeseen conditions that are outside the control of the certified life sciences company; and (iii) other considerations as the center shall establish by policy. If the center revokes certification of a life sciences company, the center shall provide its reasons for the decision in writing to the secretary of administration and finance, the commissioner of revenue and the clerks of the house of representatives and the senate, who shall forward the same to the house and senate committees on ways and means, the joint committee on revenue and the joint committee on economic development and emerging technologies. The center shall post these reasons on the center's website.

SECTION 13. Said subsection (e) of said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out paragraph (4) and inserting in place thereof the following 2 paragraphs:-

(4) In connection with an award of refundable jobs credits pursuant to subsection (r) of section 6 of chapter 62 or section 38CC of chapter 63, if the center finds that the certified life sciences company is in material variance with the terms of the written agreement entered into under paragraph (3) of subsection (d), the center may rescind tax credits awarded but not yet claimed and request that the department recapture tax credits already claimed. The center may provide the certified life sciences company with reasonable opportunity to cure the material variance and rescind or recapture tax credits in proportion to the company's compliance, as determined by the center. Tax credits shall be rescinded or recaptured by sending a written notice to the certified life sciences company and the department. Where applicable, the department shall recapture tax credits in pursuant to said subsection (r) of said section 6 of said chapter 62 or said section 38CC of said chapter 63.

(5) Nothing in this subsection shall limit any legal remedies available to the commonwealth against any certified life sciences company.

SECTION 14. Said section 5 of said chapter 23I, as so appearing, is hereby further amended by striking out, in lines 149 and 150, the word "independent".

SECTION 15. Section 1 of chapter 23J of the General Laws, as so appearing, is hereby amended by striking out the definition of "Fund" and inserting in place thereof the following definition:-

"Fund", the Climatetech Investment Fund established in section 15.

SECTION 16. Said section 1 of said chapter 23J, as so appearing, is hereby further amended by striking out the definition of "Trust fund".

1124 SECTION 17. Section 2 of said chapter 23J, as so appearing, is hereby amended by
1125 striking out, in lines 13 to 15, inclusive, the words “, in collaboration with the Massachusetts
1126 Renewable Energy Trust Fund established in section 4E of chapter 40J,”.

1127 SECTION 18. Subsection (e) of said section 2 of said chapter 23J, as so appearing, is
1128 hereby amended by striking out the second paragraph.

1129 SECTION 19. Section 3 of said chapter 23J, as so appearing, is hereby amended by
1130 striking out, in lines 65 and 66, the words “Massachusetts Alternative and Climatetech
1131 Investment Trust Fund” and inserting in place thereof the following word:- fund.

1132 SECTION 20. Subsection (a) of said section 3 of said chapter 23J, as so appearing, is
1133 hereby amended by striking out paragraphs (26) to (32), inclusive, and inserting in place thereof
1134 the following 5 paragraphs:-

1135 (26) to promote programs and investments that lead to pathways towards economic self-
1136 sufficiency for low and moderate-income individuals and communities in the climatetech
1137 industry;

1138 (27) to research and establish, if the center so chooses, the Massachusetts Hydrogen and
1139 Fuel Cell Institute, to be housed at the Worcester Polytechnic Institute, and to serve as a joint
1140 venture among institutes of higher education in the commonwealth providing a focal point for
1141 research, education and commercialization activities in the hydrogen fuel cell sector; provided,
1142 however, that said institute responsibilities may include, but shall not be limited to: (i) working
1143 with the University of Massachusetts and private higher education institutions in the
1144 commonwealth to coordinate and strengthen hydrogen and fuel cell research activities in the
1145 commonwealth; (ii) strengthening collaborative research and development between universities

1146 and companies located within the commonwealth; (iii) addressing critical technological barriers
1147 facing the hydrogen and fuel cell companies; (iv) strengthening existing educational programs
1148 and introducing new curriculum in Massachusetts universities to produce graduates who are
1149 conversant in hydrogen and fuel cell technologies; and (v) promoting partnerships between
1150 Massachusetts universities and companies to jointly demonstrate hydrogen and fuel cell
1151 technologies and attract greater amounts of federal funding to the commonwealth;

1152 (28) to allocate, if the center so chooses, up to \$2,000,000 annually for 5 years for the
1153 Massachusetts Hydrogen and Fuel Cell Institute; provided, however, that said funding shall
1154 begin in the fiscal year that said institute shall be established and shall end in the fifth fiscal year
1155 following the establishment of said institute;

1156 (29) to establish, if the center so chooses, a program to be known as the entrepreneurial
1157 fellowship program, which shall award grants to entrepreneurs from business sectors other than
1158 climatetech sectors to enroll in programs to foster knowledge and expertise of climatetech
1159 technology; provided, however, that the climatetech technology programs shall be based upon
1160 intensive technology, market and policy curriculum; and provided further, that the center shall
1161 establish public-private partnerships and enter into contribution agreements with commonwealth-
1162 based companies and venture capitalists to support programs designed to mentor and train
1163 entrepreneurs from other business sectors in the areas of climatetech technology and
1164 development to increase investment in the commonwealth's climatetech sector; and

1165 (30) to serve as a focal point, and provide state-wide coordination, for offshore wind
1166 initiatives; provided, that said responsibilities shall include, but shall not be limited to: (i)
1167 working with public and private higher education institutions in the commonwealth to coordinate

1168 and strengthen offshore wind research activities in the commonwealth; (ii) strengthening
1169 collaborative research and development between higher education institutions and companies
1170 located within the commonwealth; (iii) addressing critical barriers facing offshore wind
1171 companies in the commonwealth; (iv) assessing and reporting on infrastructure requirements that
1172 support the growing offshore wind industry in the commonwealth; (v) supporting the growth of
1173 an offshore wind supply chain in the commonwealth; (vi) supporting and developing offshore
1174 wind training initiatives; and (vii) supporting and growing offshore wind innovation and
1175 entrepreneurship in the commonwealth; provided, that priority shall be given to efforts and
1176 investments that leverage private investment in the offshore wind sector.

1177 SECTION 21. Section 5 of said chapter 23J, as so appearing, is hereby amended by
1178 striking out, in lines 16 to 19, inclusive, the words “and the trust fund over the previous fiscal
1179 year, the ability of the fund to meet the requirements in section 35FF of chapter 10 and the
1180 ability of the trust fund to meet the requirements in section 9” and inserting in place thereof the
1181 following words:- over the previous fiscal year, the ability of the fund to meet the requirements
1182 in section 15.

1183 SECTION 22. Section 9 of said chapter 23J is hereby repealed.

1184 SECTION 23. Section 11 of said chapter 23J, as appearing in the 2024 Official Edition, is
1185 hereby amended by striking out, in lines 2 and 3, the words “the fund and the trust fund” and
1186 inserting in place thereof the following words:- any funds administered by the center under this
1187 chapter.

1188 SECTION 24. Section 15 of said chapter 23J, as so appearing, is hereby amended by
1189 striking out, in line 6, the words “and (iii)” and inserting in place thereof the following words:-
1190 (iii) all amounts collected under section 20 of chapter 25; and (iv).

1191 SECTION 25. Subsection (b) of section 16 of said chapter 23J, as so appearing, is hereby
1192 amended by adding the following 2 sentences:- The decision by the center to certify or deny
1193 certification of a climatetech company and the decision to authorize or deny any incentives
1194 pursuant to subsection (d), including, but not limited to, the amount of such incentive and any
1195 conditions or limitations on such authorization, shall be decisions that are in the sole discretion
1196 of the center. The decisions by the center shall be final and shall not be subject to administrative
1197 appeal or judicial review pursuant to chapter 30A or give rise to any other cause of action or
1198 legal or equitable claim or remedy.

1199 SECTION 26. Subsection (c) of said section 16 of said chapter 23J, as so appearing, is
1200 hereby amended by striking out paragraph (1) and inserting in place thereof the following
1201 paragraph:-

1202 (1) Certification granted pursuant to subsection (b) shall be valid starting with the tax
1203 year in which certification is granted. Each certified climatetech company shall file an annual
1204 report with the center certifying whether the company has achieved the job commitments, met
1205 the specific targets established in the proposal pursuant to clause (i) of subsection (b) and, if not,
1206 detailing its progress towards those targets, and other material obligations or representations set
1207 forth in the written agreement pursuant to paragraph (3) of subsection (d).

1208 SECTION 27. Said section 16 of said chapter 23J, as so appearing, is hereby further
1209 amended by inserting after the word “proposal”, in line 56, the following words:- or written
1210 agreement pursuant to paragraph (3) of subsection (d).

1211 SECTION 28. Subsection (c) of said section 16 of said chapter 23J, as so appearing, is
1212 hereby amended by striking out paragraph (3) and inserting in place thereof the following 2
1213 paragraphs:-

1214 (3) In connection with an award of refundable jobs credits pursuant to subsection (hh) of
1215 section 6 of chapter 62 or section 38TT of chapter 63, if the center finds that the certified
1216 climatetech company is in material noncompliance with the terms of the written agreement
1217 entered into pursuant to paragraph (3) of subsection (d), then the center may rescind tax credits
1218 awarded but not yet claimed and request that the department of revenue recapture tax credits
1219 already claimed. The center shall have discretion to provide the certified climatetech company
1220 with reasonable opportunity to cure the material noncompliance and rescind or recapture tax
1221 credits in proportion to the company’s compliance, as determined by the center. Tax credits shall
1222 be rescinded or recaptured by sending a written notice to the certified climatetech company and
1223 the department of revenue. The department of revenue shall recapture tax credits pursuant to said
1224 subsection (hh) of said section 6 of said chapter 62 or said section 38TT of said chapter 63,
1225 where applicable.

1226 (4) Nothing in this subsection shall limit any legal remedies available to the
1227 commonwealth against any certified climatetech company.

1228 SECTION 29. Subsection (d) of said section 16 of said chapter 23J, as so appearing, is
1229 hereby amended by striking out paragraph (1) and inserting in place thereof the following
1230 paragraph:-

1231 (1) The center, in consultation with the department of revenue, may authorize incentives,
1232 including those established in subsections (gg) and (hh) of section 6 of chapter 62, subsection (k)
1233 of section 38M of chapter 63, section 38RR of said chapter 63, section 38SS of said chapter 63,
1234 section 38TT of said chapter 63, the second paragraph of subsection (c) of section 42B of said
1235 chapter 63 and subsection (yy) of section 6 of chapter 64H, that shall not exceed \$30,000,000
1236 annually. The center may authorize incentives to a climatetech company that span multiple years
1237 if the total amount of incentives due to be taken in any single calendar year does not exceed the
1238 applicable cap. The center shall determine the amount and type of any such incentive to
1239 authorize and the schedule on which those incentives may be claimed. The center, in consultation
1240 with the department of revenue, may limit the incentives to a specific dollar amount, time
1241 duration or in any other manner deemed appropriate by the department of revenue; provided,
1242 however, that the department of revenue shall only allocate the incentives among certified
1243 climatetech companies.

1244 SECTION 30. Said subsection (d) of said section 16 of said chapter 23J, as so appearing,
1245 is hereby further amended by adding the following paragraph:-

1246 (3) When authorizing incentives pursuant to this subsection, the center shall require the
1247 certified climatetech company to execute a written agreement that sets forth the terms and
1248 conditions for which the tax credits may be claimed. The written agreement shall set forth: (i) the
1249 company's permanent new or retained full-time employees; (ii) commitments over 1 or more

years; (iii) a schedule on which the credits may be claimed; and (iv) other such terms or conditions as the center may, in its discretion, require. The written agreement may, at the center’s discretion, limit or restrict the right of the certified climatetech company to carry unused tax credits forward to subsequent tax years.

SECTION 31. Said chapter 23J is hereby further amended by adding the following section:-

Section 17. (a)(1) For the purposes of this section, the terms “department”, “distribution company” and “electric company” shall, unless the context clearly requires otherwise, have the meanings as defined in section 1 of chapter 164.

(2) For the purposes of this section, the words “gridtech solution” shall, unless the context clearly requires otherwise, mean novel technologies, novel applications of technologies and other innovative approaches, including, but not limited to, novel retail rate designs, distributed energy resource wiring configurations or customer energy solutions.

(b) There shall be a gridtech deployment advisory board. The board shall: (i) explore opportunities for public-private partnerships to test or deploy at-scale gridtech; (ii) facilitate connections between gridtech companies and relevant distribution companies; and (iii) identify and propose solutions to barriers in the existing practices of an electric company or the department; provided, that such solutions are permissible under state law. The advisory board shall prioritize, where appropriate, the deployment of gridtech that reduces electric distribution and transmission grid costs and supports achievement of the statewide greenhouse gas emissions limits and sublimits chapter 21N.

(c) The gridtech deployment advisory board established pursuant to subsection (b) shall be comprised of: (i) the chief executive officer of the center, or their designee; (ii) the commissioner of the department of energy resources, or their designee; (iii) the chair of the department, or their designee; (iv) the secretary of the executive office of economic development, or their designee; (v) 1 representative from the Massachusetts Technology Development Corporation established in section 2 of chapter 40G; (vi) 1 representative from each electric company; (vii) 1 representative from the Massachusetts Municipal Wholesale Electric Company; (viii) 1 representative from a municipal electric distribution company or an organization that represents municipal electric distribution companies; and (ix) 3 representatives from organizations involved or familiar with the development, financing or implementation of gridtech solutions. The board shall be co-chaired by the chief executive officer of the center, or their designee, and a member of an electric company serving on the advisory board. All representatives shall, unless otherwise provided, be appointed by the chief executive officer of the center.

(d) The electric companies shall file for review and approval with the department any process approved by the board to review, on an expedited basis, requests for limited waivers of prior department orders that will alleviate gridtech deployment barriers.

(e) The department shall approve any process filed under subsection (d) if it determines that such process is in the public interest, including, but not limited to, reducing electric grid costs and supporting achievement of the statewide greenhouse gas emissions limits and sublimits pursuant to chapter 21N.

(f) Annually, the board shall identify barriers to the deployment of discrete gridtech technologies and applications in existing utility practices and orders issued by the department, as well as potential solutions to those barriers and, as applicable, limited waivers of department orders to alleviate the identified barriers. The electric companies shall seek approval from the department of any limited waivers identified and approved by the board so long as they are consistent with the process approved by the department under subsection (e).

(g) Nothing in this section shall preclude members of the board from testing, funding or scaling gridtech solutions outside of the processes outlined in this section.

SECTION 32. Section 20 of chapter 25 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) The department shall require a mandatory charge of 0.5 mill per kilowatt-hour for all electricity consumers, except those served by a municipal lighting plant that does not supply generation service outside its own service territory or does not open its service territory to competition at the retail level. All revenues generated by the mandatory charge shall be deposited into the Climatetech Investment Fund, established in section 15 of chapter 23J.

SECTION 33. Said section 20 of said chapter 25, as so appearing, is hereby further amended by striking out, in line 22, the words “Massachusetts Renewable Energy Trust” and inserting in place thereof the following words:- Climatetech Investment.

SECTION 34. Said section 20 of said chapter 25, as so appearing, is hereby further amended by inserting after the word “fund”, in line 24, the following words:- revenues from mandatory charges held by the fund.

1314 SECTION 35. Said section 20 of said chapter 25, as so appearing, is hereby further
1315 amended by striking out, in line 28, the word “collaborative” and inserting in place thereof the
1316 following words:- Massachusetts clean energy technology center.

1317 SECTION 36. Said section 20 of said chapter 25, as so appearing, is hereby further
1318 amended by striking out, in line 42, the word “trust”.

1319 SECTION 37. Section 2EEEEEE of chapter 29 of the General Laws, as so appearing, is
1320 hereby amended by inserting after the word “Matching”, in line 28, the following words:- , Fiscal
1321 Resilience.

1322 SECTION 38. Said section 2EEEEEE of said chapter 29, as so appearing, is hereby
1323 further amended by striking out, in line 73, the words “and (iii)” and inserting in place thereof
1324 the following words:- (iii) protecting the commonwealth from the elimination, reduction or
1325 material delay of federal funds upon a determination by the secretary that the elimination,
1326 reduction or material delay of such federal funds would materially impact public health, safety or
1327 welfare or the fiscal stability of the commonwealth or any of its political subdivisions, in
1328 accordance with guidance issued by the executive office for administration and finance; (iv)
1329 improving the financial stability of hospitals and community health centers in the commonwealth
1330 that provide health care to low-income, uninsured or underinsured residents, including by
1331 transferring any amounts in the fund to the Health Safety Net Trust Fund established in section
1332 66 of chapter 118E, in accordance with guidance issued by the executive office for
1333 administration and finance in consultation with the executive office of health and human
1334 services; (v) funding pay-as-you-go capital for any capital project or program up to the amount
1335 otherwise authorized by the general court for such project or program in chapter 238 of the acts

1336 of 2024, in accordance with guidance issued by the executive office for administration and
1337 finance; and (vi).

1338 SECTION 39. Said section 2EEEEEE of said chapter 29, as so appearing, is
1339 hereby further amended by inserting after the word “Matching”, in line 78, the following words:-
1340 , Fiscal Resilience.

1341 SECTION 40. Said section 2EEEEEE of said chapter 29, as so appearing, is hereby
1342 further amended by inserting after the word “Matching”, in line 85, the following words:- , Fiscal
1343 Resilience.

1344 SECTION 40 1/4. Said chapter 29 is hereby further amended by inserting after section
1345 2OOOOOO, inserted by section 2 of chapter 113 of the acts of 2026, the following section:-

1346 Section 2PPPPPP. (a) There is hereby established in the office of the state treasurer a
1347 separate, non-budgeted special revenue fund known as the Massachusetts Secure Choice Savings
1348 Fund, which shall be administered by the state treasurer. The fund shall be credited with: (i)
1349 money from the payment of fees, penalties and other payments due to the Massachusetts secure
1350 choice savings program established in section 64H; (ii) appropriations or other money authorized
1351 or transferred by the general court and specifically designated to be credited to the fund and any
1352 funds appropriated by the federal or local governments; (iii) private contributions and publicly or
1353 privately-funded grants; and (iv) any interest earned on the assets of the fund. Monies in the fund
1354 that are unexpended at the end of the fiscal year shall not revert to the General Fund and shall be
1355 available for expenditure in the subsequent fiscal year. Section 38 shall not apply to any
1356 investment of the fund.

(b) The fund shall cover all expenses associated with the administration of the Massachusetts secure choice savings program not otherwise covered by the program, including, but not limited to, expenses related to program compliance and oversight responsibilities.

(c) The Massachusetts secure choice savings board, as established in section 64G, shall establish guidelines regarding administration of the fund.

Section 2QQQQQQ. (a) There shall be established and set up on the books of the commonwealth a separate fund to be known as the Transition Age Youth Services Matching Fund. The purpose of the fund shall be to increase access of transition-aged youth to high quality, evidence- and community-based services that have undergone a rigorous evaluation and have been rated by a third-party clearinghouse by incentivizing private investment in such services. The secretary of health and human services shall administer the fund and shall expend money from the fund, without further appropriation, in the form of matching grants for evidence-based services for youth aging out of care or services from the executive office of health and human services and its constituent agencies. Youth served through the fund shall: (i) be not less than 17 years of age and not more than 23 years of age; (ii) have been, but at the time of service provision may or may not still be, under the care of executive office of health and human services or 1 or more of its constituent agencies; and (iii) be housing insecure or at risk of experiencing homelessness based on risk factors, including, but not limited to, previous experience in the foster care system, couch-surfing, unemployment and other indicators of lack of economic stability or life skills that could result in homelessness. Money in the fund shall only be expended to match private or philanthropic funding pursuant to subsection (b).

1378 (b) No expenditure from the fund shall be made unless it is accompanied by a
1379 commitment of a corresponding private matching reimbursement to the fund to increase access
1380 to such services. Qualifying matching reimbursement shall be: (i) not less than 100 per cent of
1381 the corresponding expenditure from the fund during the first 2 fiscal years after the establishment
1382 of the fund; (ii) not less than 70 per cent of the corresponding expenditure from the fund during
1383 the subsequent fiscal year; (iii) not less than 40 per cent of the corresponding expenditure from
1384 the fund during the subsequent 2 fiscal years; and (iv) not less than a percentage of the
1385 corresponding expenditure from the fund set by the secretary thereafter, which shall not exceed
1386 40 per cent of the corresponding expenditure from the fund.

1387 (c) There shall be credited to the fund: (i) any appropriations or other money authorized
1388 by the general court and specifically designated to be credited to the fund; (ii) any federal
1389 financial participation revenues claimed and received by the commonwealth for eligible
1390 expenditures made from the fund; (iii) money transferred to the fund by the executive office or
1391 its constituent agencies pursuant to subsection (e); (iv) interest earned on any money in the fund;
1392 and (v) any other grants, premiums, gifts, reimbursements or other contributions received by the
1393 commonwealth from any source for or in support of the purposes described in subsection (a).

1394 (d) Amounts credited to the fund may be expended without further appropriation. The
1395 secretary may incur expenses and the comptroller may certify for payment amounts in
1396 anticipation of expected receipts; provided, however, that no expenditure shall be made from the
1397 fund that shall cause the fund to be deficient at the close of a fiscal year. Any money remaining
1398 in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available
1399 for expenditure in a subsequent fiscal year.

1400 (e) Notwithstanding any special or general law to the contrary, for the purposes of
1401 increasing the total amount of private matching expenditures pursuant to this section, the
1402 commissioner of mental health, the commissioner of youth services, the commissioner of
1403 children and families, the commissioner of public health, the director of the division of medical
1404 assistance and the secretary may transfer into the fund money appropriated to other accounts that
1405 otherwise would be expended to pay for services to assist transition-aged youth with living
1406 successful, independent lives as they age out of state care or services; provided, however, that the
1407 secretary shall notify the house and senate committees on ways and means of any such transfer.

1408 (f) Annually, not later than October 1, the secretary shall report on the fund's activity to
1409 the chairs of the joint committee on children, families and persons with disabilities, the joint
1410 committee on the judiciary, the joint committee on mental health, substance use and recovery,
1411 and the house and senate committees on ways and means. The report shall include, but shall not
1412 be limited to: (i) revenue received by the fund and the source of such revenue; (ii) expenditures
1413 from the fund, including the recipient, matching commitment, date and purpose of the
1414 expenditure; (iii) the number of transition-aged youth served through expenditures from the fund
1415 and their corresponding match; and (iv) youth outcomes at discharge for educational attainment,
1416 employment and living situations.

1417 SECTION 40 1/2. Said chapter 29 is hereby further amended by inserting after section
1418 64E the following 5 sections:-

1419 Section 64F. For the purposes of this section and sections 64G to 64J, inclusive, the
1420 following words shall, unless the context clearly requires otherwise, have the following
1421 meanings:

1422 “Board”, the Massachusetts secure choice savings board established pursuant to section
1423 64G.

1424 “Code”, as defined in section 1 of chapter 62.

1425 “Commissioner”, the commissioner of revenue.

1426 “Department”, the department of revenue.

1427 “Employee”, any individual who: (i) is 18 years of age or older; (ii) is employed by an
1428 employer; and (iii) has wages that are allocable to the commonwealth during a calendar year
1429 under chapter 62.

1430 “Employer”, a person or entity engaged in a business, industry, profession, trade or other
1431 enterprise in the commonwealth, whether for-profit or not-for-profit, that has: (i) at no time
1432 during the previous calendar year employed fewer than 25 employees in the commonwealth; (ii)
1433 been in business not less than 2 years; and (iii) not offered a qualified retirement plan, including,
1434 but not limited to, a plan qualified under sections 401(a), 401(k), 403(a), 403(b), 408(k), 408(p)
1435 or 457(b) of the Code in the preceding 2 calendar years.

1436 “Enrollee”, any employee or former employee who is enrolled in the program.

1437 “Fund”, the Massachusetts Secure Choice Savings Fund, established pursuant to section
1438 2PPPPPP.

1439 “IRA”, an individual retirement account that is either a: (i) Roth IRA, under section 408A
1440 of the Code; or (ii) individual retirement account under section 408 of the Code.

“Participating employer”, an employer that provides a payroll deposit retirement savings arrangement as provided for by section 64I for its employees who are enrolled in the program.

“Payroll deposit retirement savings arrangement”, an arrangement by which a participating employer allows enrollees to remit payroll deduction contributions to the program.

“Program”, the Massachusetts secure choice savings program, established pursuant to section 64H.

“Wages”, any compensation within the meaning of section 219(f)(1) of the Code that is received by an enrollee from a participating employer during the calendar year.

Section 64G. (a)(1) There is hereby established the Massachusetts secure choice savings board. The board shall consist of the following 5 members: the state treasurer or a designee, who shall serve as chair; the comptroller or a designee; the secretary of the commonwealth or a designee; a public representative with expertise in retirement savings plan administration or investment, or both, who is representative of participating employees, appointed by the governor; and a public representative with expertise in retirement savings plan administration or investment, or both, who is representative of participating employers, appointed by the state treasurer.

(2) Each member shall be appointed for a term of 4 years; provided, however, that the public representative of employers shall be appointed initially for a term of 3 years; and provided further, that all members shall be eligible for reappointment. A vacancy in the term of an appointed board member shall be filled for the balance of the unexpired term in the same manner as the original appointment. Members of the board shall serve without compensation but shall be reimbursed for reasonable expenses incurred in the performance of their official duties.

(3) The board may appoint or engage agents. The board, the individual members of the board, any other agents appointed or engaged by the board and all persons serving as program staff shall discharge their duties with respect to the program solely in the interest of the program's enrollees and beneficiaries.

(b) The board shall be responsible for ongoing fiduciary administrative oversight of the program for the purpose of promoting greater retirement savings for private-sector employees in a convenient, low-cost and portable manner, pursuant to subsection (a) of section 64H.

(c) The board shall report annually to the state treasurer, governor, comptroller, secretary of the commonwealth and the house and senate committees on ways and means. The report shall include, but shall not be limited to: (i) an audited financial report, prepared in accordance with generally accepted accounting principles; (ii) a summary of the benefits provided by the program, including the number of enrollees; and (iii) the percentage and amounts of investment options and rates of return.

(d) All agencies of the commonwealth shall cooperate as requested by the board in the performance of their duties under this section, including, unless otherwise prohibited, the sharing of relevant data as the parties shall mutually agree.

Section 64H. (a) There is hereby established in the office of the state treasurer the Massachusetts secure choice savings program, subject to appropriation. The program shall be developed and administered by the state treasurer with ongoing fiduciary administrative oversight provided by the board for the purpose of promoting greater retirement savings for private-sector employees in a convenient, low-cost and portable manner.

1484 (b)(1) The state treasurer shall design, establish and operate the program in a manner that:
1485 (i) accords with best practices for retirement savings vehicles; (ii) maximizes participation,
1486 savings and sound investment practices; (iii) maximizes simplicity, including ease of
1487 administration for participating employers and enrollees; (iv) provides an efficient product to
1488 enrollees by pooling investment funds; and (v) ensures the portability of benefits.

1489 (2) The state treasurer and the department shall maintain, on their websites, information
1490 for employers on the requirements of the program and information on retirement plans an
1491 employer may offer as an alternative to the program, including, but not limited to, a defined
1492 benefit plan, 401(k) plan, a Simplified Employee Pension (SEP) plan or a Savings Incentive
1493 Match Plan for Employees (SIMPLE) plan.

1494 (c) The state treasurer shall request, in writing, an opinion or ruling from the appropriate
1495 entity with jurisdiction over the federal Employee Retirement Income Security Act regarding the
1496 applicability of the federal Employee Retirement Income Security Act to the program. The state
1497 treasurer shall not implement the program if the IRA arrangements offered under the program
1498 fail to qualify for the favorable federal income tax treatment ordinarily accorded to IRAs under
1499 the Code or if it is determined that the program is an employee benefit plan and state or employer
1500 liability is established under the federal Employee Retirement Income Security Act.

1501 (d) The state treasurer shall prepare a written statement of investment policy that includes
1502 a risk management and oversight program for consideration and adoption by the board.

1503 (e) The state treasurer may contract with practitioners, administrators, investment
1504 managers and other entities to design, administer and provide investment options under the
1505 program. Any practitioner, administrator, investment manager or other entity with which the

1506 state treasurer contracts shall comply with all applicable federal and state laws, rules and
1507 regulations and all rules, policies and guidelines promulgated by the board with respect to the
1508 program and the investment of the fund, including, but not limited to, the investment policy. Any
1509 practitioner, administrator, investment manager or other entity with which the state treasurer
1510 contracts shall provide such reports as the board deems necessary to assess performance.

1511 (f) The state treasurer shall assess the feasibility of multistate or regional agreements to
1512 administer the program through shared administrative and operational resources and may enter
1513 into those agreements if deemed beneficial to the program.

1514 (g)(1) The commonwealth, the board, each member of the board or other commonwealth
1515 official, other commonwealth boards, commissions or agencies, or any member, officer or
1516 employee thereof, and the program: (i) shall have no responsibility for compliance by individuals
1517 with the conditions and other provisions of the Code that determine which individuals are
1518 eligible to make tax-favored contributions to IRAs, in what amount and in what time frame and
1519 manner; (ii) shall have no duty, responsibility or liability to any party for the payment of any
1520 benefits under the program, regardless of whether sufficient funds are available under the
1521 program to pay such benefits; (iii) do not and shall not guarantee any interest rate or other rate of
1522 return on or investment performance of any contribution or account balance; and (iv) are not and
1523 shall not be liable or responsible for any loss, deficiency, failure to realize any gain or any other
1524 adverse consequences, including, but not limited to, any adverse tax consequences or loss of
1525 favorable tax treatment, public assistance or other benefits incurred by any person as a result of
1526 participating in the program.

1527 (2) The debts, contracts and obligations of the program shall not be considered the debts,
1528 contracts and obligations of the commonwealth, and neither the faith and credit nor the taxing
1529 power of the commonwealth shall be pledged directly or indirectly to the payment of the debts,
1530 contracts and obligations of the program.

1531 (3) Participating employers shall not have any liability for an employee's decision to
1532 participate in, or opt out of, the program or for the investment decisions of the board or of any
1533 enrollee.

1534 (4) A participating employer shall not be a fiduciary, or considered to be a fiduciary, over
1535 the program. A participating employer shall not bear responsibility for the administration,
1536 investment options or investment performance of the program. A participating employer shall
1537 not be liable with regard to investment returns, program design and benefits paid to program
1538 participants.

1539 (h) All agencies of the commonwealth shall cooperate as requested by the state treasurer
1540 in the performance of their duties under this section, including, unless otherwise prohibited, the
1541 sharing of relevant data as the parties shall mutually agree.

1542 Section 64I. (a)(1) Each employer shall establish a payroll deposit retirement savings
1543 arrangement to allow each employee to participate in the program on a timeline set by the board.

1544 (2) Employers shall automatically enroll each employee, who has not opted out of
1545 participation, in the program and shall provide payroll deduction retirement savings
1546 arrangements and deposit, on behalf of each such employee, these funds into the program.

1547 (3) Employers shall retain the option at all times to set up any type of employer-
1548 sponsored retirement plan, including, but not limited to, a defined benefit plan, a 401(k), a
1549 Simplified Employee Pension (SEP) plan or a Savings Incentive Match Plan for Employees
1550 (SIMPLE) plan, instead of having a payroll deposit retirement savings arrangement to allow
1551 employee participation in the program.

1552 (b)(1) Enrollees shall have the ability to: (i) select a contribution level into the fund; or
1553 (ii) opt out of participation in the program. The contribution level may be expressed as a
1554 percentage of wages or as a dollar amount up to the deductible amount for the enrollee's taxable
1555 year under section 219(b)(1)(A) of the Code. Enrollees may change their contribution level at
1556 any time and that election shall be honored as soon as administratively feasible. If an enrollee
1557 fails to select a contribution level using the form prescribed, the enrollee shall contribute the
1558 default contribution rate of 6 per cent, with an annual escalation of 1 per cent and up to 10 per
1559 cent, of their wages to the program.

1560 (2) Enrollees may select an investment option from the permitted investment options
1561 available under the program. Enrollees may change their investment option at any time. If an
1562 enrollee fails to select an investment option, the enrollee shall be placed in a qualified default
1563 investment alternative specified by the program.

1564 (3) An enrollee may terminate their participation in the program at any time in a manner
1565 prescribed by the program.

1566 Section 64J. (a) An employer who fails without reasonable cause to enroll an employee,
1567 who has not elected out of participation, in the program within the time prescribed by the state
1568 treasurer, in consultation with the department, shall be subject to a penalty equal to:

1569 (i) \$250 for each employee for each calendar year or portion of a calendar year during
1570 which the employee neither was enrolled in the program nor had elected out of participation in
1571 the program, and the employee or any appropriate official of the commonwealth may bring a
1572 civil action to require the employer to enroll the employee and shall recover such costs and
1573 reasonable attorney's fees as may be allowed by the court; and

1574 (ii) for each calendar year beginning after the date a penalty has been assessed with
1575 respect to an employee, \$500 for any portion of that calendar year during which such employee
1576 continues to be unenrolled without electing out of participation in the program, and the employee
1577 or any appropriate official of the commonwealth may bring a civil action to require the employer
1578 to enroll the employee and shall recover such costs and reasonable attorney's fees as may be
1579 allowed by the court.

1580 (b) No penalty shall be imposed under subsection (a) for any failure for which it is
1581 established that the employer, subject to liability for the penalty, did not know that the failure
1582 existed and exercised reasonable diligence to meet the requirements of this section or where:

1583 (i) the employer subject to liability for the penalty exercised reasonable diligence to meet
1584 those requirements; and

1585 (ii) the employer complies with those requirements with respect to each employee by the
1586 end of the 90-day period beginning on the first date the employer knew, or exercising reasonable
1587 diligence would have known, that the failure existed.

1588 (c) In the case of a failure that is due to reasonable cause and not to willful neglect, all or
1589 part of the penalty may be waived to the extent that the payment of the penalty would be
1590 excessive or otherwise inequitable relative to the failure involved.

(d) If a participating employer fails to transmit a payroll deduction contribution to the program on the earliest date the amount withheld from the enrollee's compensation may reasonably be segregated from the participating employer's assets, but not later than the 15th day of the month following the month in which the enrollee's contribution amounts are withheld from their paycheck, the failure to remit such contributions on a timely basis shall be subject to the same sanctions as employer misappropriation of employee wage withholdings, including those pursuant to sections 148 and 150 of chapter 149 and to the penalties specified in subsection (a).

(e) Except as provided in this subsection, all information received by the department from returns filed by an employer or from any investigation conducted under this section shall be confidential, except for official purposes within the department or pursuant to official procedures for collection of penalties assessed under this section. Nothing contained in this section shall prevent the commissioner from publishing or making available to the public reasonable statistics concerning the operation of this section wherein the contents of returns are grouped into aggregates in such a way that the specific information of any employer shall not be disclosed. Nothing contained in this section shall prevent the commissioner from divulging information to an authorized representative of the employer or to any person pursuant to a request or authorization made by the employer or by an authorized representative of the employer.

(f) Civil penalties and fees collected under this section shall be deposited into the fund.

(g) The department may promulgate rules and regulations as necessary or proper for the administration and enforcement of this section.

SECTION 40A. Chapter 40 of the General Laws is hereby amended by striking out section 60 and inserting in place thereof the following section:-

Section 60. (a) Notwithstanding any general or special law to the contrary, a city or town by vote of its town meeting, town council or city council with the approval of the mayor where required by law, on its own behalf or in conjunction with 1 or more cities or towns and under regulations issued by the executive office of housing and livable communities, in consultation with the department of revenue, may adopt and prosecute a housing tax increment financing agreement, in this section referred to as an HTIF agreement, intended to encourage increased residential and mixed-use growth; provided, however, that the HTIF agreement shall:

(i) include a description of the parcels to be included in the agreement; provided, that in the case of an HTIF agreement adopted by more than 1 city or town, the areas designated as HTIF zones shall be contiguous areas of those cities and towns;

(ii) describe the construction, reconstruction, rehabilitation and related activities, public and private, contemplated for such HTIF agreement as of the date of the adoption of the HTIF agreement; provided, however, that in the case of public construction, the HTIF agreement shall include a detailed projection of the costs and a betterment schedule for the defrayal of such costs; provided, further, that the HTIF agreement shall provide that no costs of such public construction shall be recovered through betterments or special assessments imposed on a party that has not executed an HTIF agreement; and provided, further, that in the case of private construction, the HTIF agreement shall include the types of residential and mixed-use growth that are projected to occur, with such documentary evidence of the level of private investment and projected public benefits, including but not limited to architectural plans and specifications;

1635 (iii) authorize tax increment exemptions from property taxes, under clause Fifty-first of
1636 section 5 of chapter 59, for a specified term not to exceed 20 years, for any parcel of real
1637 property that is included in an HTIF agreement; provided, however, that the HTIF agreement
1638 shall specify the level of exemptions expressed as exemption percentages, not to exceed 100 per
1639 cent to be used in calculating the exemptions for the parcel, and for personal property situated on
1640 that parcel, as provided under said clause Fifty-first of said section 5 of said chapter 59;
1641 provided, further, that the exemption for each parcel of real property shall be calculated using an
1642 adjustment factor for each fiscal year of the specified term equal to the product of the inflation
1643 factors for each fiscal year since the parcel first became eligible for such exemption under this
1644 clause; and provided further, that the inflation factor for each fiscal year shall be a ratio:

1645 (A) the numerator of which shall be the total assessed value of all parcels of real estate
1646 that are assessed at full and fair cash value for the current fiscal year minus the new growth
1647 adjustment for the current fiscal year attributable to the residential and mixed-use real estate as
1648 determined by the commissioner of revenue pursuant to subsection (f) of section 21C of chapter
1649 59; and

1650 (B) the denominator of which shall be the total assessed value for the preceding fiscal
1651 year of all the parcels included in the numerator; provided, however, that such ratio shall not be
1652 less than 1;

1653 (iv) establish a maximum percentage of the costs of any public construction, referenced
1654 in clause (ii) and initiated subsequent to the adoption of the HTIF agreement, that can be
1655 recovered through betterments or special assessments against real property eligible for tax
1656 increment exemptions from property taxes under clause (iii) during the period of the parcel's

eligibility for exemption from annual property taxes pursuant to said clause Fifty-first of said section 5 of said chapter 59, notwithstanding chapter 80 or any other general or special law authorizing the imposition of betterments or special assessments;

(v) include: (A) all material representations of the parties that served as the basis for the descriptions contained in the HTIF agreement in accordance with the provisions of clause (ii); (B) a detailed recitation of the tax increment exemptions and the maximum percentage of the cost of public improvements that can be recovered through betterments or special assessments regarding such parcel of real property pursuant to clauses (iii) and (iv); (C) a detailed recitation of all other benefits and responsibilities inuring to and assumed by the parties to such agreement; and (D) a provision that such agreement shall be binding upon subsequent owners of such parcel of real property;

(vi) delegate to a board, agency or officer of the city or town the authority to execute agreements in accordance with the provisions of clause (v); and

(vii) require an owner of a parcel pursuant to clause (v) to submit to the city or town clerk a report detailing the status of the construction laid out in the agreement, the current value of the property and the number of housing units created to date as a result of the agreement; provided, however, that a report shall be filed every 2 years for the term of the tax increment exemption allowed under clause Fifty-first of section 5 of chapter 59; and provided further, that a final report shall be filed in the final year of the exemption.

(b) The board, agency or officer of the city or town authorized pursuant to clause (vi) of subsection (a) to execute agreements shall forward to the board of assessors a copy of each approved HTIF agreement, together with a list of the parcels included therein.

1679 SECTION 41. Section 1A of chapter 40A of the General Laws, as so appearing, is hereby
1680 amended by inserting after the definition of “Public service corporation” the following
1681 definition:-

1682 “Site plan review”, the review and approval process under a municipality’s zoning
1683 ordinance or by-law that establishes criteria for the layout, safety and impacts of a proposed use
1684 or development, and whether a proposed use of land or structures is in compliance with
1685 reasonable performance standards pursuant to section 7A; provided, however, that site plan
1686 review, and the performance standards applicable thereto, in connection with any protected use
1687 pursuant to section 3 or any other section of this chapter shall be limited to the extent required by
1688 such section.

1689 SECTION 42. Said chapter 40A is hereby further amended by inserting after section 3B
1690 the following 2 sections:-

1691 Section 3C. (a) As used in this section, the following words shall, unless the context
1692 clearly requires otherwise, have the following meanings:

1693 “Adaptive reuse”, the conversion of an existing structure from the use for which it was
1694 constructed to multi-family housing or mixed-use development by maintaining the elements of
1695 the structure and adapting such elements to the new use.

1696 “Board of appeals”, a municipal zoning board of appeals established pursuant to section
1697 12.

1698 “Bus station”, a location serving as a point of embarkation for any bus operated by a
1699 transit authority, including, but not limited to, the Massachusetts Bay Transportation Authority
1700 Silver Line.

1701 “Commercial conversion”, the use of land or structures for the creation and operation of
1702 any of the following: (i) adaptive reuse; (ii) new construction of multi-family housing; or (iii)
1703 new construction of mixed-use development.

1704 “Commercial use”, the use of land or structures for non-residential uses, including, but
1705 not limited to: (i) offices; (ii) retail; (iii) dining establishments; or (iv) other similar uses as may
1706 be provided through regulation by the executive office in consultation with the executive office
1707 of economic development.

1708 “Commercially zoned lot”, a lot where zoning allows commercial use as-of-right or by
1709 special permit.

1710 “Commuter rail station”, any commuter rail station operated by a transit authority with
1711 year-round service with trains departing at regular time intervals, rather than intermittent,
1712 seasonal or event-based service.

1713 “Executive office”, the executive office of housing and livable communities.

1714 “Ferry terminal”, the location where passengers embark and disembark from a ferry
1715 service with year-round service with ferries departing at regular time intervals, rather than
1716 intermittent, seasonal or event-based service.

1717 “Financially infeasible”, to add unreasonable costs or unreasonably diminish the
1718 economic feasibility of a commercial conversion by means of a condition or requirement
1719 imposed by the board of appeals.

1720 “Local board”, any local board or official, including, but not limited to, any: (i) board of
1721 survey; (ii) board of health; (iii) board of subdivision control appeals; (iv) planning board; (v)
1722 conservation commission; (vi) historical commission; (vii) water, sewer or other commission;
1723 (viii) district, fire, police, traffic or other department; (ix) building inspector or similar official;
1724 or (x) board, city council or selectboard; provided, that all boards, regardless of their
1725 geographical jurisdiction or their source of authority, including boards established pursuant to
1726 any general or special law, shall be a local board if they perform functions usually performed by
1727 locally created boards.

1728 “Local contribution”, an incentive provided by a city or town for commercial conversion
1729 on a commercially zoned lot pursuant to subsection (c).

1730 “Subway station”, any of the stops along the rapid transit system of a transit authority,
1731 including, but not limited to, the Massachusetts Bay Transportation Authority red line, green
1732 line, orange line or blue line, and any extensions or additions to such lines.

1733 “Transit authority”, the Massachusetts Bay Transportation Authority established in
1734 section 2 of chapter 161A, or any other local or regional transit authority established pursuant to
1735 section 3 or section 14 of chapter 161B.

1736 “Transit station”, a subway station, commuter rail station, ferry terminal or bus station.

(b)(1) A city or town subject to this chapter may, pursuant to section 5, amend zoning to allow commercial conversion as of right on every commercially zoned lot; provided, that a city or town that adopts commercial conversion as of right zoning shall provide not less than 1 adaptive reuse incentive pursuant to subsection (c); and provided further, that commercial conversion as of right zoning established pursuant to this section shall provide at a minimum, but shall not be limited to, the following:

(A) for adaptive reuse: (i) allowing existing building setbacks to remain and be considered a legal nonconforming use pursuant to section 6; provided, however, that a municipality may prohibit any additional encroachments into any nonconforming setback, unless otherwise required pursuant to clause (ii) or otherwise allowed under zoning; (ii) allowing such development to exceed the existing footprint of the building to accommodate upgrades related to building code, fire code and utility requirements; (iii) allowing such development to exceed the maximum height of the existing zoning district if the structure in existence prior to the adaptive reuse exceeds the maximum height of the existing zoning district; (iv) exempting multi-family housing, new multi-family housing and new-construction of mixed-use developments from residential parking requirements that exceed 1 parking space per residential dwelling unit; provided, that such commercial conversion projects on lots that are partially or entirely located within a 0.5 mile radius of a transit station shall be exempt from any residential parking requirements;

(B) A city or town may require that adequate infrastructure, including, but not limited to, roads and water and sewage systems, shall be available or provided to support commercial conversion;

1759 (C) A city or town may restrict development on lots where industrial and manufacturing
1760 uses are permitted and where such uses have a substantial and demonstrable likelihood of
1761 resulting in impacts that are incompatible with residential use, such as air, noise or odor; and

1762 (D) A city or town may impose affordable housing requirements on commercial
1763 conversion through an inclusionary zoning ordinance or bylaw to the extent that such affordable
1764 housing requirement does not require more than 10 per cent of the residential units within a
1765 commercial conversion to be subject to such affordable housing requirement and such
1766 requirement does not limit eligibility to households earning not more than 80 per cent area
1767 median income; provided, that the executive office, in its discretion, may approve for some or all
1768 of the affordable units upon request by a city or town as to an individual project in a form as may
1769 be designated by the executive office: (i) a greater percentage of affordable units; (ii) more than
1770 10 per cent of the residential units to be subject to such affordable housing requirement; or (iii)
1771 eligibility for a greater percentage of area median income.

1772 (2) Notwithstanding any general or special law, rule or regulation to the contrary, a
1773 commercial conversion that is adaptive reuse under this section shall comply with the base
1774 energy code pursuant to the state building code, 780 C.M.R., and shall not be required to comply
1775 with the specialized stretch energy code established pursuant to section 6 of chapter 25A or the
1776 municipal opt-in specialized code established pursuant to section 6 of chapter 25A.

1777 (3) Notwithstanding sections 5, 8 and 9, a city or town that has adopted commercial
1778 conversion as of right zoning pursuant to paragraph (1) may establish a streamlined process for a
1779 petitioner or applicant seeking commercial conversion of a commercially zoned lot to submit to
1780 the board of appeals a single application for approval of a commercial conversion in lieu of

1781 separate applications to the applicable local boards. Such process shall provide, at a minimum,
1782 but shall not be limited to, the following:

1783 (i) The board of appeals shall notify each local board, as applicable, of the filing of an
1784 application under this paragraph by sending a copy thereof to such local boards for their
1785 recommendations and shall, within 30 days of receipt of the application, hold a public hearing in
1786 conformance with section 11;

1787 (ii) The board of appeals shall request representatives of local boards as are deemed
1788 necessary or helpful in making its decision upon an application to attend the hearing and shall,
1789 notwithstanding section 7, have the same power to issue permits or approvals as any local board
1790 or official who would otherwise act with respect to such application, including, but not limited
1791 to, the power to attach to said permit or approval conditions and requirements that are not
1792 financially infeasible;

1793 (iii) The board of appeals, in making its decision on an application, shall take into
1794 consideration the recommendations of the local boards and shall have the authority to use the
1795 testimony of consultants;

1796 (iv) The board of appeals shall render a decision, based upon a majority vote of said
1797 board, within 60 days of receiving an application; and

1798 (v) If a hearing is not convened or a decision is not rendered within the time allowed
1799 under clause (iv), unless the time has been extended by mutual agreement between the board of
1800 appeals and the applicant, the application shall be deemed to have been allowed and the permit
1801 or approval shall issue.

1802 (c) A city or town that adopts commercial conversion as of right zoning pursuant to this
1803 section may provide any of the following local contributions: (i) a tax increment exemption for
1804 adaptive reuse pursuant to section 5P of chapter 59; (ii) a preference for commercial conversion
1805 projects for assistance under a community preservation fund established pursuant to section 7 of
1806 chapter 44B; (iii) a preference for commercial conversion projects for assistance under a
1807 municipal affordable housing trust fund established pursuant to section 55C of chapter 44; (iv)
1808 adoption of a streamlined approval process pursuant to paragraph (3) of subsection (b); or (v)
1809 any other local contributions as determined by the executive office.

1810 (d) The executive office may establish additional incentives for cities and towns that
1811 adopt commercial conversion as of right zoning and a local contribution pursuant to this section.
1812 Such incentives for cities and towns may include, but shall not be limited to, a preference for
1813 financial assistance pursuant to section 27 ½ of chapter 23B, a preference for tax credits
1814 authorized pursuant to subsection (ee) of section 6 of chapter 62 and section 38OO of chapter 63
1815 and other incentives identified by the executive office in consultation with the executive office of
1816 economic development and the executive office for administration and finance.

1817 (e) The executive office may, in consultation with the executive office of economic
1818 development, promulgate regulations for the implementation and administration of this section.

1819 (f) A city or town that has adopted commercial conversion as of right zoning pursuant to
1820 paragraph (1) of subsection (b) above may repeal such adoption pursuant to section 5.

1821 Section 3D. (a) For purposes of this section, the following words shall, unless the context
1822 clearly requires otherwise, have the following meanings:

1823 “Land owned by a religious sect or denomination”, a lot or land, buildings or structures
1824 owned by or held in trust for the use of a religious sect or denomination for not less than 3 years;
1825 provided, however, that “land owned by a religious sect or denomination” shall not include any
1826 land zoned for or used as a school, including, but not limited to, an institution of higher
1827 education.

1828 “Religious sect or denomination”, an organization organized predominantly for religious
1829 purposes, whether incorporated or unincorporated, and shall be: (i) exempt from taxation under
1830 section 501(c)(3) of the Internal Revenue Code of 1986, as amended, based on its status as a
1831 religious or apostolic association or corporation; (ii) an organization recognized by the
1832 department of revenue as a religious organization exempt from taxation pursuant to section 5 of
1833 chapter 59; or (iii) any other organization that qualifies as a religious sect or denomination for
1834 purposes of section 3.

1835 (b)(1) No zoning ordinance or by-law shall prohibit, unreasonably restrict or require a
1836 special permit or other discretionary zoning approval for the use of land owned by a religious
1837 sect or denomination for multifamily housing.

1838 (2) Multifamily housing constructed pursuant to this section shall not be subject to any
1839 municipal ordinances, bylaws or regulations, or other municipal development standards or
1840 conditions of approval, that exceed applicable requirements of state law or regulation.

1841 (c)(1) Multifamily housing shall be allowed as of right on land owned by a religious sect
1842 or denomination if the structures on the land of not more than 4 acres meet the dimensional
1843 requirements pursuant to this subsection; provided, that said 4 acres shall be the total regardless
1844 of where the boundaries of the land are located and regardless of the number of municipalities in

1845 which the land is located; provided, however, that if the underlying zoning ordinance or by-law
1846 permits greater density or height, or lower setbacks, the requirements under such zoning
1847 ordinance or by-law shall govern.

1848 (2) Gross density shall be allowed at up to the greater of: (i) 30 units per acre; provided,
1849 that the housing shall include not less than 20 per cent of the units affordable to families and
1850 individuals with incomes of not more than 80 per cent of the area median income; or (ii) not less
1851 than 30 units per acre but not more than 50 units per acre if the housing includes either: (A) at
1852 least 25 per cent of the units affordable to families and individuals with incomes of not more
1853 than 80 per cent of the area median income; or (B) not less than 20 per cent of the units
1854 affordable to families and individuals with incomes of not more than 60 per cent of the area
1855 median income.

1856 (3)(A) Structures on the land owned by a religious institution may have a height of up to
1857 the greater of: (i) the height of existing structures prior to development pursuant to this section;
1858 (ii) 4 full stories; (iii) 45 feet; or (iv) any greater number of stories or building height allowed
1859 under the zoning ordinance or by-law for the zoning district in which the land is located.

1860 (B) A minimum of 15 feet of side yard setback and 15 feet of rear yard setback shall
1861 apply unless the underlying zoning ordinance or by-law requires a lower minimum setback.

1862 (d) No off-street parking spaces shall be required for multifamily housing developed on
1863 land owned by a religious sect or denomination that is located not more than 0.5 miles from a
1864 commuter rail station, ferry terminal or bus station and not more than 1 parking space per unit
1865 shall be required for multifamily housing developed on land that is more than 0.5 miles from a
1866 commuter rail station, ferry terminal or bus station.

1867 (e) All multifamily housing developed on land owned by a religious sect or denomination
1868 under this section shall comply with state water resources regulations and standards established
1869 by the department of environmental protection.

1870 (f) No local occupancy preference shall be permitted in excess of 20 per cent of the
1871 multifamily housing units developed on land owned by a religious sect or denomination pursuant
1872 to this section. Any local preference shall comply with all applicable federal and state fair
1873 housing laws and shall include current residents, employees of the municipality and local
1874 businesses, including persons hired to work in the municipality and households with children
1875 attending the municipality's schools.

1876 (g) Not more than 2 housing units or 5 per cent of the total multifamily housing units
1877 developed under this section, whichever is less, may be set aside for occupancy by employees of
1878 the religious sect or denomination owning the land.

1879 (h) The executive office of housing and livable communities may promulgate regulations
1880 or guidelines, as necessary, to implement this section.

1881 SECTION 43. Section 3C of said chapter 40A, inserted by section 42, is hereby amended
1882 by striking out subsection (c) and inserting in place thereof the following subsection:-

1883 (c) A city or town that adopts commercial conversion as of right zoning pursuant to this
1884 section may provide any of the following local contributions: (i) a tax increment exemption for
1885 adaptive reuse pursuant to section 5P of chapter 59; (ii) adoption of a streamlined approval
1886 process pursuant to paragraph (3) of subsection (b); or (iii) any other local contributions as
1887 determined by the executive office.

1888 SECTION 44. Section 5 of said chapter 40A, as appearing in the 2024 Official Edition, is
1889 hereby amended by inserting after the word “appeals”, in line 6, the following words:- , a mayor.

1890 SECTION 45. Said section 5 of said chapter 40A, as so appearing, is hereby further
1891 amended by striking out, in line 92, the words “or (c) open-space residential development” and
1892 inserting in place thereof the following words:- (c) open-space residential development; or (d)
1893 commercial conversion pursuant to section 3C.

1894 SECTION 46. Section 6 of said chapter 40A, as so appearing, is hereby amended by
1895 inserting after the word “to”, in line 13, the following words:- a structure used for commercial
1896 conversion pursuant to section 3C, to the extent allowed by section 3C or.

1897 SECTION 47. Said section 6 of said chapter 40A, as so appearing, is hereby further
1898 amended by striking out, in lines 34 to 38, inclusive, the words “shall conform to any subsequent
1899 amendment of the zoning ordinance or by-law or of any other local land use regulations unless
1900 the use or construction is commenced within a period of 3 years after the issuance of the special
1901 permit or site plan approval and” and inserting in place thereof the following words:- or a permit
1902 for commercial conversion issued pursuant to section 3C shall conform to any subsequent
1903 amendment of the zoning ordinance or by-law or of any other local land use regulations unless
1904 the use or construction is commenced within a period of 3 years after the issuance of the special
1905 permit, site plan approval or permit for commercial conversion.

1906 SECTION 48. Said chapter 40A is hereby further amended by inserting after section 7
1907 the following section:-

1908 Section 7A. (a) As used in this section, the following words shall, unless the context
1909 clearly requires otherwise, have the following meanings:

1910 “Bulk and height of structures”, the articulation and roof lines of structures; provided,
1911 however, that performance standards governing bulk and height of structures shall not be more
1912 restrictive than the dimensional requirements set forth in the ordinance or by-law, nor require
1913 specific building materials. Articulation, as used herein, shall refer to the following strategies to
1914 address building massing: wall offsets, height variation, wall setbacks, accent lines, stepbacks or
1915 such other industry standard types of articulation as may be proposed by the petitioner.

1916 “Designated authority”, the local municipal board, committee or officials designated in
1917 the zoning ordinance or by-law to conduct site plan review.

1918 “Performance standards”, written municipal zoning regulations, published industry
1919 standards and best practices, applicable to site plans and relative to traffic circulation and safety,
1920 pedestrian safety and access, off-street parking and loading, emergency vehicle access,
1921 stormwater drainage, screening, bulk and height of structures, exterior lighting and storage or
1922 other outdoor service areas.

1923 (b) Substantive provisions of site plan review, including content of submittal
1924 requirements and applicable performance standards, governing site plan review and approval by
1925 the designated authority or authorities shall be as set forth within a local ordinance or by-law
1926 adopted pursuant to section 5.

1927 (c) Performance standards shall be reasonably definite and objective. No zoning by-law
1928 or ordinance shall include performance standards governing the aesthetics of structures. The
1929 designated authority may, where such action is in the public interest and not inconsistent with the
1930 intent and purpose of this section, waive strict compliance with the performance standards for
1931 site plan review. The designated authority may adopt, and from time to time amend, written

procedural rules and regulations to implement the local site plan review ordinance or by-law, including provisions for the imposition of reasonable fees for the employment of outside consultants in the same manner as set forth in section 53G of chapter 44.

(d)(1) A zoning ordinance or by-law may establish applicability standards for projects that are subject to site plan review, which may include a category of projects that shall be subject to a minor or administrative site plan review process.

(2) The zoning ordinance or by-law may require a public hearing in accordance with section 11 for projects that meet or exceed specified thresholds under the zoning ordinance or by-law.

(3) The decision of the designated authority for a use allowed as of right, or for a use requiring a special permit but reviewed by a separate designated authority, shall require a simple majority vote of the designated authority and shall be made within the time limits prescribed by ordinance or by-law, not to exceed 90 days from the date of filing of a complete application or such extended time as may be agreed in writing by the petitioner. The submission and review process for a site plan required in connection with the issuance of a special permit, and subject to review by the same permit granting authority as the special permit application, shall be conducted with the review of the special permit application in a coordinated process and may require the same quantum of vote required for approval of a special permit.

(4) The ordinance or by-law may establish the designated authority to be the building commissioner, director of planning or other municipal official who coordinates administrative site plan review with other municipal employees, in which instance there shall be no vote requirement for site plan review.

(5) Any appeal from administrative site plan review shall be in accordance with section 17 unless an ordinance or by-law first provides for an appeal to another public body of the municipality. In no instance shall the issuance or denial of a building permit be a prerequisite to the filing of a civil action under this section.

(e) Site plan review shall impose only those conditions that are necessary to ensure substantial compliance of the proposed use of land or structures with the requirements of the zoning ordinance or by-law; provided, that no condition shall impose restrictions greater than those expressly regulated within the zoning ordinance or by-law and no conditions shall be imposed regarding matters over which jurisdiction exclusively lies in another body pursuant to any general or special law; and provided further, that any off-site conditions shall only address direct adverse impacts related to performance standards expressly governed by the zoning ordinance or by-law and which conditions are proportionate in both nature and extent to the impacts of the project on adjacent properties or adjacent roadways.

(f) A site plan application may be denied only on the grounds that: (i) the proposed site plan does not meet the specific requirements set forth in the zoning ordinance or by-law; or (ii) the petitioner failed to submit the information and fees required by the zoning ordinance or by-law necessary for an adequate and timely review of the design of the proposed land or structures.

(g)(1) The designated authority shall cause to be made a detailed record of its proceedings pursuant to subsection (d), indicating the vote of each member upon each question, or if absent or failing to vote, indicating such fact and setting forth clearly the reason for its decision and of its official actions, copies of all of which shall be filed within 14 days in the office of the city or town clerk and shall be deemed a public record. Notice of the decision shall

1976 be mailed forthwith to the petitioner and, if such site plan review required a public hearing
1977 pursuant to the zoning ordinance or by-law, to the parties in interest designated in section 11.

1978 (2) Each notice shall specify that appeals, if any, shall be made pursuant to section 17 and
1979 shall be filed within 20 days after the date of filing of such notice in the office of the city or town
1980 clerk. Failure by the designated authority to take final action within said 90 days or extended
1981 time, if applicable, shall be deemed to be an approval of the site plan. The petitioner who seeks
1982 such approval by reason of the failure of the designated authority to act within such time
1983 prescribed shall notify the city or town clerk, in writing, within 14 days from the expiration of
1984 said 90 days or extended time, if applicable, of such approval.

1985 (3) If the site plan review requires a public hearing, the petitioner shall send such notice
1986 to parties in interest designated in section 11 by mail and each notice shall specify that appeals, if
1987 any, shall be made pursuant to section 17 and shall be filed within 20 days after the date the city
1988 or town clerk received such written notice from the petitioner that the designated authority failed
1989 to act within the time prescribed. After the expiration of 20 days without notice of appeal
1990 pursuant to section 17, or, if appeal has been taken, after receipt of certified records of the court
1991 in which such appeal is adjudicated, indicating that such approval has become final, the city or
1992 town clerk shall issue a certificate stating the date of approval, the fact that the designated
1993 authority failed to take final action and that the approval resulting from such failure has become
1994 final, and such certificate shall be forwarded to the petitioner.

1995 (h) A site plan approval granted under this section shall lapse within a specified period of
1996 time, not less than 3 years from the date of the filing of such approval with the city or town clerk,
1997 if substantial use or construction has not yet begun, except as extended for good cause by the

1998 designated authority. The specified period shall not include time required to pursue or await the
1999 determination of an appeal under section 17 or to pursue or await the appeal of any other permit,
2000 license, determination or approval that are prerequisites to issuance of a building permit. The
2001 minimum period of 3 years may, by ordinance or by-law, be increased.

2002 SECTION 49. Section 14 of said chapter 40A, as appearing in the 2024 Official Edition,
2003 is hereby amended by inserting after clause (4) the following clause:-

2004 (5) To hear and decide applications for commercial conversion upon which the board is
2005 empowered to act pursuant to subsection (b) of section 3C.

2006 SECTION 50. Section 15 of said chapter 40A, as so appearing, is hereby amended by
2007 striking out, in lines 36 and 37, the words “The board of appeals shall hold a hearing on any
2008 appeal, application or petition within sixty-five” and inserting in place thereof the following
2009 words:- Except as provided under paragraph (3) of subsection (b) of section 3C, the board of
2010 appeals shall hold a hearing on any appeal, application or petition within 65.

2011 SECTION 51. Said section 15 of said chapter 40A, as so appearing, is hereby further
2012 amended by inserting, after the word “to”, in line 51, the following words:- permits for
2013 commercial conversion, as provided for in paragraph (3) of subsection (b) of section 3C, and.

2014 SECTION 52. The fourth paragraph of section 4 of chapter 40G of the General Laws, as
2015 so appearing, is hereby amended by striking out clause (8) and inserting in place thereof the
2016 following clause:-

2017 (8) the enterprise shall report adequate financial data to the MTDC and provide MTDC
2018 with sufficient control over the management of the enterprise, so as to protect the investment of

2019 the MTDC, including, in the discretion of the board, right of access to financial and other records
2020 of the enterprise.

2021 SECTION 53. Said section 4 of said chapter 40G, as so appearing, is hereby further
2022 amended by striking out, in line 68, the figure “\$1,000,000” and inserting in place thereof the
2023 following figure:- \$2,000,000.

2024 SECTION 54. Said section 4 of said chapter 40G, as so appearing, is hereby further
2025 amended by striking out, in line 69, the figure “\$2,000,000” and inserting in place thereof the
2026 following figure:- \$4,000,000.

2027 SECTION 55. Said section 4 of said chapter 40G, as so appearing, is hereby further
2028 amended by striking out, in lines 82 to 94, paragraph (2).

2029 SECTION 56. Section 6 of said chapter 40G, as so appearing, is hereby amended by
2030 striking out, in line 2, the word “ninety” and inserting in place thereof the following figure:- 120.

2031 SECTION 57. Said section 6 of said chapter 40G, as so appearing, is hereby further
2032 amended by striking out, in lines 5 to 7, inclusive, the words “and the number of persons hired as
2033 a result of the activities of the corporation who were recipients of programs provided for in
2034 chapter 115, 117A, or 118”.

2035 SECTION 58. Chapter 40J of the General Laws is hereby amended by striking out
2036 section 3 and inserting in place thereof the following section:-

2037 Section 3. (a) There is hereby created a body, politic and corporate, to be known as the
2038 Massachusetts Technology Park Corporation, hereinafter referred to as the corporation. The
2039 corporation is hereby constituted a public instrumentality of the commonwealth and the exercise

2040 by the corporation of the powers conferred in this chapter shall be deemed and held to be an
2041 essential governmental function. The corporation is hereby placed in the executive office of
2042 economic development but shall not be subject to the supervision or control of the department or
2043 of any board, bureau, department or other agency of the commonwealth except as specifically
2044 provided in this chapter.

2045 (b)(1) The corporation shall be governed and its corporate powers exercised by a board of
2046 directors, which shall consist of: the secretary of economic development or a designee; the
2047 secretary of administration and finance or a designee; the commissioner of higher education or a
2048 designee; and 15 persons to be appointed by the governor, 2 of whom shall be appointed from a
2049 list of persons nominated by the president of the senate, 2 of whom shall be appointed from a list
2050 of persons nominated by the speaker of the house of representatives, 2 of whom shall be chief
2051 executive officers of post-secondary educational institutions or distinguished members of the
2052 engineering or scientific faculties of those institutions, or members of other appropriate faculties,
2053 and of those 2, at least 1 shall represent a public post-secondary educational institution, and 6 of
2054 whom shall represent businesses concerned with any technology which may be subject to this
2055 chapter and 2 of whom shall be recommended by the Massachusetts AFL-CIO.

2056 (2) Each director appointed from the list of nominations recommended by the president
2057 of the senate and the speaker of the house of representatives shall serve a term of 2 years to be
2058 coterminous with the legislative session of the general court. Each director appointed by the
2059 governor shall serve for a term of 5 years and thereafter until the director's successor is
2060 appointed. A person appointed to fill a vacancy on the board shall be appointed in a like manner
2061 and shall serve for the unexpired term of the predecessor director.

2062 (3) A director shall be eligible for reappointment. A director may be removed by the
2063 governor for cause. Nine directors shall constitute a quorum and the affirmative vote of a
2064 majority of the directors present and eligible to vote at a meeting shall be necessary for any
2065 action to be taken by the board. The directors shall serve without compensation, but each director
2066 shall be entitled to reimbursement for actual and necessary expenses incurred in the performance
2067 of official duties.

2068 (4) The board shall meet not less than 4 times each year and shall have final authority
2069 over the activities of the corporation.

2070 (5) The secretary of economic development or a designee shall serve as chairperson. The
2071 board shall biennially elect from among its members a vice-chairperson and may designate a
2072 treasurer and a secretary, who need not be members of the board. The secretary shall keep a
2073 record of the proceedings of the corporation and shall be the custodian of all books, documents
2074 and papers filed with the corporation and its official seal. The secretary shall cause copies to be
2075 made of all minutes and other records and documents of the corporation and shall certify that
2076 such copies are true copies and all persons dealing with the corporation may rely upon such
2077 certification. The treasurer shall be the chief financial and accounting officer of the corporation
2078 and shall be in charge of its funds, books of account and accounting records.

2079 (d) The executive committee of the board shall consist of the chairperson, the vice-
2080 chairperson and not less than 3 individuals elected biennially by the board from among its
2081 members, 1 of whom shall be a board member representing a post-secondary educational
2082 institution and 1 of whom shall be a board member from a business. The executive committee
2083 shall have all the powers of the board between meetings of the board, to be exercised in

2084 accordance with by-laws established by the board. The executive committee shall meet as often
2085 as considered necessary by the committee.

2086 (e) Any action required or permitted to be taken at a meeting of the directors may be
2087 taken without a meeting if all of the directors consent in writing to such action and such written
2088 consent is filed with the records of the minutes of the meetings of the board. Such consent shall
2089 be treated for all purposes as a vote at a meeting.

2090 (f) Chapter 268A shall apply to all directors, officers and employees of the corporation
2091 except that the corporation may purchase from, sell to, borrow from, contract with or otherwise
2092 deal with any organization in which any director of the corporation is in any way interested or
2093 involved; provided, however, that such interest or involvement shall be disclosed in advance to
2094 the directors and recorded in the minutes of the proceedings of the corporation; and provided
2095 further, that no director having such an interest or involvement shall participate in any decision
2096 relating to such organization.

2097 (g) Neither the corporation nor any of its officers, directors, agents, employees,
2098 consultants or advisors shall be subject to section 3B of chapter 7, sections 9A, 45, 46 and 52 of
2099 chapter 30, chapter 31, or sections 27 to 27E, inclusive, of chapter 149; provided, however, that
2100 in purchasing products or services, the corporation shall at all times follow generally accepted
2101 good business practices.

2102 (h) All officers and employees of the corporation having access to its cash or negotiable
2103 securities shall give bond to the corporation at its expense, in such amount and with such surety
2104 as the board may prescribe. The persons required to give bond may be included in 1 or more
2105 blanket or scheduled bonds.

2106 (i) Directors and officers who are not regular, compensated employees of the corporation
2107 shall not be liable to the commonwealth, to the corporation or to any other person as a result of
2108 their activities, whether ministerial or discretionary, as such directors or officers except for
2109 willful dishonesty or intentional violations of law. The board of the corporation may purchase
2110 liability insurance for directors, officers and employees and may indemnify said persons against
2111 the claims of others.

2112 SECTION 58A. Section 5 of chapter 40V of the General Laws, as appearing in the 2024
2113 Official Edition, is hereby amended by inserting after the word “department”, in lines 19 and 20,
2114 the following words:- ; provided, that the department may authorize up to \$5,000,000 in credits
2115 to an individual project.

2116 SECTION 59. Section 56 of chapter 41 of the General Laws, as so appearing, is hereby
2117 amended by striking out the last sentence and inserting in place thereof the following sentence:-
2118 This section shall not prohibit payment to be made for: (i) school travel prior to the date of
2119 travel; (ii) the payment of software licenses, software maintenance agreements or online
2120 subscription services for school curriculum prior to the fiscal year in which services shall be
2121 rendered; or (iii) the payment of estimates issued by utilities for make-ready work to facilitate
2122 access to utility poles, conduits, ducts or rights-of-way related to broadband infrastructure
2123 projects.

2124 SECTION 60. Section 5 of chapter 44B of the General Laws, as so appearing, is hereby
2125 amended by inserting after the word “sites”, in line 49, the following words:- and may
2126 recommend a preference for projects developed under zoning adopted pursuant to section 3C of
2127 chapter 40A.

2128 SECTION 61. Said section 5 of said chapter 44B is hereby further amended by striking
2129 out the words “and may recommend a preference for projects developed under zoning adopted
2130 pursuant to section 3C of chapter 40A”, inserted by section 60.

2131 SECTION 62. Chapter 59 of the General Laws is hereby amended by inserting after
2132 section 5O the following 2 sections:-

2133 Section 5P. (a) As used in this section, the following words shall, unless the context
2134 clearly requires otherwise, have the following meanings:

2135 “Adaptive reuse”, as defined in section 3C of chapter 40A.

2136 “Executive office”, the executive office of housing and livable communities.

2137 “Zoning”, as defined in section 1A of chapter 40A.

2138 (b) A city or town that adopts commercial conversion as of right zoning pursuant to
2139 section 3C of chapter 40A may adopt a tax increment exemption for an adaptive reuse project.
2140 The exemption amount shall be not less than 10 per cent and not more than 100 per cent of the
2141 incremental value attributable to the residential portion of an adaptive reuse project allowed as of
2142 right under zoning established pursuant to said section 3C of said chapter 40A for a period of not
2143 less than 5 years and not more than 20 years. The legislative body of the city or town shall
2144 establish the percentage and term of the exemption, subject to the charter of the city or town and
2145 the approval of the executive office.

2146 (c) The executive office may promulgate regulations for the administration of this
2147 section.

2148 Section 5Q. (a) Any city or town that accepts this section may grant an exemption of up
2149 to the full amount of the taxable valuation of multifamily housing developed on land owned by a
2150 religious sect or denomination pursuant to section 3D of chapter 40A. A city or town that accepts
2151 this section shall adopt an ordinance or by-law specifying the method for negotiating and
2152 approving exemptions pursuant to this section. This section shall take effect in any city or town
2153 only upon its acceptance by such city or town.

2154 (b) The executive office of housing and livable communities may promulgate regulations
2155 for the administration of this section.

2156 SECTION 63. Paragraph (2) of subsection (l) of section 6 of chapter 62 of the General
2157 Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 543,
2158 the words “12 month period” and inserting in place thereof the following words:- 24-month
2159 period.

2160 SECTION 63A. Said subsection (l) of said section 6 of said chapter 62, as so appearing,
2161 is hereby further amended by adding the following paragraph:-

2162 (9) A motion picture for which a tax credit is issued pursuant to this subsection shall
2163 include a credit and a logo, approved by the commissioner, in consultation with the
2164 Massachusetts film office, stating that the motion picture was filmed in Massachusetts and
2165 displaying a logo designed and approved by the Massachusetts film office. The credit shall
2166 include the following title: “Proudly Made in Massachusetts”.

2167 SECTION 64. Subsection (r) of said section 6 of said chapter 62, as so appearing, is
2168 hereby amended by striking out paragraph (1) and inserting in place thereof the following
2169 paragraph:-

2170 (1) A taxpayer, to the extent authorized by the life sciences tax incentive program
2171 established in section 5 of chapter 23I, may be allowed a refundable jobs credit against the tax
2172 liability imposed under this chapter in an amount and schedule determined by the Massachusetts
2173 Life Sciences Center in consultation with the department of revenue. The credit allowed under
2174 this section shall be taken only after the taxpayer executes a written agreement pursuant to
2175 paragraph (3) of subsection (d) of said section 5 of said chapter 23I.

2176 SECTION 65. Paragraph (2) of said subsection (r) of said section 6 of said chapter 62, as
2177 so appearing, is hereby amended by striking out, in line 920, the figure “50” and inserting in
2178 place thereof the following figure:- 25.

2179 SECTION 66. Said subsection (r) of said section 6 of said chapter 62, as so appearing, is
2180 hereby further amended by adding the following 2 paragraphs:-

2181 (5) If the Massachusetts Life Sciences Center revokes the certification of a life sciences
2182 company pursuant to paragraph (2) of subsection (e) of section 5 of chapter 23I, a portion of the
2183 tax credit otherwise allowed by this section and claimed by the taxpayer prior to the date on
2184 which the Massachusetts Life Sciences Center makes the determination to revoke the life
2185 sciences company’s certification shall be added back as additional tax due and shall be reported
2186 as such on the return of the taxpayer for the taxable period in which the determination to revoke
2187 the certification is made. The amount of credits subject to recapture shall be proportionate to the
2188 life science company’s compliance, as determined by the Massachusetts Life Sciences Center as
2189 part of its revocation process and reported to the corporation and the department at the time
2190 certification is revoked.

2191 (6) Nothing in this subsection shall limit the authority of the commissioner to make an
2192 adjustment to a taxpayer's liability upon audit.

2193 SECTION 66A. Said section 6 of said chapter 62, as so appearing, is hereby further
2194 amended by striking out, in lines 893 and 903, the figure "\$30,000,000", each time it appears,
2195 and inserting in place thereof, in each instance, the following figure:- \$40,000,000.

2196 SECTION 67. Subsection (gg) of said section 6 of said chapter 62, as so appearing, is
2197 hereby amended by inserting after the word "facility", in line 1687, the following words:- in the
2198 case of an owner, and not more than 50 per cent of the owner and tenant's combined total capital
2199 investment in a climatetech facility in the case of a tenant.

2200 SECTION 68. Said subsection (gg) of said section 6 of said chapter 62, as so appearing,
2201 is hereby further amended by striking out, in line 1702, the words "has made a" and inserting in
2202 place thereof the following words:- and tenant have made a combined.

2203 SECTION 69. Subsection (hh) of said section 6 of said chapter 62, as so appearing, is
2204 hereby amended by striking out paragraph (1) and inserting in place thereof the following
2205 paragraph:-

2206 (1) A taxpayer, to the extent authorized by the climatetech tax incentive program
2207 established in section 16 of chapter 23J, may be allowed a refundable jobs credit against the tax
2208 liability imposed under this chapter in an amount and schedule determined by the Massachusetts
2209 clean energy technology center established in section 2 of said chapter 23J, in consultation with
2210 the department of revenue. The credit allowed under this section shall be taken only after the
2211 taxpayer executes a contract pursuant to paragraph (3) of subsection (d) of section 16 of chapter
2212 23J.

2213 SECTION 70. Said subsection (hh) of said section 6 of said chapter 62, as so appearing,
2214 is hereby further amended by adding the following 2 paragraphs:-

2215 (6) If the Massachusetts clean energy technology center revokes the certification of a
2216 climatetech company pursuant to paragraph (2) of subsection (c) of section 16 of chapter 23J, a
2217 portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to
2218 the date on which the Massachusetts clean energy technology makes the determination to revoke
2219 the climatetech company's certification shall be added back as additional tax due and shall be
2220 reported as such on the return of the taxpayer for the taxable period in which the determination to
2221 revoke the certification is made. The amount of credits subject to recapture shall be proportionate
2222 to the climatetech company's compliance, as determined by the Massachusetts clean energy
2223 technology center as part of its revocation process and reported to the climatetech company and
2224 the department at the time certification is revoked.

2225 (7) Nothing in this subsection shall limit the authority of the commissioner to make an
2226 adjustment to a taxpayer's liability upon audit.

2227 SECTION 70A. Said section 6 of said chapter 62, as so appearing, is hereby further
2228 amended by adding the following subsection:-

2229 (II)(1) As used in this subsection, the following words shall, unless the context clearly
2230 requires otherwise, have the following meanings:

2231 "Development costs", ordinary and necessary costs directly attributable to qualified digital game
2232 development, including, but not limited to, software engineering, programming, game design,
2233 writing, art, animation, visual effects, audio production, music composition, quality assurance,
2234 localization, user interface and user experience design, performance capture, motion capture,

2235 testing, live operations, post-launch support, downloadable content, development hardware and
2236 software, licensing costs directly related to development and professional services directly
2237 related to development. “Development costs” shall not include expenditures for marketing,
2238 advertising, promotion, distribution, general corporate overhead unrelated to qualified digital
2239 game development, financing costs, lobbying expenses, costs associated with the transfer of tax
2240 credits or amounts reimbursed by the commonwealth.

2241 “Digital game development company”, a corporation, partnership, limited liability
2242 company or other business entity engaged in qualified digital game development. “Digital game
2243 development company” shall not include any company that is more than 25 per cent owned,
2244 affiliated or controlled by any company or person that is in default on a loan made by the
2245 commonwealth or a loan guaranteed by the commonwealth.

2246 “Massachusetts development costs”, development costs attributable to property used or
2247 services performed within the commonwealth directly related to qualified digital game
2248 development.

2249 “Massachusetts payroll”, salaries, wages and other compensation constituting
2250 Massachusetts source income and paid to employees directly engaged in qualified digital game
2251 development. “Massachusetts payroll” shall not include any compensation paid to any individual
2252 employee in excess of \$1,000,000 during the taxable year.

2253 “Qualified digital game development”, the design, development, programming,
2254 engineering, production, testing, modification, localization, deployment, maintenance, support or
2255 live operation of an interactive digital game intended for commercial distribution or use on a
2256 computer, console, mobile device, cloud-based platform or other digital platform, including

2257 downloadable content, expansion content, post-launch content updates and game development
2258 tools developed for commercial use. “Qualified digital game development” shall not include: (i)
2259 software developed primarily for the internal operations of a business; (ii) internet websites or
2260 applications whose primary purpose is advertising, marketing or electronic commerce; (iii)
2261 gambling, casino gaming, sports wagering or fantasy sports platforms; or (iv) products developed
2262 primarily for political advocacy.

2263 “Qualified digital game development project”, a project undertaken by a digital game
2264 development company for qualified digital game development that has been certified by the
2265 secretary pursuant to this subsection.

2266 “Secretary”, the secretary of economic development.

2267 (2) A digital game development company shall be allowed a credit against the taxes
2268 imposed by this chapter, for a qualified digital game development project, equal to 25 per cent
2269 of: (i) Massachusetts payroll; and (ii) Massachusetts development costs other than Massachusetts
2270 payroll; provided, however, that Massachusetts development costs shall equal or exceed \$50,000
2271 during the taxable year; and provided further, that a qualified digital game development project
2272 shall not exceed 5 consecutive taxable years.

2273 (3) A digital game development company shall be allowed an additional credit against the
2274 taxes imposed by this chapter equal to 25 per cent of all Massachusetts development costs, not
2275 including the payroll expenses used to claim a credit pursuant to paragraph (2), where the
2276 qualified digital game development project takes place in a gateway municipality.

2277 (4) The tax credit shall be taken against the taxes imposed under this chapter and shall, at
2278 the election of the taxpayer, be refundable to the extent provided for in section 6L. Any amount

2279 of the tax credit that exceeds the tax due for a taxable year may be carried forward by the
2280 taxpayer to any of the 5 subsequent taxable years.

2281 (5)(i) All or any portion of tax credits issued in accordance with this subsection may be
2282 transferred, sold or assigned to other taxpayers with tax liabilities under this chapter or chapter
2283 63. Any tax credit that is transferred, sold or assigned and taken against taxes imposed by this
2284 chapter or said chapter 63 shall not be refundable. Any amount of the tax credit that exceeds the
2285 tax due for a taxable year may be carried forward by the transferee, buyer or assignee to any of
2286 the 5 subsequent taxable years from which a certificate is initially issued by the department of
2287 revenue.

2288 (ii) An owner, transferee or assignee desiring to make a transfer, sale or assignment shall
2289 submit to the commissioner a statement that describes the amount of tax credit for which the
2290 transfer, sale or assignment of tax credit is eligible. The owner, transferee or assignee shall
2291 provide to the commissioner such information as the commissioner may require for the proper
2292 allocation of the credit. The commissioner shall provide to the taxpayer a certificate of eligibility
2293 to transfer, sell or assign the tax credits. The commissioner shall not issue a certificate to a
2294 taxpayer that has an outstanding tax obligation with the commonwealth in connection with any
2295 qualified digital game development project for any prior taxable year. A tax credit shall not be
2296 transferred, sold or assigned without a certificate.

2297 (6) Notwithstanding any other provision of this subsection, aggregate salary and
2298 compensation amounts including all per diems, housing and other allowances, paid to, or for the
2299 services of, an individual shall not qualify for the credit under this section or for the credit under
2300 section 38XX of chapter 63 to the extent that such amounts exceed \$2,000,000.

2301 (7) The secretary, in consultation with the commissioner, shall establish procedures for
2302 the certification of digital game development projects, digital game development companies and
2303 Massachusetts development costs.

2304 (8) The commissioner, in consultation with the secretary, shall promulgate such rules and
2305 regulations as necessary for the administration of this subsection.

2306 SECTION 71. Section 6J of said chapter 62, as so appearing, is hereby amended by
2307 inserting after the word “criteria”, in line 46, the following words:- , and there shall be a
2308 preference for projects that are adaptive reuse allowed as-of-right in commercially zoned districts
2309 pursuant to section 3C of chapter 40A.

2310 SECTION 72. Said section 6J of said chapter 62 is hereby further amended by striking
2311 out the words “, and there shall be a preference for projects that are adaptive reuse allowed as-of-
2312 right in commercially zoned districts pursuant to section 3C of chapter 40A”, inserted by section
2313 71.

2314 SECTION 73. Subsection (b) of section 21 of chapter 62C of the General Laws, as
2315 appearing in the 2024 Official Edition, is hereby amended by adding the following 3
2316 paragraphs:-

2317 (32) the disclosure to the Massachusetts Life Sciences Center established in section 3 of
2318 chapter 23I of return and wage reporting information of a life sciences company certified
2319 pursuant to subsection (b) of section 5 of said chapter 23I, that is: (i) received by the
2320 commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of
2321 the life sciences tax incentive program authorized by subsection (d) of said section 5 of said
2322 chapter 23I.

2323 (33) the disclosure to the Massachusetts clean energy technology center established in
2324 section 2 of chapter 23J of return and wage reporting information of a climatetech company
2325 certified pursuant to subsection (b) of section 16 of said chapter 23J, that is: (i) received by the
2326 commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of
2327 the climatetech tax incentive program authorized by paragraph (1) of subsection (d) of said
2328 section 16 of said chapter 23J.

2329 (34) the disclosure to the Massachusetts clean energy technology center established in
2330 section 2 of chapter 23J of return and wage reporting information of an offshore wind company
2331 certified pursuant to subsection (b) of section 8A of said chapter 23J, that is: (i) received by the
2332 commissioner pursuant to this chapter or chapter 62E; and (ii) necessary for the administration of
2333 the offshore wind tax incentive program authorized by subsection (d) of said section 8A of said
2334 chapter 23J.

2335 SECTION 73A. Section 31A of chapter 63 of the General Laws, as so appearing, is
2336 hereby amended by striking out, in line 109, the word “three” and inserting in place thereof the
2337 following figure:- 6.

2338 SECTION 74. Section 38R of chapter 63 of the General Laws, as so appearing, is hereby
2339 amended by inserting after the word “criteria”, in line 45, the following words:- , and there shall
2340 be a preference for projects that are adaptive reuse allowed as-of-right in commercially zoned
2341 districts pursuant to section 3C of chapter 40A.

2342 SECTION 75. Said section 38R of said chapter 63 is hereby further amended by striking
2343 out the words “, and there shall be a preference for projects that are adaptive reuse allowed as-of-

2344 right in commercially zoned districts pursuant to section 3C of chapter 40A”, inserted by section
2345 74.

2346 SECTION 76. Section 38U of said chapter 63, as appearing in the 2024 Official Edition,
2347 is hereby amended by striking out, in lines 51 and 52, the words “neither credit allowed by
2348 section 31A nor section 31H is taken” and inserting in place thereof the following words:- the
2349 credit allowed by section 31H is not taken.

2350 SECTION 77. Section 38X of said chapter 63, as so appearing, is hereby amended by
2351 striking out, in line 49, the words “12 month period” and inserting in place thereof the words:-
2352 24-month period.

2353 SECTION 77A. Said section 38X of said chapter 63, as so appearing, is hereby further
2354 amended by adding the following subsection:-

2355 (h) A motion picture for which a tax credit is issued pursuant to this section shall include
2356 a credit and a logo, approved by the commissioner, in consultation with the Massachusetts film
2357 office, stating that the motion picture was filmed in Massachusetts and displaying a logo
2358 designed and approved by the Massachusetts film office. The credit shall include the following
2359 title: “Proudly Made in Massachusetts”.

2360 SECTION 77B. Section 38BB of said chapter 63, as so appearing, is hereby amended by
2361 striking out, in lines 42 and 53, the figure “\$30,000,000” and inserting in place thereof, in each
2362 instance, the following figure:- \$40,000,000.

2363 SECTION 78. Section 38CC of said chapter 63, as so appearing, is hereby amended by
2364 striking out subsection (a) and inserting in place thereof the following subsection:-

2365 (a) A taxpayer, to the extent authorized by the life sciences tax incentive program
2366 established in section 5 of chapter 23I, may be allowed a refundable jobs credit against the tax
2367 liability imposed under this chapter in an amount and schedule determined by the Massachusetts
2368 Life Sciences Center in consultation with the department. The credit allowed under this section
2369 shall be taken only after the taxpayer executes a contract pursuant to paragraph (3) of subsection
2370 (d) of section 5 of chapter 23I.

2371 SECTION 79. Subsection (b) of said section 38CC of said chapter 63, as so appearing, is
2372 hereby amended by striking out, in line 7, the figure “50” and inserting in place thereof the
2373 following figure:- 25.

2374 SECTION 80. Subsection (c) of said section 38CC of said chapter 63, as so appearing, is
2375 hereby amended by adding the following sentence:- If the taxpayer is subject to a minimum
2376 excise under this chapter, the amount of the credit allowed by this section shall not reduce the
2377 excise to an amount less than the minimum excise.

2378 SECTION 81. Subsection (d) of said section 38CC of said chapter 63, as so appearing, is
2379 hereby amended by striking out, in line 20, the figure “30,000,000” and inserting in place thereof
2380 the following figure:- 40,000,000.

2381 SECTION 82. Said section 38CC of said chapter 63, as so appearing, is hereby further
2382 amended by adding the following 2 subsections:-

2383 (e) If the Massachusetts Life Sciences Center revokes the certification of a life sciences
2384 company pursuant to paragraph (2) of subsection (e) of section 5 of chapter 23I, a portion of the
2385 tax credit otherwise allowed by this section and claimed by the company prior to the date on
2386 which the Massachusetts Life Sciences Center makes the determination to revoke its certification

2387 shall be added back as additional tax due and shall be reported as such on the return of the
2388 taxpayer for the taxable period in which the determination to revoke the certification is made.
2389 The amount of credits subject to recapture shall be proportionate to the company's compliance,
2390 as determined by the Massachusetts Life Sciences Center as part of its revocation process and
2391 reported to the corporation and the department at the time certification is revoked.

2392 (f) Nothing in this section shall limit the authority of the commissioner of revenue to
2393 make an adjustment to a corporation's liability upon audit.

2394 SECTION 83. Section 38RR of said chapter 63, as so appearing, is hereby amended by
2395 inserting after the word "facility", in line 29, the following words:- in the case of an owner, and
2396 not more than 50 per cent of the owner and tenant's combined total capital investment in a
2397 climatetech facility in the case of a tenant.

2398 SECTION 84. Said section 38RR of said chapter 63, as so appearing, is hereby further
2399 amended by striking out, in lines 44 and 45, the words "owner's total capital investment in the
2400 facility equals" and inserting in place thereof the following words:- owner and tenant have made
2401 a combined total capital investment in the facility that is.

2402 SECTION 85. Section 38TT of said chapter 63, as so appearing, is hereby amended by
2403 striking out subsection (a) and inserting in place thereof the following subsection:-

2404 (a) A taxpayer, to the extent authorized by the climatetech tax incentive program
2405 established in subsection (d) of section 16 of chapter 23J, may be allowed a refundable jobs
2406 credit against the tax liability imposed under this chapter in an amount and schedule determined
2407 by the Massachusetts clean energy technology center established in section 2 of said chapter 23J,
2408 in consultation with the department of revenue. The credit allowed under this section shall be

2409 taken only after the taxpayer executes a written agreement pursuant to paragraph (3) of
2410 subsection (d) of said section 16 of said chapter 23J.

2411 SECTION 86. Said section 38TT of said chapter 63, as so appearing, is hereby further
2412 amended by adding the following 2 subsections:-

2413 (e) If the Massachusetts clean energy technology center revokes the certification of a
2414 climatetech company pursuant to paragraph (2) of subsection (c) of section 16 of chapter 23J, a
2415 portion of the tax credit otherwise allowed by this section and claimed by the taxpayer prior to
2416 the date on which the Massachusetts clean energy technology makes the determination to revoke
2417 the climatetech company's certification shall be added back as additional tax due and shall be
2418 reported as such on the return of the taxpayer for the taxable period in which the determination to
2419 revoke the certification is made. The amount of credits subject to recapture shall be proportionate
2420 to the climatetech company's compliance, as determined by the Massachusetts clean energy
2421 technology center as part of its revocation process and reported to the climatetech company and
2422 the department at the time certification is revoked.

2423 (f) Nothing in this section shall limit the authority of the commissioner of revenue to
2424 make an adjustment to a corporation's liability upon audit.

2425 SECTION 86A. Said chapter 63 is hereby further amended by inserting after section
2426 38WW the following section:-

2427 Section 38XX. (a) As used in this section, the following words shall, unless the context
2428 clearly requires otherwise, have the following meanings:

2429 "Commissioner", the commissioner of revenue.

2430 “Development costs”, ordinary and necessary costs directly attributable to qualified
2431 digital game development, including, but not limited to, software engineering, programming,
2432 game design, writing, art, animation, visual effects, audio production, music composition, quality
2433 assurance, localization, user interface and user experience design, performance capture, motion
2434 capture, testing, live operations, post-launch support, downloadable content, development
2435 hardware and software, licensing costs directly related to development and professional services
2436 directly related to development. “Development costs” shall not include expenditures for
2437 marketing, advertising, promotion, distribution, general corporate overhead unrelated to qualified
2438 digital game development, financing costs, lobbying expenses, costs associated with the transfer
2439 of tax credits or amounts reimbursed by the commonwealth.

2440 “Digital game development company”, a corporation, partnership, limited liability
2441 company or other business entity engaged in qualified digital game development. “Digital game
2442 development company” shall not include any company that is more than 25 per cent owned,
2443 affiliated or controlled by any company or person that is in default on a loan made by the
2444 commonwealth or a loan guaranteed by the commonwealth.

2445 “Massachusetts development costs”, development costs attributable to property used or
2446 services performed within the commonwealth directly related to qualified digital game
2447 development.

2448 “Massachusetts payroll”, salaries, wages and other compensation constituting
2449 Massachusetts source income and paid to employees directly engaged in qualified digital game
2450 development. “Massachusetts payroll” shall not include any compensation paid to any individual
2451 employee in excess of \$1,000,000 during the taxable year.

2452 “Qualified digital game development”, the design, development, programming,
2453 engineering, production, testing, modification, localization, deployment, maintenance, support or
2454 live operation of an interactive digital game intended for commercial distribution or use on a
2455 computer, console, mobile device, cloud-based platform or other digital platform, including
2456 downloadable content, expansion content, post-launch content updates and game development
2457 tools developed for commercial use. “Qualified digital game development” shall not include: (i)
2458 software developed primarily for the internal operations of a business; (ii) internet websites or
2459 applications whose primary purpose is advertising, marketing or electronic commerce; (iii)
2460 gambling, casino gaming, sports wagering or fantasy sports platforms; or (iv) products developed
2461 primarily for political advocacy.

2462 “Qualified digital game development project”, a project undertaken by a digital game
2463 development company for qualified digital game development that has been certified by the
2464 secretary pursuant to this section.

2465 “Secretary”, the secretary of economic development.

2466 (b) A digital game development company shall be allowed a credit against the taxes
2467 imposed by this chapter, for a qualified digital game development project, equal to 25 per cent
2468 of: (i) Massachusetts payroll; and (ii) Massachusetts development costs other than Massachusetts
2469 payroll; provided, however, that Massachusetts development costs shall equal or exceed \$50,000
2470 during each taxable year; and provided further, that a qualified digital game development project
2471 shall not exceed 5 consecutive taxable years.

2472 (c) A digital game development company shall be allowed an additional credit against the
2473 taxes imposed by this chapter equal to 25 per cent of all Massachusetts development costs, not

2474 including the payroll expenses used to claim a credit pursuant to subsection (b), where the
2475 qualified digital game development project takes place in a gateway municipality.

2476 (d) The tax credit shall be taken against the taxes imposed under this chapter and shall, at
2477 the election of the taxpayer, be refundable to the extent provided for in section 32E. Any amount
2478 of the tax credit that exceeds the tax due for a taxable year may be carried forward by the
2479 taxpayer to any of the 5 subsequent taxable years.

2480 (e)(1) All or any portion of tax credits issued in accordance with the provisions of this
2481 section may be transferred, sold or assigned to other taxpayers with tax liabilities under this
2482 chapter or chapter 62. Any tax credit that is transferred, sold or assigned and taken against taxes
2483 imposed by this chapter or said chapter 62 shall not be refundable. Any amount of the tax credit
2484 that exceeds the tax due for a taxable year may be carried forward by the transferee, buyer or
2485 assignee to any of the 5 subsequent taxable years from which a certificate is initially issued by
2486 the department of revenue.

2487 (2) An owner, transferee or assignee desiring to make a transfer, sale or assignment shall
2488 submit to the commissioner a statement that describes the amount of tax credit for which the
2489 transfer, sale or assignment of tax credit is eligible. The owner, transferee or assignee shall
2490 provide to the commissioner such information as the commissioner may require for the proper
2491 allocation of the credit. The commissioner shall provide to the taxpayer a certificate of eligibility
2492 to transfer, sell or assign the tax credits. The commissioner shall not issue a certificate to a
2493 taxpayer that has an outstanding tax obligation with the commonwealth in connection with any
2494 qualified digital game development project for any prior taxable year. A tax credit shall not be
2495 transferred, sold or assigned without a certificate.

2496 (f) Notwithstanding any other provision of this section, aggregate salary and
2497 compensation amounts including all per diems, housing and other allowances, paid to, or for the
2498 services of, an individual shall not qualify for the credit under this section or for the credit under
2499 paragraph (2) of subsection (II) of section 6 of chapter 62 to the extent that such amounts exceed
2500 \$2,000,000.

2501 (g) The secretary, in consultation with the commissioner, shall establish procedures for
2502 the certification of qualified digital game development projects, digital game development
2503 companies and Massachusetts development costs.

2504 (h) The commissioner, in consultation with the secretary, shall promulgate regulations as
2505 necessary for the administration of this section.

2506 SECTION 86B. Section 1 of chapter 64H of the General Laws, as appearing in the 2024
2507 Official Edition, is hereby amended by inserting after the definition of “Commissioner” the
2508 following 2 definitions:-

2509 “Development costs”, as defined in subsection (II) of section 6 of chapter 62.

2510 “Digital game development company”, as defined in subsection (II) of section 6 of
2511 chapter 62.

2512 SECTION 86C. Said section 1 of said chapter 64H, as so appearing, is hereby further
2513 amended by inserting after the definition of “Purchaser” the following 2 definitions:-

2514 “Qualified digital game development”, as defined in subsection (II) of section 6 of
2515 chapter 62.

2516 “Qualified digital game development project”, as defined in subsection (ll) of section 6 of
2517 chapter 62.

2518 SECTION 87. Section 6 of chapter 64H of the General Laws is hereby amended by
2519 striking out, in line 526, as so appearing, the figure “5” and inserting in place thereof the
2520 following figure:- 10.

2521 SECTION 88. Said section 6 of said chapter 64H is hereby further amended by striking
2522 out, in lines 527 and 528, as so appearing, the figure “1,000,000” and inserting in place thereof,
2523 in each instance, the following figure:- 2,000,000.

2524 SECTION 89. Subsection (ww) of said section 6 of said chapter 64H, as so appearing, is
2525 hereby amended by striking out the words “12 month period” and inserting in place thereof, in
2526 each instance, the following words:- 24-month period.

2527 SECTION 89A. Said section 6 of said chapter 64H, as amended by section 22 of chapter
2528 101 of the acts of 2026, is hereby further amended by adding the following subsection:-

2529 (bbb)(1) Sales of tangible personal property to a qualifying digital game development
2530 company for development costs related to a qualified digital game development project.

2531 (2) For the purposes of this subsection, a qualifying digital game development company
2532 shall incur in the aggregate not less than \$50,000 in Massachusetts development costs with
2533 respect to a qualified digital game development project over a period not to exceed 5 consecutive
2534 taxable years and shall obtain a certification of the secretary of economic development and the
2535 approval of the commissioner.

2536 (3) Any digital game development company that intends to undertake a qualified digital
2537 game development project in the commonwealth and qualify for the exemption provided by this
2538 subsection shall provide an estimate of the total Massachusetts development costs expected to be
2539 incurred in connection with such project and shall designate a member or representative of the
2540 digital game development company as a primary liaison with the commissioner for the purpose
2541 of facilitating the proper reporting of expenditures and other information as required by the
2542 commissioner. The estimate of Massachusetts development costs shall be filed prior to the
2543 commencement of the qualified digital game development project in the commonwealth. Any
2544 qualifying digital game development company that has been certified and approved that fails to
2545 incur \$50,000 in Massachusetts development costs with respect to a qualified digital game
2546 development project over a period not to exceed 5 consecutive taxable years shall be liable for
2547 the sales taxes that would have been paid had the certification and approval not been granted.
2548 The sales taxes shall be considered due as of the date that the taxable expenditures were made.

2549 (4) The commissioner shall promulgate rules and regulations for the implementation of
2550 this subsection.

2551 SECTION 90. Section 2 of chapter 70B of the General Laws, as so appearing, is hereby
2552 amended by striking out, in lines 46 and 47, the words “and which meet the purposes of
2553 subsection (c) of section 9 of chapter 23J”.

2554 SECTION 90 1/4. Section 3A of said chapter 70B, as so appearing, is hereby amended by
2555 striking out, in line 7, the figure “17” and inserting in place thereof the following figure:- 19.

2556 SECTION 90 1/2. Said section 3A of said chapter 70B is hereby further amended by
2557 inserting after the word “Inc.”, in line 21, the following words:- , Massachusetts Association of
2558 Vocational Administrators, Inc., Alliance for Vocational Technical Education.

2559 SECTION 90A. Section 30A of chapter 85 of the General Laws, as so appearing, is
2560 hereby amended by adding the following paragraph:-

2561 For purposes of this paragraph, a “superload” shall be any vehicle or combination of
2562 vehicles which: (i) exceeds 14 feet in width; (ii) is 14 feet in height or greater; (iii) is greater than
2563 135 feet in length; (iv) is 199,000 pounds or greater in gross vehicle weight; or (v) is a
2564 combination of the above. Notwithstanding any general or special law to the contrary, the weight
2565 threshold for determination of a superload shall be those vehicles at or in excess of 199,000
2566 pounds gross vehicle weight. The department shall implement an application and fee schedule
2567 for expedited superload permits authorized under this section. A superload permit may include
2568 conditions and terms as determined by the administrator, pursuant to section 37 of chapter 6C;
2569 provided, that allowances shall be made for escort flexibility, where practicable, and engineering
2570 studies conducted not more than 12 months prior.

2571 SECTION 91. Section 1 of the chapter 90 of the General Laws, as so appearing, is hereby
2572 amended by inserting after the definition of “Class 2 electric bicycle” the following definition:-

2573 “Class 3 electric bicycle”, an electric bicycle or tricycle equipped with a motor that
2574 provides assistance only when the rider is pedaling and that ceases to provide assistance when
2575 the bicycle reaches or exceeds the speed of 28 miles per hour.

2576 SECTION 92. Said section 1 of said chapter 90, as so appearing, is hereby further
2577 amended by striking out, in line 104, the words “or a class 2 electric bicycle” and inserting in

2578 place thereof the following words:- , a class 2 electric bicycle or a class 3 electric bicycle;
2579 provided, that “electric bicycle” shall not include a motorized bicycle.

2580 SECTION 93. Said section 1 of said chapter 90, as so appearing, is hereby further
2581 amended by inserting after the definition of “Massachusetts license” the following definition:-

2582 “Micromobility device”, a small, lightweight transportation device intended for personal
2583 use as an alternative to motor vehicles for travel in public access areas including ways and
2584 bikeways, and as may be further defined by regulations promulgated by the registrar; provided,
2585 that a “micromobility device” shall not include a motor vehicle, motorcycle, motorized bicycle
2586 or moped, low speed vehicle, limited use motorcycle or low speed motorcycle.

2587 SECTION 94. Said section 1 of said chapter 90, as so appearing, is hereby further
2588 amended by inserting after the definition of “Mobile telephone” the following definition:-

2589 “Mobility aid device”, a device used by a pedestrian with a mobility disability to assist
2590 with indoor and outdoor locomotion, including an electric personal assistive mobility device
2591 used by a vulnerable user, a group wheelchair, a mobility cart and other such devices.

2592 SECTION 95. Said section 1 of said chapter 90, as so appearing, is hereby further
2593 amended by striking out the definition of “Motorized bicycle” and inserting in place thereof the
2594 following definition:-

2595 “Motorized bicycle” or “moped”, a pedal bicycle which has a helper motor, or a non-
2596 pedal bicycle which has a motor, with either a cylinder capacity not exceeding 50 cubic
2597 centimeters or the hybrid or electric powered equivalent, an automatic transmission, and which is

2598 capable of a maximum speed of not more than 30 miles per hour; provided, that “motorized
2599 bicycle” shall not include an electric bicycle.

2600 SECTION 96. Said section 1 of said chapter 90, as so appearing, is hereby further
2601 amended by striking out the definition of “Motorized scooter”.

2602 SECTION 97. Said section 1 of said chapter 90, as so appearing, is hereby further
2603 amended by inserting after the definition of “Motor vehicles” the following definition:-

2604 “Nationally recognized testing laboratory”, as defined in 29 C.F.R 1910.7.

2605 SECTION 98. Said section 1 of said chapter 90, as so appearing, is hereby further
2606 amended by inserting after the definition of “Police officer” the following definition:-

2607 “Powered micromobility device”, a micromobility device that has an onboard motor
2608 capable of delivering tractive power to the device either as power-assist to human powered
2609 propulsion or as sole propulsion or throttle. “Powered micromobility device” shall include
2610 electric scooters, skateboards, hoverboards and unicycles with onboard motors. “Powered
2611 micromobility device” shall not include mobility aid devices.

2612 SECTION 99. Said section 1 of said chapter 90, as so appearing, is hereby further
2613 amended by inserting after the definition of “School pupil” the following definition:-

2614 “Scooter”, a powered or unpowered device without pedals where the rider can sit or stand
2615 on a footboard for typical operation.

2616 SECTION 100. Said section 1 of said chapter 90, as so appearing, is hereby further
2617 amended by inserting after the definition of “Semi-trailer unit” the following definition:-

2618 “Solely human powered micromobility device” or “unpowered micromobility device”, a
2619 micromobility device propelled exclusively by human muscular effort that has no onboard motor
2620 capable of delivering tractive power to the device; provided that “solely human powered
2621 micromobility device” shall include, but shall not be limited to, non-electric bicycles, unpowered
2622 scooters, skateboards, longboards, unicycles, roller skates, inline skates and other such
2623 unpowered micromobility devices. “Solely human powered micromobility device” or
2624 “unpowered micromobility device” shall not include mobility aid devices.

2625 SECTION 101. The first paragraph of section 1B of said chapter 90, as so appearing, is
2626 hereby amended by striking out the first sentence and inserting in place thereof the following 2
2627 sentences:- A motorized bicycle shall not be operated upon any way within the commonwealth
2628 without obtaining an annual registration and sticker or plate bearing a distinctive number, by an
2629 application as prescribed by the registrar. A motorized bicycle shall not be operated upon any
2630 way within the commonwealth by any person under 16 years of age, nor at a speed in excess of
2631 25 miles per hour.

2632 SECTION 102. Said first paragraph of said section 1B of said chapter 90, as so
2633 appearing, is hereby further amended by striking out the last sentence and inserting in place
2634 thereof the following sentence:- Motorized bicycles shall be excluded from operating on bike
2635 lanes and off-street recreational bicycle paths.

2636 SECTION 103. Said section 1B of said chapter 90, as so appearing, is hereby further
2637 amended by adding the following paragraph:-

2638 No motorized bicycle shall be registered under this section unless the application is
2639 accompanied by a certificate as defined in section 34A or unless the registrar is otherwise
2640 satisfied that the applicant and motorized bicycle have compulsory liability insurance.

2641 SECTION 104. Section 1C of said chapter 90, as so appearing, is hereby amended by
2642 striking out, in line 1, the words “and motorized scooters”.

2643 SECTION 105. Section 1E of said chapter 90 is hereby repealed.

2644 SECTION 106. Said chapter 90 is hereby further amended by inserting after section 2 the
2645 following section:-

2646 Section 2½. (a) The registrar of motor vehicles may issue number or registration plates
2647 for motor vehicles or micromobility devices not otherwise defined in section 1; provided, that a
2648 motor vehicle or micromobility device shall not be eligible to be registered pursuant to chapter
2649 90B.

2650 (b) The registrar, in consultation with the division of insurance, may promulgate
2651 regulations, including, but not limited to: (i) definitions for each type of motor vehicle or
2652 micromobility devices not otherwise defined in section 1; (ii) requirements for registration and
2653 operation; (iii) any restrictions for registration and operation; (iv) equipment; (v) inspections; and
2654 (vi) insurance for the motor vehicles and micromobility devices.

2655 SECTION 107. Section 8B of said chapter 90, as appearing in the 2024 Official Edition,
2656 is hereby amended by striking out, in line 20, the words “or motorized scooter”.

2657 SECTION 107A. Said chapter 90 is hereby further amended by inserting after section 8N
2658 the following section:-

2659 Section 8O. (a) For purposes of this section, the following words shall, unless the context
2660 clearly requires otherwise, have the following meanings:

2661 “AAMVA”, the American Association of Motor Vehicle Administrators.

2662 “Credential”, a license issued pursuant to section 8, a learner’s permit issued pursuant to
2663 section 8B or an identification card issued pursuant to section 8E.

2664 “Credential holder”, the individual that has been issued a physical or electronic
2665 credential.

2666 “Data element”, a distinct component of a customer’s information that is found on a
2667 registrar’s customer record.

2668 “Electronic credential”, an electronic extension of a physical credential that conveys
2669 identity and driving privilege information for purposes of displaying the credential on a mobile
2670 telephone or other electronic device and is in compliance with AAMVA’s Mobile Driver License
2671 Implementation Guidelines and the ISO/IEC 18013-5 standard.

2672 “Electronic credential system” or “system”, a digital process that includes a method for
2673 provisioning electronic credentials, requesting and transmitting electronic credential data
2674 elements and performing tasks to maintain the system.

2675 “ISO”, the International Organization for Standardization, which creates uniform
2676 processes and procedures.

2677 “Physical credential”, a credential issued by the registrar in its physical form.

2678 “Provision”, the initial loading of an electronic credential onto a device.

2679 “Relying party”, the entity to which the credential holder is presenting the electronic
2680 credential.

2681 “Verification Process”, a method of authenticating the electronic credential through the
2682 use of secure encrypted communication.

2683 (b)(1) The registrar shall establish an electronic credential system subject to the
2684 requirements of this section.

2685 (2) The system shall require the registrar to issue an electronic credential to any
2686 individual who is otherwise eligible to hold a physical credential. The electronic credential shall
2687 be issued in addition to, and not instead of, a physical credential. The data elements used to build
2688 an electronic credential shall match the data elements used by the registrar for that individual’s
2689 physical credential.

2690 (3) An electronic credential shall be valid for a specific period of time, to be established
2691 by the registrar.

2692 (4) The registrar may contract with 1 or more entities to develop and maintain the
2693 electronic credential system.

2694 (5) The registrar may enter into an agreement or contract with another department of the
2695 commonwealth, another state, the United States or a third party to facilitate the issuance, use or
2696 verification of an electronic credential issued under the system.

2697 (6) An electronic credential issued by the registrar shall be in accordance with the most
2698 recent AAMVA standards.

2699 (7) The registrar may assess a fee for the application and provision of an electronic
2700 credential.

2701 (c) The registrar shall ensure that the: (i) electronic credential data and the verification
2702 process complies with all data security and privacy protection laws of the commonwealth and the
2703 United States; and (ii) verification process requires the relying party to: (A) authenticate
2704 electronic credentials in accordance with applicable AAMVA standards prior to acceptance of
2705 the electronic credential; and (B) request only electronic credential data elements that are
2706 necessary to complete the transaction for which that data is being requested.

2707 (d)(1) Relying parties shall only retain electronic credential data elements for which the
2708 relying party explicitly obtained consent from the electronic credential holder. Relying parties
2709 shall inform the electronic credential holder of the use and retention period of the electronic data
2710 elements.

2711 (2) The electronic credential system shall be designed to maximize the privacy of the
2712 credential holder in accordance with state and federal law and shall not track or compile
2713 information without the credential holder's consent. The registrar shall only compile or disclose
2714 information regarding use of the credential as required by state or federal law.

2715 (e)(1) The electronic credential holder shall be required to have their physical credential
2716 on their person while operating a motor vehicle.

2717 (2) The electronic credential system shall be designed so that there is no requirement for
2718 the electronic credential holder to display or relinquish possession of their mobile or electronic
2719 device to relying parties for the acceptance of an electronic credential.

2720 (3) Upon request by law enforcement, an electronic credential holder shall provide their
2721 physical credential.

2722 (4) Any law or regulation that requires an individual to surrender their physical credential
2723 to law enforcement shall not apply to the device on which an electronic credential has been
2724 provisioned.

2725 (f)(1) The display of an electronic credential shall not serve as consent or authorization
2726 for a law enforcement officer, or any person, to search, view or access any other data or
2727 application on the mobile or electronic device. If a person presents a mobile or electronic device
2728 to a law enforcement officer for purposes of displaying an electronic credential, the officer shall
2729 promptly return the device to the person once the officer has had an opportunity to verify the
2730 identity of the person.

2731 (2) Except for willful and wanton misconduct, any law enforcement office, court or
2732 officer of the court presented with a mobile or electronic device for purposes of displaying an
2733 electronic credential shall be immune from any liability resulting from damage to the mobile or
2734 electronic device.

2735 (g) The registrar shall promulgate rules and regulations to implement this section.

2736 SECTION 108. Said chapter 90 is hereby further amended by adding the following
2737 section:-

2738 Section 64. (a) For purposes of this section, the following words shall, unless the context
2739 clearly requires otherwise, have the following meanings:

2740 “Shared use path”, a path intended for transportation or recreational use that is designed
2741 for people of all ages and abilities on foot or using motorized or non-motorized micromobility
2742 devices and is physically separated from motorized vehicle traffic within a highway right-of-way
2743 or an independent right-of-way with few crossflows with motor vehicles.

2744 “Speed tier 0”, all unpowered micromobility devices and powered micromobility devices
2745 with a maximum manufacturer assisted or designed speed, whichever is higher, of 20 miles per
2746 hour, including, but not limited to, unpowered micromobility devices, class 1 and class 2 electric
2747 bicycles and mobility aid devices.

2748 “Speed tier 1”, powered micromobility devices with a maximum manufacturer assisted or
2749 designed speed, whichever is higher, between 21 miles per hour and 30 miles per hour,
2750 including, but not limited to, class 3 electric bicycles.

2751 “Speed tier 2”, powered micromobility devices with a maximum manufacturer assisted or
2752 designed speed, whichever is higher, between 31 miles per hour and 40 miles per hour,
2753 including, but not limited to, low speed vehicles, limited use motorcycles or low speed
2754 motorcycles.

2755 “Speed tier 3”, powered micromobility devices with a maximum manufacturer assisted or
2756 designed speed, whichever is higher, greater than 40 miles per hour.

2757 (b) Except as otherwise provided by state or federal law or regulations of the registrar,
2758 powered micromobility devices sold, leased, rented or operated in the commonwealth shall have
2759 a minimum battery rating of UL 2271 or equivalent standard.

2760 (c) Except as otherwise provided by state or federal law or regulations of the registrar,
2761 powered micromobility devices sold, leased, rented or operated in the commonwealth, except
2762 electric bicycles, shall have a minimum electrical system level rating of UL 2272 or equivalent
2763 standard. Electric bicycles sold, leased, rented or operated in the commonwealth shall have a
2764 minimum electrical system level rating of UL 2849 or equivalent standard.

2765 (d) Except as otherwise provided by state or federal law or regulations of the registrar,
2766 motorized bicycles or mopeds powered by a lithium-ion battery sold, leased, rented or operated
2767 in the commonwealth shall meet or exceed an electrical system safety standard of UL 2850, as
2768 certified by a nationally recognized testing laboratory.

2769 (e)(1)(A) Except as otherwise required by state or federal law or regulations of the
2770 registrar, speed tier 0 and speed tier 1 micromobility devices sold, leased, rented or operated in
2771 the commonwealth shall be equipped with lights, brakes and an audible warning that satisfy the
2772 requirements of section 11B of chapter 85 and federal requirements for bicycle reflectors and
2773 brakes established in 16 C.F.R. 1512.

2774 (B) Except as otherwise required by state or federal law or regulations of the registrar,
2775 speed tier 2 and speed tier 3 micromobility devices sold, leased, rented or operated in the
2776 commonwealth shall be equipped with lights, brakes and a horn that satisfy the requirements for
2777 motor vehicles established in 49 C.F.R. 571.

2778 (2)(A) Except as otherwise provided by state or federal law or regulations of the registrar,
2779 any person 16 years of age or younger operating a speed tier 0 micromobility device, except for a
2780 mobility aid device, or being carried as a passenger on such micromobility device on a public
2781 way, bicycle path or on any other public right-of-way shall wear a helmet. Said helmet shall fit

2782 the person's head, shall be secured to the person's head by straps while the micromobility device
2783 is being operated and shall meet the standards for helmets established by the United States
2784 Consumer Product Safety Commission pursuant to 16 C.F.R. 1203. This subparagraph shall not
2785 apply to a passenger if the passenger is in an enclosed trailer or other device which adequately
2786 holds the passenger in place and protects the passenger's head from impact in a crash.

2787 (B) Except as otherwise provided by state or federal law or regulations of the registrar, a
2788 person operating a speed tier 1, 2 or 3 micromobility device or riding as a passenger on a
2789 micromobility device shall wear protective headgear conforming with such minimum standards
2790 of construction and performance as the registrar may prescribe, and no person operating such a
2791 micromobility device shall permit any other person to ride as a passenger on such micromobility
2792 device unless such passenger is wearing such protective headgear.

2793 (3) Except as otherwise required by state or federal law or regulations of the registrar, it
2794 shall be unlawful for any person younger than 16 years of age to purchase, rent, lease or operate
2795 any micromobility device designated as a speed tier 1, speed tier 2 or speed tier 3 micromobility
2796 device; provided, however, that this restriction shall not apply to mobility aid devices.

2797 (4) Except as otherwise required by state or federal law or regulations of the registrar, it
2798 shall be unlawful for any person younger than 16 years of age to purchase, rent, lease or operate
2799 any powered micromobility device, motorized bicycle or moped designated as a speed tier 0,
2800 speed tier 1, speed tier 2 or speed tier 3 micromobility device; provided, however, that this
2801 restriction shall not apply to solely human powered micromobility devices, unpowered
2802 micromobility devices or mobility aid devices.

2803 (5) It shall be unlawful to operate a micromobility device with more passengers than the
2804 device was designed to accommodate by the manufacturer, except as may be allowed by
2805 regulation.

2806 (6)(A) Except as otherwise provided by state or federal law or regulations of the registrar,
2807 speed tier 0 micromobility devices and the operator of a speed tier 0 micromobility device shall
2808 be afforded all of the rights and privileges and shall be subject to all of the duties of the operator
2809 of a bicycle or duties related to a bicycle set forth in sections 11B and 11B½ of chapter 85 or any
2810 other general or special law, regulation or local ordinance.

2811 (B) Except as otherwise provided by state or federal law or regulations of the registrar,
2812 speed tier 1 micromobility devices and the operator of such speed tier 1 micromobility device
2813 shall be afforded all of the rights and privileges and shall be subject to all of the duties of the
2814 operator of an electric bicycle or duties related to an electric bicycle set forth in section 11B¾ of
2815 chapter 85 or any other general or special law, regulation or local ordinance.

2816 (C) Except as otherwise provided by state or federal law or regulations of the registrar, it
2817 shall be unlawful for any speed tier 2 or speed tier 3 micromobility devices to travel on
2818 sidewalks, bike lanes, bike paths, bike routes, separated micromobility lanes or shared use paths.

2819 (f) It shall be unlawful to make any aftermarket modifications to a micromobility device,
2820 including aftermarket modifications made to the device's battery, to increase either the
2821 manufacturer-designed: (i) speed, range or propulsion power of a micromobility device; or (ii)
2822 passenger capacity of a micromobility device, except as may be allowed by regulation.

2823 (g) No micromobility device shall be sold, rented, leased or operated in the
2824 commonwealth if it does not satisfy the requirements of this section for the device's respective

2825 speed tier based on the device's maximum manufacturer assisted or designed speed, whichever is
2826 higher.

2827 (h) Micromobility devices shall be subject to any speed limits and speed restrictions for
2828 motor vehicles established by: (i) municipalities or the division of highways of the
2829 Massachusetts Department of Transportation pursuant to sections 17 and 18; (ii) regulations of
2830 the department under chapter 90E; or (iii) rules or regulations of the department of conservation.
2831 Violation of such speed limits and speed restrictions shall be subject to all civil and criminal
2832 fines applicable to the operation of a motor vehicle in violation of such speed limits and
2833 restrictions. Micromobility devices shall be subject to all civil and criminal fines and penalties
2834 applicable to the operation of a motor vehicle under sections 24 to 24R, inclusive, 24V and 25;
2835 provided, that administrative penalties shall not apply, unless provided by regulations of the
2836 registrar.

2837 (i) The registrar, in consultation with the division of insurance, may promulgate
2838 regulations establishing registration, licensure, insurance, fines and other requirements for
2839 micromobility devices necessary to promote public and roadway safety.

2840 SECTION 109. Chapter 90E of the General Laws is hereby amended by striking out
2841 section 1 and inserting in place thereof the following section:-

2842 Section 1. For the purposes of this chapter, the following words or terms shall, unless the
2843 context otherwise requires, have the following meanings:

2844 "Bicycle", a 2-wheel nonmotor-powered vehicle.

2845 “Bicycle parking facility”, any facility for the temporary storage of bicycles or
2846 micromobility devices which allows the frame and the wheels of the bicycle or micromobility
2847 device to be locked so as to minimize the risk of theft and vandalism.

2848 “Bike lane”, a lane on a street restricted to bicycles and speed tier 0 or speed tier 1
2849 micromobility devices as defined in section 64 of chapter 90 and so designated by means of
2850 painted lines, pavement coloring or other appropriate markings; provided, however, that
2851 motorized bicycles shall not be permitted to use bike lanes.

2852 “Bike path”, a route for the exclusive use of bicycles and speed tier 0 or speed tier 1
2853 micromobility devices, separated by grade or other physical barrier from motor traffic; provided,
2854 however, that motorized bicycles shall not be permitted to use bike paths.

2855 “Bike route”, a roadway shared by bicycles, micromobility devices and other forms of
2856 transportation designated by the means of signs or pavement markings.

2857 “Bikeway”, bike paths, bike lanes and bike routes.

2858 “Commissioner”, the administrator for highways.

2859 “Department”, the division of highways.

2860 SECTION 109A. The General Laws are hereby amended by inserting after chapter 93L
2861 the following chapter:-

2862 Chapter 93M

2863 Restraint of Trade in Film Exhibition

2864 Section 1. As used in this chapter, the following words shall, unless the context clearly
2865 requires otherwise, have the following meanings:

2866 “Booker” or “film buyer”, any person or entity that negotiates or contracts with a
2867 distributor for the licensing of motion pictures on behalf of an exhibitor.

2868 “Circuit dealing”, the practice of licensing motion pictures to a theater chain or circuit for
2869 all or multiple geographic areas, rather than negotiating theater-by-theater on the individual
2870 merits of each location.

2871 “Clearance”, an agreement, explicit or implicit, between a distributor and an exhibitor
2872 that grants the exhibitor exclusive rights to show a motion picture within a specific geographic
2873 zone, thereby restricting the distributor from licensing the same motion picture to rival
2874 exhibitors.

2875 “Day-and-date”, the simultaneous exhibition of a motion picture by 2 or more exhibitors
2876 within the same geographic booking zone beginning on the same commercial release date.

2877 “Distributor”, any entity engaged in the business of licensing or distributing motion
2878 pictures to exhibitors, including studios, independent distributors and their parent corporations.

2879 “Exhibitor”, any person or entity engaged in the business of operating a movie theater for
2880 the public viewing of motion pictures.

2881 “Independent exhibitor”, an exhibitor operating 3 or fewer theater locations within the
2882 commonwealth.

2883 Section 2. It shall be an unfair method of competition and an unfair or deceptive act or
2884 practice under chapter 93A for any distributor or exhibitor engaged in circuit dealing to engage
2885 in practices that unreasonably restrain trade in film exhibition, including, but not limited to:

2886 (i) granting or enforcing a clearance zone that covers an area broader than necessary to
2887 protect a legitimate, non-predatory business interest, or enforcing a blanket clearance that
2888 prevents an independent exhibitor from playing a film day-and-date; provided, that the
2889 independent exhibitor shall offer reasonable licensing terms and have adequate facility standards;

2890 (ii) utilizing market power or circuit-wide bargaining power to coerce a distributor into
2891 denying licensing rights to a nearby independent exhibitor; and

2892 (iii) arbitrarily refusing to license a commercial motion picture to an independent
2893 exhibitor when that motion picture is being licensed to more than 1,000 screens nationwide;
2894 provided, that the independent exhibitor shall agree to standard industry economic terms and
2895 hold-over protocols.

2896 SECTION 109B. Section 26 of chapter 101 of the General Laws, as appearing in the
2897 2024 Official Edition, is hereby amended by striking out, in lines 5 and 6, the words “one year”
2898 and inserting in place thereof the following words:- 5 years.

2899 SECTION 109C. Said section 26 of said chapter 101, as so appearing, is hereby further
2900 amended by inserting after the word “date”, in line 6, the following words:- ; provided, that the
2901 certificate required to be signed by the chief of police of the city or town in which the applicant
2902 resides, pursuant to section 22, shall continue to be furnished by the applicant to the deputy
2903 director on an annual basis.

2904 SECTION 109D. Chapter 111 of the General Laws is hereby amended by inserting after
2905 section 2K the following section:-

2906 Section 2L. (a) There shall be a Medical Psychedelics Fund. The commissioner shall
2907 administer the fund to support the pilot program established in subsection (b). There shall be
2908 credited to the fund money received from public and private sources to support the pilot
2909 program. Amounts credited to the fund shall not be subject to further appropriation. Money
2910 remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be
2911 available for expenditure in subsequent fiscal years. Annually, not later than January 1, the
2912 commissioner shall report on the activities of the fund to the clerks of the house of
2913 representatives and the senate and to the chairs of the house and senate committees on ways and
2914 means. The report shall include: (i) an accounting of money received by the fund broken down
2915 by funding source; (ii) a description of the use of funds for the purpose of the pilot program; (iii)
2916 an accounting of money expended from the fund broken down by recipient; and (iv) the amount
2917 of any unexpended balance.

2918 (b) The department shall establish a pilot program to allow for the monitored mental
2919 health care of clinically appropriate patients using naturally occurring psychedelic materials as
2920 defined by the department for on-site administration by a multi-disciplinary care team in a
2921 supervised licensed mental health clinic setting. The department shall issue pilot program
2922 permits to not more than 3 licensed mental health clinic facilities to participate in the pilot
2923 program for the purposes of establishing the best and safest clinical practices for psychedelic
2924 mental health treatment programs in the commonwealth and for the purposes of collecting
2925 patient outcomes data regarding the benefits of psychedelic pharmacotherapy. Authorization
2926 shall be given to clinics licensed to provide mental health services as defined by the department

2927 of public health. Eligible pilot program organizations shall exclusively focus operations and
2928 treatment on mental health and shall not be subsidiaries, affiliates or members of cannabis
2929 industry organizations, psychedelic molecule development companies or pharmaceutical
2930 companies.

2931 (c) The department shall promulgate rules and regulations necessary for the operation of
2932 a supervised psychedelic pilot in a clinical setting, including, but not limited to, establishing a
2933 process to apply for participation in the pilot program. The regulations shall include, but shall not
2934 be limited to: (i) the definitions and standards for clinic participation; (ii) the process of initial
2935 patient assessment and ongoing monitoring; (iii) the composition of the clinical staff and the role
2936 of a licensed physician to oversee the program; (iv) the process of ensuring coordination and
2937 medical management of psychiatric medications with prescribers outside of the participating
2938 outpatient clinical pilot; and (v) the process of storing, dispensing and administering
2939 psychedelics within the participating pilot. The department shall establish by regulation all
2940 standards and requirements governing the production and cultivation of naturally occurring
2941 psychedelic materials necessary for the pilot program, including, but not limited to, producer
2942 licensing and operations.

2943 (d) Section 2 of chapter 94C, including psilocybin and psilocin as Schedule I controlled
2944 substances, shall not apply to the medical use of psilocybin and psilocin as provided under the
2945 pilot program and regulations promulgated hereunder. A licensed mental health clinic facility,
2946 designated participant, licensed clinical staff member or patient acting in compliance with the
2947 pilot program and regulations promulgated hereunder shall not be subject to arrest, prosecution
2948 or civil or professional penalty under state law for activities expressly authorized under the pilot
2949 program. A licensed health care practitioner shall not be subject to professional discipline or loss

2950 of licensure solely for issuing a written certification under the pilot program, recommending
2951 participation in the program to a patient or providing medical services authorized under the
2952 program.

2953 (e) The department shall coordinate with research institutions, as it deems appropriate, to
2954 facilitate, expand and expedite federally-authorized research on psychedelic-assisted therapies,
2955 including, but not limited to, psilocybin, ibogaine, 5-methoxy-n,n-dimethyltryptamine, and 3,4-
2956 methylenedioxymethamphetamine, in the commonwealth, including efforts to pursue federal
2957 approvals and available state and federal funding in compliance with applicable federal
2958 regulations.

2959 (f) All pilot program participant organizations shall track patient care outcomes data
2960 related to the identification, diagnosis and psychedelic treatment of depression, anxiety, post-
2961 traumatic stress disorder and substance use disorder. These data sets shall be shared with the
2962 department of public health to assist in the refinement of best clinical protocols and final
2963 regulatory frameworks for the safe use of psychedelic material in the commonwealth.

2964 SECTION 109E. Section 2L of chapter 111 is hereby repealed.

2965 SECTION 110. Chapter 111 of the General Laws is hereby amended by adding the
2966 following section:-

2967 Section 250. The commissioner of public health shall promulgate regulations for the
2968 annual health inspection of food trucks. The commissioner shall prescribe rules and regulations
2969 relative to inspection schedules, documentation of inspections, standards for acceptable
2970 cleanliness and the costs of such inspections.

SECTION 111. Section 75 of chapter 112 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following paragraph:-

Notwithstanding any general or special law to the contrary, the board, upon the recommendation of the executive director of the board or their designee, shall waive any requirement to complete an exam exclusively verifying proficiency in English if the applicant: (i) previously passed an English proficiency examination at any time; (ii) has obtained 1 or more nursing degrees in the United States, if the applicant was originally trained outside of the United States; or (iii) demonstrates English proficiency through another method deemed acceptable by the board. Nothing in this paragraph shall be construed to impede the board's authority to: (A) establish or conduct examinations that test the applicant's fitness to practice; or (B) promulgate rules, regulations or guidelines pursuant to section 79. The board shall not waive requirements for an exam verifying proficiency in English for applicants seeking licensure through the nurse licensure compact pursuant to chapter 112A.

SECTION 112. Section 87A1/2 of said chapter 112, as so appearing, is hereby amended by striking out subsection (e) and inserting in place thereof the following subsection:-

(e)(1) The educational and experience requirements for a certificate shall be at least 1 of the following:

(i) a bachelor's degree or its equivalent from a college or university approved by the board and 2 years of full-time experience or the equivalent approved by the board;

(ii) a bachelor's degree with 30 semester hours of additional education from a college or university approved by the board and 1 year of full-time experience or the equivalent approved by the board; or

2993 (iii) a master's degree or its equivalent from a college or university approved by the
2994 board and 1 year of full-time experience or the equivalent approved by the board.

2995 (2) The board shall promulgate regulations establishing educational requirements to take
2996 the required examination as a condition for the granting of a certificate.

2997 SECTION 113. Paragraph (1) of subsection (d) of section 87B of said chapter 112, as so
2998 appearing, is hereby amended by inserting after the word "commonwealth;," in line 33, the
2999 following word:- and.

3000 SECTION 114. Paragraph (2) of said subsection (d) of said section 87B of said chapter
3001 112, as so appearing, is hereby amended by striking out clauses (A) to (C), inclusive, and
3002 inserting in place thereof the following 3 clauses:-

3003 (A) is certified or licensed in another state and is in good standing in the other state;

3004 (B) has passed the Uniform Certified Public Accountant Examination and has completed
3005 the educational requirements listed in subsection (e) of section 87A1/2; or

3006 (C) had 4 years of experience in the practice of public accountancy or equivalent,
3007 meeting requirements prescribed by the board by rule, after passing the examination upon which
3008 their certificate was based within the 10 years immediately preceding their application.

3009 SECTION 115. Said subsection (d) of said section 87B of said chapter 112, as so
3010 appearing, is hereby further amended by striking out paragraph (3).

3011 SECTION 116. Subsection (h) of said section 87B of said chapter 112, as so appearing, is
3012 hereby amended by striking out paragraph (2) and inserting in place thereof the following
3013 paragraph:-

(1) A person whose principal place of business is outside the commonwealth shall be deemed to have qualifications substantially equivalent to the commonwealth's requirements for the practice of public accountancy and may engage in the practice of certified public accountancy in the commonwealth, including, but not limited to, offering and rendering professional services, whether in person or by mail, telephone or electronic means, if such person holds a valid license as a certified public accountant issued by another state; provided, however, that the person shall have met the educational and experience requirements listed in subsection (e) of section 87A1/2 and shall have passed the Uniform Certified Public Accountant Examination or exceeded the licensure requirements of this chapter; provided further, that any person who has passed the Uniform Certified Public Accountant Examination and holds a valid certified public accountant certificate issued by another state on or before December 31, 2026, shall be exempt from the educational requirements in subsection (e) of section 87A1/2. Any person who qualifies for the practice privilege pursuant to this subsection may exercise such privilege in the commonwealth without limitation on the period of time within which such person may so practice in the commonwealth if such person remains qualified pursuant to this subsection; provided, however, that such person shall not be required to obtain a certificate or license pursuant to this section, except as provided in this subsection, submit any other notice to the board or obtain a temporary practice permit from or pay any fee to the board.

SECTION 117. Said subsection (h) of said section 87B of said chapter 112, as so appearing, is hereby further amended by striking out, in line 110, the figure "(3)" and inserting in place thereof the following figure:- (2).

3035 SECTION 118. Said subsection (h) of said section 87B of said chapter 112, as so
3036 appearing, is hereby further amended by striking out, in line 126, the figure “(4)” and inserting in
3037 place thereof the following figure:- (3).

3038 SECTION 119. Said subsection (h) of said section 87B of said chapter 112, as so
3039 appearing, is hereby further amended by striking out, in line 133, the figure “(5)” and inserting in
3040 place thereof the following figure:- (4).

3041 SECTION 120. Said subsection (h) of said section 87B of said chapter 112, as so
3042 appearing, is hereby further amended by striking out, in line 139, the figure “(6)” and inserting in
3043 place thereof the following figure:- (5).

3044 SECTION 120A. The second paragraph of section 87SS of said chapter 112, as so
3045 appearing, is hereby amended by striking out the first sentence and inserting in place thereof the
3046 following sentence:- Every individual applicant for a license as a salesperson who is required to
3047 take an examination therefor shall, as a prerequisite to taking such examination, submit proof
3048 satisfactory to the board that the applicant has completed courses in real estate subjects approved
3049 by the board; provided, that such courses shall total 40 classroom hours of instruction and shall
3050 include at least 4 hours on fair housing law or diversity and inclusion in real estate; and provided
3051 further, however, that applicants having successfully completed a course in real property while
3052 enrolled in an accredited law school in the commonwealth may also take such examination.

3053 SECTION 120B. Section 87XX 1/2 of said chapter 112, as amended by section 192 of
3054 chapter 102 of the acts of 2026, is hereby further amended by striking out the first paragraph and
3055 inserting in place thereof the following paragraph:-

Any person holding a license as a real estate broker or salesperson shall, within their renewal period, satisfactorily complete courses or programs of instruction approved by the board; provided, that attendance at such courses or programs of instruction shall be not less than 6 hours but not more than 12 hours as determined by the board. The curriculum contained in such courses or programs shall contain at least 6 hours of instruction concerning or related to compliance with laws and regulations, including, but not limited to: (i) at least 2 hours on fair housing or diversity and inclusion in real estate; and (ii) 4 hours selected from any of the following subjects: (A) equal employment opportunity; (B) accessibility for persons with disabilities; (C) agency law; (D) environmental issues in real estate; (E) zoning and building codes; (F) real estate appraisal and financing; (G) property tax assessments and valuation; and (H) real estate board regulations. The board shall certify in advance the curriculum forming the basis of such courses or programs that satisfy the provisions of this section.

SECTION 120C. Section 87AAA of said chapter 112, as appearing in the 2024 Official Edition, is hereby amended by striking out the third sentence and inserting in place thereof the following 4 sentences:- The board shall, after notice by the Massachusetts commission against discrimination, or any other agency that administers fair housing laws and is certified by the federal Assistant Secretary for Fair Housing and Equal Opportunity pursuant to the federal Fair Housing Act, U.S.C. 3601 through U.S.C. 3619, inclusive, that the Massachusetts commission against discrimination or agency has made a finding, which the finding has become final, that a licensed broker or salesperson committed an unlawful practice in violation of chapter 151B arising out of or in the course of their occupation as a licensed broker or salesperson, suspend forthwith the license of said broker or salesperson for a period of 60 days; provided, however, that if the Massachusetts commission against discrimination or agency finds that said violation

by such licensed broker or salesperson occurred within 2 years of the date of a prior violation of said chapter 151B, which finding has been final, it shall so notify the board, and the board shall forthwith suspend the license of such broker or salesperson for a period of 180 days. The board, after notice by the office of the attorney general that a court in a matter brought by the office of the attorney general has made a finding, which finding has become final, that a licensed broker or salesperson committed an unlawful practice in violation of said chapter 151B arising out of or in the course of their occupation as a licensed broker or salesperson, shall suspend forthwith the license of said broker or salesperson for a period of 60 days; provided, however, that if the board determines that the violation by such licensed broker or salesperson occurred within 2 years of the date of a prior finding by a court or agency of a violation of said chapter 151B, which prior finding has become final, it shall forthwith suspend the license of such broker or salesperson for a period of 180 days. The board shall suspend the license of a broker or salesperson for any violation of said chapter 151B referred to the board under this section. Commissions and agencies empowered to make referrals to the board pursuant to this section, including the office of the attorney general, shall make all referrals that qualify under this section and shall not have discretion as to whether to make the referral.

SECTION 120D. Said section 87AAA of said chapter 112, as so appearing, is hereby further amended by striking out, in lines 60 and 67, the word “salesmen” and inserting in place thereof, in each instance, the following word:- salespersons.

SECTION 120E. Section 87AAA3/4 of said chapter 112, as so appearing, is hereby amended by striking out, in line 2, the word “salesmen” and inserting in place thereof the following word:- salespersons.

3101 SECTION 120F. Said section 87AAA3/4 of said chapter 112, as so appearing, is hereby
3102 further amended by striking out, in lines 22, 26, 41, 43, 46, 63 and 67, each time it appears, the
3103 word “salesman” and inserting in place thereof, in each instance, the following word:-
3104 salesperson.

3105 SECTION 120G. Section 87CCC of said chapter 112, as so appearing, is hereby amended
3106 by striking out, in lines 2 and 3, the word “salesman” and inserting in place thereof, in each
3107 instance, the following word:- salesperson.

3108 SECTION 120H. Section 87DDD1/2 of said chapter 112 is hereby amended by striking
3109 out, in line 3, as so appearing, the word “salesman” and inserting in place thereof the following
3110 word:- salesperson.

3111 SECTION 120I. Section 131 of said chapter 112, as so appearing, is hereby amended by
3112 striking out, in lines 6 and 7, the words “; has passed an examination prepared by the board for
3113 this purpose”.

3114 SECTION 120J. Said section 131 of said chapter 112 is hereby further amended by
3115 striking out the first paragraph, as amended by section 120I, and inserting in place thereof the
3116 following paragraph:-

3117 Any individual desiring to obtain a license as a certified social worker shall make
3118 application therefor to the board upon such form and in such manner as the board shall prescribe
3119 and shall furnish evidence satisfactory to the board that he has received a doctorate or master's
3120 degree in social work from an accredited educational institution; has passed an examination
3121 prepared by the board for this purpose; and will conduct his professional activities as a certified
3122 social worker in accordance with generally accepted professional standards.

3123 SECTION 120K. Section 132 of said chapter 112, as appearing the 2024 Official Edition,
3124 is hereby amended by striking out, in lines 1 and 2, the words “Examinations for licensed
3125 certified social workers, including those in independent clinical practice” and inserting in place
3126 thereof the following words:- Examinations for licensed independent clinical social workers.

3127 SECTION 120L. Said section 132 of said chapter 112 is hereby further amended by
3128 striking out the words “Examinations for licensed independent clinical social workers”, inserted
3129 by section 120K, and inserting in place thereof the following words:- Examinations for licensed
3130 certified social workers, including those in independent clinical practice.

3131 SECTION 120M. Said chapter 112 is hereby further amended by inserting after section
3132 135C the following section:-

3133 Section 135D. (a) To ensure a stable, diverse workforce of licensed social workers in the
3134 commonwealth and to provide for increased support and retention of practicing licensed social
3135 workers, the executive office of health and human services shall establish and administer a field
3136 placement grant program. The program shall, subject to appropriation, provide grant funding to
3137 designated recipients with a specific focus on recruiting and retaining students obtaining a
3138 master’s of social work from historically marginalized communities and low-income
3139 communities. Funds to establish this program shall be allocated from state, federal or other
3140 dedicated resources, including, but not limited to, existing trust funds.

3141 (b) Eligible applicants shall attend a school of social work master’s program located in
3142 the commonwealth and accredited by the Council on Social Work Education.

3143 (c) The executive office of education shall collaborate with eligible institutions of higher
3144 education to track applicant data, including application details submitted, and evaluate the
3145 program's efficacy and equity.

3146 (d) The executive office of health and human services shall promulgate regulations
3147 outlining eligibly criteria and establishing stipend amounts.

3148 SECTION 120N. Section 136 of said chapter 112, as appearing in the 2024 Official
3149 Edition, is hereby amended by inserting after the fourth paragraph the following paragraph:-

3150 Licensed independent clinical social workers engaged in independent clinical practice
3151 who provide 1-on-1 supervision to a licensed certified social worker, licensed social worker,
3152 master's of social work intern or bachelor's of social work intern, shall be eligible to receive up
3153 to 8 continuing education credits during a licensing period.

3154 SECTION 121. Section 222 of said chapter 112, as so appearing, is hereby amended
3155 by adding the following subsection:-

3156 (e) Notwithstanding clauses (iii) and (iv) of subsection (d), an applicant shall be eligible
3157 for licensure as a home inspector without meeting the requirements of said clause (iii) or said
3158 clause (iv) of said subsection (d) if the applicant: (i) is a professional engineer licensed pursuant
3159 to sections 81D to 81T, inclusive; and (ii) has performed not less than 50 home inspections under
3160 the supervision of a licensed home inspector.

3161 SECTION 121A. Chapter 118E of the General Laws is hereby amended by inserting after
3162 section 67A the following section:-

3163 Section 67B. (a) As used in this section, the following words shall, unless the context
3164 clearly requires otherwise, have the following meanings:

3165 “Ambulance service”, as defined in section 1 of chapter 111C.

3166 “Executive office”, the executive office of health and human services.

3167 “Public ambulance service”, ambulance services that are provided by a city or town,
3168 county, district or other governmental body and are licensed pursuant to section 6 of chapter
3169 111C.

3170 (b) The executive office shall implement voluntary programs to increase funding to
3171 public ambulance services, including, but not limited to, intergovernmental transfer programs, as
3172 authorized under section 1903(w)(6) of the federal Social Security Act, 42 CFR 433.51.

3173 (c) Any additional funds received by public ambulance services pursuant to subsection
3174 (b) shall not be used to replace other payment commitments between public ambulance services
3175 and the commonwealth.

3176 SECTION 122. Section 3 of chapter 121C of the General Laws, as appearing in the 2024
3177 Official Edition, is hereby amended by striking out, in line 55, the word “MOBD” and inserting
3178 in place thereof the following words:- the secretary.

3179 SECTION 123. Section 4 of said chapter 121C, as so appearing, is hereby amended by
3180 striking out, in line 9, the words “, MOBD and to the director,” and inserting in place thereof the
3181 following words:- the secretary.

3182 SECTION 124. Section 5 of said chapter 121C, as so appearing, is hereby amended by
3183 striking out, in line 21, the words “MOBD and” and inserting in place thereof the following
3184 word:- the.

3185 SECTION 125. Said section 5 of said chapter 121C, as so appearing, is hereby further
3186 amended by striking out, in lines 67 and 68, the words “MOBD and the director” and inserting in
3187 place thereof the following words:- the secretary.

3188 SECTION 126. Said section 5 of said chapter 121C, as so appearing, is hereby further
3189 amended by striking out, in lines 81 and 82, the words “MOBD and director” and inserting in
3190 place thereof the following words:- the secretary.

3191 SECTION 127. Section 6 of said chapter 121C, as so appearing, is hereby amended by
3192 striking out, in line 28, the words “MOBD and director” and inserting in place thereof the
3193 following words:- the secretary.

3194 SECTION 128. Said section 6 of said chapter 121C, as so appearing, is hereby further
3195 amended by striking out, in lines 44 and 45, the words “department of housing and community
3196 development” and inserting in place thereof the following words:- secretary.

3197 SECTION 129. Section 10 of said chapter 121C, as so appearing, is hereby amended by
3198 striking out, in line 5, the words “MOBD and the director” and inserting in place thereof the
3199 following words:- the secretary.

3200 SECTION 129A. Section 2 of chapter 128 of the General Laws, as so appearing, is
3201 hereby amended by inserting after the word “promotion,” in line 93, the following word:-
3202 incentives.

3203 SECTION 129B. Chapter 128A of the General Laws is hereby amended by inserting after
3204 section 5C the following section:-

3205 Section 5D. (a) As used in this section, the following words shall, unless the context
3206 clearly requires otherwise, have the following meanings:

3207 “Historical horse race”, any horse race, whether running horse or harness, that was: (i)
3208 previously conducted at a licensed pari-mutuel facility; (ii) concluded with official results; and
3209 (iii) concluded without scratches, disqualifications or dead-heat finishes.

3210 “Pari-mutuel method of wagering”, a method of wagering in which those who wager on
3211 horses that finish in the position or positions for which wagers are taken share in the total
3212 amounts wagered, plus any amounts provided by a licensee, which may include, a nonrefundable
3213 contribution to serve as a seed or guarantee and in which a totalizator or similar mechanical
3214 equipment calculates pari-mutuel pools and payouts associated with each winning wager;
3215 provided, that a wager placed on a historical horse racing terminal certified as a pari-mutuel
3216 terminal by an independent testing laboratory shall also be considered a pari-mutuel wager.

3217 “Racing licensee”, a person licensed by the commission under this chapter to conduct a
3218 live horse racing meeting or a running horse racing licensee or greyhound meeting licensee that
3219 conducted simulcast wagering during calendar year 2025, as authorized by law.

3220 (b) A racing licensee shall be eligible to accept pari-mutuel wagers on historical horse
3221 races; provided, that such wagers are accepted at a facility at which the racing licensee conducts
3222 its in-person wagering activities pursuant to this chapter or chapter 128C or through account
3223 wagering offered by the licensee or its approved account wagering service providers pursuant to
3224 section 5C. Wagering on historical horse races under this section shall be deemed to be pari-

3225 mutuel wagering on horse races under chapters 128A and 128C for purposes of the tenth clause
3226 of section 7 of chapter 4.

3227 (c) The commission shall authorize wagers on historical horse races, whether on an
3228 electronic gaming device or otherwise; provided, that the wagers shall meet the requirements of
3229 this section.

3230 (d) Wagering on historical horse races may take place on electronic gaming devices;
3231 provided, that: (i) all wagers use the pari-mutuel method of wagering; (ii) the licensee may
3232 operate a number of terminals it chooses; (iii) the terminal shall make available true and accurate
3233 past performance information on each historical horse race prior to the patron making the
3234 patron's selection; (iv) the terminal shall display a replay of each race, or a portion thereof,
3235 whether digital, animated, or by way of a video recording, and the official results of each race,
3236 and the identity of each race shall be revealed to the patron after the patron has placed the
3237 patron's wager; (v) the outcome of each wager is based solely on the outcome of the historical
3238 horse race or races; (vi) no random elements shall determine the outcome of the patron's wager;
3239 (vii) the terminals shall have been tested by Gaming Laboratories International, LLC, another
3240 independent testing laboratory approved by the commission, or the commission's technical
3241 compliance unit to ensure integrity and proper working order; and (viii) each licensee shall
3242 submit a responsible gaming plan to the commission for review and approval prior to activating
3243 any historical horse race terminal, and every year thereafter. Each plan shall include, but shall
3244 not be limited to: (A) identification of postings and materials related to problem gaming to be
3245 made available to patrons expressing concerns about problem gaming; (B) house-imposed player
3246 limits; and (C) self-exclusion plans.

3247 (e) Racing officials or any employee or owner of the entity that provides the totalizator
3248 system to the licensee, and any person responsible for the operation of the electronic
3249 reproduction equipment which operates the historical horse races and wagering, shall be
3250 prohibited from participating in wagering, directly or indirectly, on historical horse races offered
3251 at the licensee's facility.

3252 (f) The wagering pool for a historical horse race shall be paid out as follows:

3253 (1) The licensee shall pay the following amounts from the pool, which amounts shall not
3254 be considered part of the licensee's takeout: (i) 2.5 per cent of handle to the commonwealth as an
3255 excise, which shall be transferred to the Health Safety Net Trust Fund established in section 66
3256 of chapter 118E; provided, however, that: (A) within 30 days of the commencement of
3257 operations accepting wagers on historical horse racing, the licensee shall make a nonrefundable
3258 payment of \$25 million to the commonwealth that shall be a prepayment of the first \$25 million
3259 of excise payable under this paragraph during the fiscal year of the commonwealth in which such
3260 operations commence; (B) not later than July 15 of the fiscal year of the commonwealth
3261 following the fiscal year in which such operations commence, the licensee shall make a
3262 nonrefundable payment of \$50 million to the commonwealth that shall be a prepayment of the
3263 first \$50 million of excise payable under this paragraph during such following fiscal year; and
3264 (C) with respect to the payments under clauses (A) and (B), the licensee shall pay any additional
3265 excise due under this paragraph once the credit established by the prepayment is exhausted and
3266 the licensee shall not be entitled any refund or carryover credit in the event the credit is not
3267 exhausted during the fiscal year for which it is paid; (ii) 0.25 per cent of handle to the host
3268 community of its facility for mitigation; and (iii) 0.25 per cent of handle divided as follows: (a)
3269 0.1875 per cent of handle shall be dedicated to purses for, in the case of a live racing licensee,

live horse races that it conducts and, in the case of a running horse racing licensee that conducted simulcast wagering during calendar year 2025, for live running horse races conducted in the commonwealth or to its recognized running horsemen's association as purses and, in the case of a greyhound racing licensee that conducted simulcast wagering during calendar year 2025, for live running horse or harness races conducted in the commonwealth as allocated by the commission; and (b) 0.0625 per cent of handle shall be dedicated to the breeders of, in the case of a live racing licensee, the type of horses that run in the live races it conducts and, in the case of a running horse racing licensee that conducted simulcast wagering during calendar year 2025, for breeders of running race horses and, in the case of a greyhound racing licensee that conducted simulcast wagering as during calendar year 2025, for breeders of running race horses or harness races horses as allocated by the commission;

(2) the licensee shall be entitled to a takeout from the remainder of the pool determined as a percentage of handle provided that the total amount of the takeout and the amounts paid pursuant to paragraph (1) shall not exceed the maximum takeout for wagers on live horse races established pursuant to section 5; and

(3) the licensee shall return to the winning patrons the balance of the pool.

(g) In addition to the takeout, the licensee shall be entitled to retain the breaks. In the event the commission imposes an assessment on the licensee in connection with the costs of regulating wagering on historical horse races, the licensee may retain an additional amount of handle sufficient to pay the assessment.

(h) Licensees offering wagering on historical horse races shall be authorized to offer promotional wagering credits to patrons for placing wagers on historical horse races at the

licensees facility or through account wagering offered by the licensee or its approved account
wagering service providers pursuant to section 5C. Wagers placed using promotional wagering
credits shall not be considered part of the licensee's handle for historical horse wagering pari-
mutuel pool for purposes of subsection (f) of section 3.

SECTION 129C. Section 9 of said chapter 128A, as appearing in the 2024 Official
Edition, is hereby by inserting after the words "section 5C," in line 16, the following words:- or
wagering on historical horse races, as provided in section 5D.

SECTION 129D. Said section 9 of said chapter 128A, as so appearing, is hereby further
amended by inserting after the fourth paragraph the following paragraph:-

Notwithstanding any general or special law to the contrary, in regulating wagering on
historical horse races as authorized by section 5D and the facilities in which the wagering is to be
conducted, the commission shall take into account the cost to licensees of regulation relative to
the net revenue to be generated by the wagering, the amount of cash to be handled at the facility
and the risks imposed by the wagering. The economic and operational burdens of the
commission's regulations shall be consistent with, and not greater than, those that it has
historically applied in the commonwealth pursuant to 205 CMR 6.00 and 205 CMR 7.00 with
respect to pari-mutuel wagering, including account wagering under section 5C. In determining
the appropriate level of regulation of wagering on historical horse racing, the commission shall
review the manner and extent to which other states regulate wagering on historical horse racing
at facilities that are separate from casinos, including, but not limited to, with respect to
surveillance.

3313 SECTION 129E. The second paragraph of section 11C of said chapter 128A, as so
3314 appearing, is hereby amended by inserting, after the first sentence, the following sentence:- It
3315 shall not be considered an undesirable concentration of ownership of racing facilities if 1 or more
3316 persons owns, directly or indirectly, some or all of 2 or more racing licensees none of which
3317 conducts lives races.

3318 SECTION 129F. Chapter 138 of the General Laws is hereby amended by
3319 inserting after section 19G the following section:-

3320 Section 19G½. (a) For the purposes of this section, the word “endorsement” shall, unless
3321 the context clearly requires otherwise, mean a shared manufacturing and packaging endorsement.

3322 (b) Notwithstanding any provision of this chapter to the contrary, any person, partnership
3323 or entity holding 2 or more manufacturing licenses issued pursuant to this chapter, including, but
3324 not limited to, licenses issued under sections 19, 19B, 19C and 19E, may apply to the
3325 commission for an endorsement, authorizing the use of common manufacturing, processing,
3326 packaging, bottling, canning, labeling, storage and related equipment for products produced
3327 under such licenses.

3328 (c) The annual fee for an endorsement issued pursuant to subsection (b) shall be \$1,000.

3329 (d)(1) A holder of an endorsement may utilize shared equipment for the production,
3330 processing, packaging, bottling, canning, labeling and storage of products authorized under such
3331 licenses; provided, that the licensee shall comply with all applicable federal and state laws and
3332 regulations. The commission shall not require separate manufacturing or packaging equipment
3333 solely because products are produced pursuant to different manufacturing licenses held by the
3334 same person, partnership or entity and operating under an endorsement.

(2) The holder of an endorsement shall maintain records sufficient to demonstrate compliance with all applicable federal and state laws and regulations, tax obligations, production requirements and product traceability standards. Such records shall include production schedules and documentation identifying which licensed activity is being conducted during use of shared equipment pursuant to the endorsement. Nothing in this section shall be construed to permit the commingling of products where otherwise prohibited by federal or state law, nor to alter any federal permitting requirements administered by the Federal Alcohol and Tobacco Tax and Trade Bureau.

(e) The commission may promulgate rules and regulations governing sanitation procedures, recordkeeping requirements, operational controls, production scheduling and other standards as necessary to administer this section. Penalties for noncompliance with this section shall be governed by section 64 and shall be applicable to all manufacturing licenses held by the person, partnership or entity that is not compliant.

SECTION 129G. Said chapter 138 is hereby further amended by inserting after section 25E^{3/4} the following section:-

Section 25E 7/8. A “successor supplier” shall mean any person or entity who directly or indirectly acquires the right or obligation to sell an item with a brand name to a wholesaler licensed in the commonwealth. A successor supplier shall acquire such rights or obligations subject to section 25E. All sales of a brand name item made to a licensed wholesaler prior to succession shall be attributed to the successor supplier for the purposes of determining whether 6 months of regular sales exist pursuant to section 25E.

3356 SECTION 129H. Section 33 of said chapter 138, as appearing in the 2024 Official
3357 Edition, is hereby amended by striking out, in line 13, the figure “10:00” and inserting in place
3358 thereof the following figure:- 8:00.

3359 SECTION 130. Section 100 of chapter 143 of the General Laws, as so appearing, is
3360 hereby amended by striking out, in lines 9 and 10, the words “specialized stretch energy code”
3361 and inserting in place thereof the following words:- current and future specialized stretch energy
3362 codes.

3363 SECTION 130A. Section 81 of chapter 146 of the General Laws, as so appearing, is
3364 hereby amended by inserting after the definition of “Bureau” the following definition:-

3365 “Direct supervision”, the physical on-site presence with the assigned apprentice and their
3366 supervising journeyman or fire protection sprinkler contractor, for the purpose of work on a fire
3367 protection sprinkler system.

3368 SECTION 130B. Section 85A of said chapter 146, as so appearing, is hereby amended by
3369 striking out, in lines 2, 6, 7 and 8, the word “his” and inserting in place thereof, in each instance,
3370 the following word:- their.

3371 SECTION 130C. Said section 85A of said chapter 146, as so appearing, is hereby further
3372 amended by striking out, in lines 4 and 7, the word “he” and inserting in place thereof, in each
3373 instance, the following word:- they.

3374 SECTION 130D. Said section 85A of said chapter 146, as so appearing, is hereby further
3375 amended by striking out, in line 10, the word “him” and inserting in place thereof the following
3376 word:- them.

3377 SECTION 130E. Said section 85A of said chapter 146, as so appearing, is hereby further
3378 amended by striking out the last sentence and inserting in place thereof the following sentence:-
3379 The ratio permitted shall be 1 licensed journeyman sprinkler fitter or fire protection sprinkler
3380 contractor for every apprentice sprinkler fitter on the jobsite.

3381 SECTION 130F. Section 89 of said chapter 146, as so appearing, is hereby amended by
3382 inserting after the word “eighty-one”, in line 4, the following words:- , including sections 84 to
3383 86, inclusive.

3384 SECTION 130G. Section 27B of chapter 149 of the General Laws, as so appearing, is
3385 hereby amended by adding the following paragraph:-

3386 For any offsite fabrication work subject to this section, the contractor, subcontractor or
3387 public body shall include a section in their weekly certified prevailing wage records that
3388 provides: (i) the name and address of the manufacturer, shop or other type of prefabrication
3389 facility where the fabrication work was performed; and (ii) the name, address and occupational
3390 classifications of each mechanic, apprentice, laborer or other employee employed in the
3391 performance of such work, the hours worked by, and wages paid to, each such employee.

3392 SECTION 130H. Section 27D of said chapter 149, as so appearing, is hereby amended by
3393 adding the following 2 paragraphs:-

3394 For the purposes of this section, the words “construction” and “constructed” shall include
3395 offsite fabrication work for any project covered by this section. For such offsite fabrication work,
3396 the wage required pursuant to this chapter shall be paid for such work and the requirements of
3397 section 27B shall apply to such work, including, but not limited to, weekly submission of

3398 certified payroll records and an accompanying statement made under penalties of perjury.

3399 Penalties provided under section 27C shall apply to such work.

3400 For the purposes of the preceding paragraph, the term “offsite fabrication” shall mean
3401 products or items that are: (i) produced specifically for a qualified project; (ii) considered to be
3402 non-standard, custom fabricated items, not generic products readily available for any project; and
3403 (iii) produced at an offsite location that are part of plumbing, electrical, mechanical and sheet
3404 metal systems, including, but not limited to, piping, fixtures, equipment, wirings, ductwork and
3405 other component or parts of such systems but shall not include any other work other than work
3406 that is part of plumbing, electrical, mechanical and sheet metal systems. Nothing in the definition
3407 of “offsite fabrication” shall restrict application of section 26 or prevent the commonwealth, or a
3408 county, town, authority or district thereof, contracting for the construction of public works from
3409 giving preference to offsite fabrication performed at an offsite location within a specific
3410 geographical area.

3411 SECTION 130I. The definition of “Occupation” in section 2 of chapter 151 of the
3412 General Laws, as so appearing, is hereby amended by striking out the last sentence and inserting
3413 in place thereof the following sentence:- Occupation shall also not include: (i) outside sales work
3414 regularly performed by outside salesmen who regularly sell a product or products away from
3415 their employer’s place of business and who do not make daily reports or visits to the office or
3416 plant of their employer; or (ii) work performed by individuals who have entered into contracts to
3417 play baseball at the minor league level and who are compensated pursuant to the terms of a
3418 collective bargaining agreement that expressly provides for wages and working conditions.

3419 SECTION 130J. Section 15 of said chapter 151, as so appearing, is hereby amended by
3420 adding the following sentence:- The requirement in this section to keep a true and accurate
3421 record of the hours worked each day and each week by each employee shall not apply to any
3422 individual who has entered into a contract to play baseball at the minor league level and who is
3423 compensated pursuant to the terms of a collective bargaining agreement that expressly provides
3424 for wages and working conditions.

3425 SECTION 131. Section 12 of chapter 156C of the General Laws, as so appearing, is
3426 hereby amended by striking out subsection (d) and inserting in place thereof the following 3
3427 subsections:-

3428 (d) The fee for the filing of the certificate of organization required by subsection (a) shall
3429 be \$100. The fee for the filing of the annual report required by subsection (c) shall be \$200 for
3430 the first annual report, \$300 for the second annual report, \$400 for the third annual report and
3431 \$500 for the fourth annual report and for each annual report filed thereafter. Such fees shall be
3432 paid to the state secretary at the time the certificate of organization or the annual report is filed.

3433 (e) Notwithstanding the fees set forth in subsection (d), if a limited liability company: (i)
3434 is established for the purpose of holding title to real property; (ii) owns assets in excess of
3435 \$1,000,000; or (iii) is expected to own assets in excess of \$1,000,000 within the subsequent 12
3436 month period, then the fee for the filing of the certificate of organization required by subsection
3437 (a) shall be \$500 and the fee for the filing of each annual report required by subsection (c) shall
3438 be \$500 beginning with the annual report that includes an affirmative attestation of any of the
3439 conditions set forth in clauses (i) to (iii), inclusive, of the preceding sentence. Such fees shall be
3440 paid to the state secretary at the time the certificate of organization or the annual report is filed.

(f) The person filing the certificate of organization or annual report shall in every instance attest as to whether the limited liability company: (i) is established for the sole purpose of holding title to real property; (ii) owns assets in excess of \$1,000,000; or (iii) is expected to own assets in excess of \$1,000,000 within the subsequent 12 month period. A person making such filing who makes an inaccurate attestation shall be subject to a civil fine of \$10,000 for each occurrence. Such certification shall be the basis for determining eligibility under subsection (e).

(g) Notwithstanding the fees set forth in subsection (d), if a limited liability company is a micro business, as defined in subsection (a) of section 69 of chapter 23A, then the fee for the filing of the certificate of organization required by subsection (a) shall be \$100 and the fees for the filing of the annual report required by subsection (c) shall be \$200 for the first annual report and \$300 for the second annual report and for each annual report filed thereafter. Such fees shall be paid to the state secretary at the time the certificate of organization or the annual report is filed.

SECTION 131A. Section 6B of chapter 159B of the General Laws, as so appearing, is hereby amended by striking out, in line 14, the figure “\$35” and inserting in place thereof the following figure:- \$49.

SECTION 131B. Chapter 164 of the General Laws is hereby amended by striking out section 34B and inserting in place thereof the following section:-

Section 34B. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Attacher”, any person, distribution company, telecommunications company, utility, municipality or any other entity that attaches any line, wire or equipment to any pole.

3463 “Attachment”, a wire, cable or other utility equipment.

3464 “Double pole”, the condition in which 2 poles stand in immediate proximity during pole
3465 replacement, consisting of: (i) a newly installed replacement pole; and (ii) an existing pole that
3466 remains to support attached wires, cables or equipment pending their transfer to the replacement
3467 pole by the stakeholders.

3468 “Owner”, any distribution company, utility or other entity that is legally responsible for
3469 the installation, maintenance or removal of a pole.

3470 “Pole”, a utility pole to which not less than 1 attachment is affixed.

3471 “Stakeholder”, an attacher or owner.

3472 “Utility pole database”, the National Joint Utilities Notification System, its successor or
3473 another equivalent notification system and database agreed to by the double pole working group
3474 established in this section.

3475 (b)(1) There shall be a permanent working group on double poles that shall consist of the
3476 following members: the commissioner of telecommunications and cable, or their designee, who
3477 shall serve as co-chair; the chair of the department of public utilities, or the chair’s designee, who
3478 shall serve as co-chair, the secretary of administration and finance, or their designee; ; a
3479 representative of a municipal light board of commissioners or their designee; the chairs of the
3480 joint committee on municipalities and regional government; the chairs of the joint committee on
3481 telecommunications, utilities and energy or their designees; 1 member to be appointed by the
3482 minority leader of the house of representatives; 1 member to be appointed by the minority leader
3483 of the senate; 3 members to be appointed by the governor, all of whom shall be municipal

3484 officials; 1 representative of each utility pole owner; 1 utility owner that is a telecommunications
3485 provider; 1 utility pole attacher that is a cable company; the executive director of the New
3486 England Connectivity & Telecommunications Association, Inc. or their designee; and the
3487 executive director of the Massachusetts Municipal Association, Inc. or their designee.

3488 (2) The working group shall meet not less than 4 times per year and shall promote
3489 collaboration between stakeholders involved in attachment transfers and serve as an
3490 informational resource.

3491 (3) Investigating and studying the feasibility of: (A) increasing participation, utilization,
3492 improving functionality of the utility pole database and identifying solutions to resolve
3493 communication issues among all parties; (B) exploring enhancements to the utility pole database
3494 which result in greater efficiency and less delay

3495 (4) Annually, not later than March 30, the working group shall file a report on double
3496 pole and attachment transfer activity in the commonwealth during the previous calendar year to
3497 the clerks of the house of representatives and the senate; the house and senate committees on
3498 ways and means; the chairs of the joint committee on municipalities and regional government
3499 and the chairs of the joint committee on telecommunications, utilities and energy. The report
3500 shall include, but shall not be limited to: (i) the number and status of double poles and
3501 attachments in each municipality; (ii) the length of time the double poles have existed; (iii) the
3502 length of time attachments have been pending next to transfer; (iv) the stakeholders responsible
3503 for delays in double pole resolution; (v) any programs established by the department of public
3504 utilities or the department of telecommunications and cable to resolve double poles concerns;

3505 and (vi) the success of any programs pursuant to clause (v). The department of public utilities
3506 and the department of telecommunications and cable shall publish the report on their websites.

3507 SECTION 132. Section 134 of chapter 164 of the General Laws, as appearing in the 2024
3508 Official Edition, is hereby amended by striking out, in lines 103 and 104, the words “Renewable
3509 Energy Trust Fund, established pursuant to section 9” and inserting in place thereof the
3510 following words:- Climatetech Investment Fund established pursuant to section 15.

3511 SECTION 133. Said chapter 164 is hereby further amended by adding the following
3512 section:-

3513 Section 152. (a) As used in this section, the followings words shall, unless the context
3514 clearly requires otherwise, have the following meanings:

3515 “Economic development rates”, standardized utility tariffs and discounted rates offered
3516 by a distribution company designed to attract new businesses to the commonwealth and promote
3517 expansion by businesses already located within the commonwealth.

3518 “Special contracts”, discounted utility rates negotiated between distribution companies
3519 and large new businesses locating to the commonwealth or large new businesses expanding
3520 within the commonwealth.

3521 (b)(1) Each distribution company shall offer an economic development rate and special
3522 contracts; provided, however, that economic development rates and special contracts shall not
3523 shift costs to or increase costs for any other utility customer in the commonwealth.

3524 (2) Each distribution company shall develop guidelines for large new businesses locating
3525 to the commonwealth or large new businesses expanding in the commonwealth to seek a special

3526 contract. The rates, contracts and guidelines shall be as consistent as practicable between the
3527 distribution companies.

3528 (c) Economic development rates may include associated requirements, including, but not
3529 limited to: (i) job creation or retention requirements; (ii) capital investment commitments; (iii)
3530 participation in energy efficiency or demand response programs; and (iv) periodic progress
3531 reporting on requirements.

3532 (d) Each distribution company may, as necessary, request modifications to any approved
3533 economic development rate and guidelines to seek a special contract with the department to
3534 accommodate changed circumstances.

3535 (e) Not later than 1 month prior to filing a new or amended economic development rate or
3536 guidelines to seek a special contract with the department, each distribution company shall present
3537 the proposed rate and guidelines to the executive office of economic development and the
3538 executive office of energy and environmental affairs.

3539 SECTION 133 1/4. Section 149M of chapter 175 of the General Laws, as appearing in
3540 the 2024 Official Edition, is hereby amended by inserting after the definition of “Consumer” the
3541 following 3 definitions:-

3542 “Consumer product”, any tangible personal property that is distributed in commerce and
3543 is normally used for personal, family or household purposes, including tangible personal
3544 property intended to be attached to or installed in any real property without regard to whether it
3545 is so attached or installed.

3546 “Maintenance agreement”, a contract for regular maintenance.

3547 “Motor vehicle manufacturer”, a person who: (i) manufactures, distributes or produces
3548 motor vehicles under the person’s own name or label; (ii) is a subsidiary of the person who
3549 manufactures, distributes or produces motor vehicles; (iii) is a corporation which owns 100 per
3550 cent of the corporation, association, partnership or other legal entity who manufactures,
3551 distributes or produces motor vehicles; or (iv) does not manufacture, distribute or produce motor
3552 vehicles but, pursuant to a written contract, licenses the use of its trade name or label to another
3553 person who manufactures, distributes or produces motor vehicles.

3554 SECTION 133 1/2. Said section 149M of said chapter 175, as so appearing, is hereby
3555 further amended by striking out the definition of “Service contract” and inserting in place thereof
3556 the following definition:-

3557 “Service contract”, a contract for a separately stated consideration and for a specific
3558 duration to perform the service, repair, replacement or maintenance of a consumer product,
3559 including, but not limited to, a motor vehicle, or indemnification for service, repair, replacement
3560 or maintenance for the operational or structural failure due to a defect in materials or
3561 workmanship or normal wear and tear, with or without additional provision for incidental
3562 payment or indemnity under limited circumstances, for related expenses, including, but not
3563 limited to, rental and food spoilage; provided, however, that a “service contract” for a motor
3564 vehicle shall include a contract or agreement sold for a separately stated consideration for a
3565 specific duration that provides for any of the following: (i) the repair or replacement of tires or
3566 wheels on a motor vehicle damaged as a result of coming into contact with road hazards,
3567 including, but not limited to, potholes, rocks, wood debris, metal parts, glass, plastic, curbs or
3568 composite scraps; (ii) the removal of dents, dings or creases on a motor vehicle that can be
3569 repaired using the process of paintless dent removal without affecting the existing paint finish

3570 and without replacing vehicle body panels, sanding, bonding or painting; (iii) the repair of small
3571 motor vehicle windshield chips or cracks which may include the replacement of the windshield
3572 for chips or cracks that cannot be repaired; or (iv) the replacement of a motor vehicle or key-fob
3573 in the event that the key or key-fob becomes inoperable or is lost or stolen.

3574 SECTION 133 5/8. Section 149N of said chapter 175, as so appearing, is hereby
3575 amended by striking out, in line 108, the words “tangible personal property” and inserting in
3576 place thereof the following words:- consumer products.

3577 SECTION 133 3/4. Said chapter 175 is hereby further amended by striking out section
3578 149V, as so appearing, and inserting in place thereof the following section:-

3579 Section 149V. (a) The following shall be exempt from sections 149M to 149W, inclusive:
3580 (i) warranties, service contracts or maintenance agreements provided by public utilities that are
3581 regulated by the department of telecommunications and cable or the Federal Communications
3582 Commission, or by an affiliate of such entity, covering customer wiring, transmission devices
3583 serviced by such public utility or warranting services provided by such public utility or its
3584 affiliate; (ii) mechanical breakdown insurance policies offered by insurers otherwise licensed and
3585 regulated pursuant to the laws and regulations of the commonwealth; (iii) warranties, service
3586 contracts or other agreements regarding automobiles under which a licensed motor vehicle dealer
3587 or an affiliate of a licensed motor vehicle dealer is obligated to perform; (iv) warranties offered
3588 by builders as part of a conveyance of real estate; (v) warranties on a product made by the
3589 manufacturer, importer or seller of the product; and (vi) maintenance agreements.

3590 (b) Motor vehicle manufacturers and service contracts on the motor vehicle
3591 manufacturer’s products need only comply with subsection (f) of section 149N and sections

3592 149P, 149Q, 149R and 149U, as applicable, and motor vehicle manufacturers offering service
3593 contracts on the motor vehicle manufacturer's products shall be exempt from licensure under
3594 subsection (c) of section 149N and the requirements of subsection (d) of section 149N.

3595 SECTION 133A. Chapter 184 of the General Laws is hereby amended by adding the
3596 following section:-

3597 Section 36. (a) For the purposes of this section, the following words shall, unless the
3598 context clearly requires otherwise, have the following meanings:

3599 "Affiliate", an entity owned or controlled by an owner or under common control with an
3600 owner.

3601 "Auction" or "public auction", the sale of a housing accommodation under power of sale
3602 in a mortgage loan by public bidding.

3603 "Borrower", a mortgagor of a mortgage loan.

3604 "Deed in lieu," a deed for the collateral property or the housing accommodation that the
3605 mortgagee accepts from the borrower in exchange for the release of the borrower's obligation
3606 under the mortgage loan.

3607 "Designee", a nonprofit organization, established pursuant to chapter 180, which is
3608 selected by members of a tenant association.

3609 "Elderly tenant household", a tenant household in which 1 or more of the residents are
3610 age 65 or older.

3611 “Executive office”, the executive office of housing and livable communities established
3612 in chapter 23B.

3613 “Foreclosure”, a legal proceeding to terminate a borrower’s interest in property instituted
3614 by a mortgagee and regulated under chapter 244.

3615 “Housing accommodation”, a building, structure or part thereof, rented or offered for rent
3616 for living or dwelling purposes, including, but not limited to, a house, apartment, condominium
3617 unit, cooperative unit and other multi-family residential dwelling; provided, that a housing
3618 accommodation shall not include a group residence, homeless shelter, lodging house, orphanage,
3619 temporary dwelling structure or transitional housing; and provided further, that a housing
3620 accommodation shall not include a borrower-occupied housing accommodation if the borrower
3621 is domiciled in the housing accommodation at the initiation of the short-sale, deed in lieu or
3622 foreclosure process.

3623 “Member”, a natural person who is a member of a tenant association.

3624 “Minimum tenant participation percentage”, the minimum percentage of tenants who
3625 shall participate as members of a tenant association as defined by the city or town in a municipal
3626 ordinance or by-law; provided, that the minimum tenant participation percentage shall be not less
3627 than 51 per cent of the tenant-occupied housing units. The percentage shall be calculated based
3628 on the number of tenant-occupied housing units in a property. If more than 1 person is a lessee in
3629 a unit, all of the tenants who are lessees for that unit shall participate as members of the tenant
3630 association for the unit to be counted toward the participating percentage of units.

3631 “Mortgagee”, an entity to whom property is mortgaged, including, but not limited to,
3632 mortgage servicers, lenders in a mortgage agreement and any agent, servant or employee of the

3633 mortgagee or any successor in interest or assignee of the mortgagee's rights, interests or
3634 obligations under the mortgage agreement.

3635 "Mortgage loan", a loan secured wholly or partially by a mortgage on a housing
3636 accommodation.

3637 "Owner", a person, firm, partnership, corporation, trust, organization, limited liability
3638 company or other entity, or its successors or assigns that holds title to real property.

3639 "Purchase contract", a binding written agreement whereby an owner agrees to sell
3640 property, including, but not limited to, a purchase and sale agreement, contract of sale, purchase
3641 option or other similar instrument.

3642 "Purchaser", a party who has entered into a purchase contract with an owner and who
3643 will, upon performance of the purchase contract, become the new owner of the property.

3644 "Sale", an act by which an owner conveys, transfers or disposes of property by deed or
3645 otherwise, whether through a single transaction or a series of transactions; provided, that a
3646 disposition of housing by an owner to an affiliate of such owner shall not constitute a sale.

3647 "Short-sale", a sale approved by the mortgagee to a bona fide purchaser at a price that is
3648 less than the borrower's existing debt on the housing accommodation.

3649 "Successor", an entity through which a tenant association may take title to the property,
3650 which may be a corporation with the sole stockholder being the tenant association, a housing
3651 cooperative organized under chapter 157B, a limited liability company in which the tenant
3652 association is the member, a limited partnership in which the tenant association is a general
3653 partner or when permitted by the municipality's ordinance, a joint venture between any of such

3654 entities and another party with: (i) the requisite experience in acquiring, developing and owning
3655 residential property; and (ii) the financial capacity to guaranty financing of the purchase
3656 transaction.

3657 “Tenant”, a natural person who has: (i) entered into an express written lease or rental
3658 agreement with the owner for exclusive possession of the premises for at least 6 months; or (ii)
3659 paid rent to the owner and the owner has accepted said rent for at least 6 months.

3660 “Tenant association”, an organization with a membership limited to present tenants of a
3661 property that is: (i) registered with the municipality that has adopted an ordinance or by-law
3662 consistent with this section; or (ii) a non-profit organization incorporated under chapter 180.

3663 “Third-party offer”, an offer to purchase the mortgaged property for valuable
3664 consideration by an arm’s length purchaser; provided, that a third-party offer shall not include an
3665 offer by the borrower or tenants.

3666 “Third-party purchaser”, a purchaser who is not a tenant association, a designee or an
3667 affiliate.

3668 (b)(1) A city or town may accept this section, in the manner provided in section 4 of
3669 chapter 4, through ordinance or by-law, to establish a tenant right to purchase property. This
3670 section shall take effect no later than 180 days after such acceptance. A city or town may at any
3671 time revoke its acceptance of this section by vote of the legislative body, subject to the charter of
3672 the municipality. The revocation shall not affect agreements relative to tenants’ right to purchase
3673 that have already been asserted prior to the revocation.

3674 (2) A municipal ordinance or by-law may contain provisions that establish:

3675 (i) tenancy protections for non-elderly tenant households that do not participate in the
3676 tenant association;

3677 (ii) exclusion of applicability to properties with fewer than a designated number of units;
3678 provided, that different exclusion numbers may be adopted for owner-occupied properties and
3679 properties with no owner occupancy;

3680 (iii) criteria for designees;

3681 (iv) a tenant association's ability to exercise rights pursuant to this section through a joint
3682 venture or partnership with another entity with experience in developing, owning or operating
3683 residential real estate or an entity that has the financial capacity to guaranty the financing of the
3684 purchase transaction; and

3685 (v) exclusion of classes of properties in addition to the classes of properties enumerated
3686 in subsection (k).

3687 (c) In any city or town that votes to adopt this section, an owner of a residential building
3688 shall: (i) notify the municipality and each tenant household, in writing by hand delivery and
3689 United States mail, of the owner's intention to sell the property, with copy of the municipality's
3690 prepared summary of the ordinance adopted hereunder; and (ii) provide a tenant association with
3691 the minimum tenant participation percentage an opportunity to make an offer to purchase the
3692 property prior to entering into an agreement to sell such property pursuant to the time periods in
3693 this section; provided, that no owner shall be under any obligation to enter into an agreement to
3694 sell such property to the tenants.

3695 (d) A tenant association with the minimum tenant participation percentage may select a
3696 successor or a designee to act on its behalf as purchaser of the property and shall give the owner
3697 and the municipality notice of its selection.

3698 (e)(1) A tenant association with the minimum tenant participation percentage, or its
3699 successor or designee, may, within 15 days after receipt of the notice of the owner's intention to
3700 sell, submit an offer to the owner to purchase the property.

3701 (2) A tenant association, successor or designee's failure to submit a timely offer under
3702 paragraph (1) shall constitute an irrevocable waiver of the tenants' rights under this section. If
3703 the owner and the tenant association, successor or designee, have not entered into an agreement
3704 within 15 days after receipt of the notice of the owner's intent to sell, the owner may enter into
3705 an agreement to sell the property to a third party, subject to subsections (f) to (i), inclusive.

3706 (f) Upon execution of any purchase contract with a third party, the owner shall, within 7
3707 days, submit a copy of the contract along with a proposed purchase contract for execution by the
3708 tenant association, successor or designee. If the tenant association, successor or designee elect to
3709 purchase the property, the tenant association, successor or designee shall within 30 days after the
3710 receipt of the third-party purchase contract and the proposed purchase contract, execute the
3711 proposed purchase contract or such other agreement as is acceptable to both parties. The time
3712 periods set forth in this subsection may be extended by agreement between the owner and the
3713 tenant association, successor or designee. Except as otherwise specified in subsection (h), the
3714 terms and conditions of the proposed purchase contract offered to the tenant association,
3715 successor or designee shall be the same as those of the executed third-party purchase contract.

(g) After receipt of the third-party purchase contract pursuant to subsection (f), the tenant association, successor or designee may, within the 15-day time period prescribed in said subsection (f), make a counteroffer by executing and submitting to the owner an amended proposed purchase contract. Failure by the tenant association, successor or designee to execute the purchase contract or submit a counteroffer within the 15-day period in subsection (f) shall constitute a waiver of the tenants' right to purchase. If the tenant association, successor or designee submits a counteroffer, the owner shall have 15 days from the date it receives the amended proposed purchase contract to execute the amended proposed purchase contract or reject, in writing, the counteroffer; provided, however, that if the owner rejects a counteroffer, it shall not subsequently enter into any purchase contract with a third party on terms that are the same as, or materially more favorable to the proposed third party purchaser, than the economic terms and conditions in the counteroffer proposed by the tenant association, successor or designee, unless the owner first provides a copy of such new third-party purchase contract and a new proposed purchase contract for execution by the tenant association, successor or designee, which shall contain the same terms and conditions as the newly executed third party purchase contract, except as otherwise specified by subsection (h), and the tenant association, successor or designee shall have 30 days from the date they receive the third-party purchase contract and the proposed purchase contract to execute the proposed purchase contract or such other agreement as is acceptable to the owner and the tenant association, successor or designee.

(h) Any purchase contract offered to, or proposed by, the tenant association, successor or designee shall include at a minimum the following terms:

(i) the earnest money deposit shall not exceed the lesser of: (A) the deposit in the third-party purchase contract; (B) 5 per cent of the sale price; or (C) \$250,000; provided, however, that

3739 the owner and the tenant association, successor or designee may agree to modify the terms of the
3740 earnest money deposit; and provided, further, that the earnest money deposit shall be held under
3741 commercially-reasonable terms by an escrow agent selected jointly by the owner and the tenant
3742 association, successor or designee;

3743 (ii) the earnest money deposit shall be refundable for not less than 90 days from the date
3744 of execution of the purchase contract or such greater period as provided for in the third-party
3745 purchase contract; provided, however, that if the owner unreasonably delays the buyer's ability
3746 to conduct due diligence during the 90-day period, the earnest money deposit shall continue to be
3747 refundable for a period greater than 90 days. After the expiration of the specified time period, the
3748 earnest money deposit shall be forfeited and the right to purchase of the tenant association,
3749 successor or designee shall be irrevocably waived.

3750 (i) The tenant association, successor or designee shall have 160 days from execution of
3751 the purchase and sale agreement to perform all due diligence, secure financing and close on the
3752 purchase of the property. Failure to exercise the purchase option within 160 days shall constitute
3753 a waiver of the purchase option by the tenant association, successor or designee.

3754 (j) Any notice required by this section shall be deemed to have been provided when
3755 delivered in person or mailed by certified or registered mail, return receipt requested, to the party
3756 to whom notice is required. Notice shall be deemed to have been provided when either: (i) the
3757 notice is delivered in hand to the tenant or an adult member of the tenant's household; or (ii) the
3758 notice is sent by first class mail and a copy is left in, or under the door of, the tenant's dwelling
3759 unit. A notice to the affected municipality shall be sent to the chief executive officer of the
3760 municipality.

3761 (k) This section shall not apply to:

3762 (i) property that is the subject of a government taking by eminent domain or a negotiated
3763 purchase in lieu of eminent domain;

3764 (ii) a proposed sale to a purchaser pursuant to terms and conditions that preserve
3765 affordability, as determined by the executive office;

3766 (iii) any sale of publicly-assisted housing, as defined in section 1 of chapter 40T;

3767 (iv) rental units in any hospital, skilled nursing facility or health facility;

3768 (v) rental units in a nonprofit facility that has the primary purpose of providing short-term
3769 treatment, assistance or therapy for alcohol, drug or other substance abuse; provided, that such
3770 housing is incident to the recovery program; and provided further, that the client has been
3771 informed in writing of the temporary or transitional nature of the housing;

3772 (vi) rental units in a nonprofit facility: (A) that provides a structured living environment
3773 that has the primary purpose of helping homeless persons obtain the skills necessary for
3774 independent living in permanent housing; (B) where occupancy is restricted to a limited and
3775 specific period of time of not more than 24 months; and (C) where the client has been informed
3776 in writing of the temporary or transitional nature of the housing at its inception;

3777 (vii) public housing units managed by the local housing authority;

3778 (viii) federal public housing units that are subsidized and regulated under federal law, to
3779 the extent such applicable federal law expressly preempts this section;

3780 (ix) any residential property where the owner is a natural person who owns not more than
3781 6 residential rental units in the municipality and who resides in the commonwealth;

3782 (x) any unit that is held in trust on behalf of a disabled individual who permanently
3783 occupies the unit, or a unit that is permanently occupied by a disabled parent, sibling, child or
3784 grandparent of the owner of that unit; or

3785 (xi) any rental unit that is owned or managed by a college or university for the express
3786 purpose of housing students.

3787 (l) The tenant association, successor or designee shall ensure that its purchase of the
3788 property will not result in the displacement of any elderly tenant households that choose not to
3789 participate in the purchase of the property.

3790 (m)(1) An owner shall give notice to each tenant household of a housing accommodation
3791 of the intention to sell the housing accommodation by way of short-sale to avoid foreclosure or
3792 its intention of accepting a deed in lieu. Such notice shall be mailed by regular and certified mail,
3793 with a simultaneous copy to the attorney general, the secretary of the executive office and to the
3794 municipality adopting this section, within 2 business days of the owner's submission of a request
3795 or application to the mortgagee for permission to sell the housing accommodation by way of
3796 short-sale or to accept a deed in lieu. This notice shall also include a statement of the rights
3797 provided by this section.

3798 (2) No mortgagee shall accept any third party offers or deem the owner's application for
3799 short-sale submitted for review unless and until the mortgagee receives documentation in a form
3800 approved by the attorney general demonstrating that the tenants of the housing accommodation
3801 have been informed of the owner's intent to seek a short-sale or deed in lieu and the tenants have

3802 expressed their interest in exercising a right of first refusal within 60 days, assigning that right of
3803 first refusal, or the tenants have waived those rights. If the tenants have not affirmatively
3804 expressed their interest in exercising a right of first refusal or in assigning that right within 60
3805 days or have not affirmatively waived that right within 60 days, the tenants' rights shall be
3806 deemed waived.

3807 (3) Before a housing accommodation may be transferred by short-sale or deed in lieu, the
3808 owner shall notify each tenant household, with a simultaneous copy to the attorney general, the
3809 secretary of the executive office and the municipality adopting this section, by regular and
3810 certified mail, of any bona fide offer that the mortgagee intends to accept. Before any short-sale
3811 or transfer by deed in lieu, the owner shall give each tenant household such a notice of the offer
3812 only if households constituting at least 51 per cent of the households occupying the housing
3813 accommodation notify the owner, in writing, that they collectively desire to receive information
3814 relating to the proposed sale. Tenants may indicate this desire within the same notice described
3815 in paragraph (2). Any notice of the offer required to be given under this subsection shall include
3816 the price, calculated as a single lump sum amount, of any promissory notes offered in lieu of
3817 cash payment.

3818 (4) A group of tenants representing at least 51 per cent of the households occupying the
3819 housing accommodation that are entitled to notice under paragraph (3) shall have the collective
3820 right to purchase, in the case of a third party offer that the mortgagee intends to accept, provided
3821 that the group of tenants shall:

3822 (A) submit to the owner reasonable evidence that the tenants of at least 51 per cent of the
3823 occupied units in the housing accommodation have approved the purchase of the housing
3824 accommodation;

3825 (B) submit to the owner a proposed purchase and sale agreement on substantially
3826 equivalent terms and conditions within 60 days of receipt of notice of the offer made under
3827 paragraph (3);

3828 (C) obtain a binding commitment for any necessary financing or guarantees within an
3829 additional 90 days after execution of the purchase and sale agreement; and

3830 (D) close on such purchase within an additional 90 days after the end of the 90-day
3831 period in clause (C).

3832 (5) No owner shall unreasonably refuse to enter into or unreasonably delay the execution
3833 or closing on a purchase and sale with tenants who have made a bona fide offer to meet the price
3834 and substantially equivalent terms and conditions of an offer for which notice is required to be
3835 given pursuant to paragraph (3). Failure of the tenants to submit such a purchase and sale
3836 agreement within the first 60-day period, to obtain a binding commitment for financing within
3837 the additional 90-day period or to close on the purchase within the second 90-day period, shall
3838 serve to terminate the rights of such tenants to purchase. The time periods provided in this
3839 paragraph may be extended by agreement. Nothing herein shall be construed to require an owner
3840 to provide financing to such tenants. A group or association of tenants that has the right to
3841 purchase pursuant to this subsection, at its election, may assign its purchase right pursuant to this
3842 subsection to the city or town in which the housing accommodation is located, or the housing
3843 authority of the city or town in which the housing accommodation is located, or an agency of the

commonwealth, nonprofit, community development corporation, affordable housing developer, or land trust, for the purpose of permanently continuing the use of the housing accommodation as affordable rental housing.

(6) The right of first refusal created in this subsection shall inure to the tenants for the time periods provided in paragraph (4), beginning on the date of notice to the tenants under paragraph (1). The effective period for such right of first refusal shall begin anew for each different offer to purchase that the mortgagee intends to accept. The right of first refusal shall not apply with respect to any offer received by the owner for which a notice is not required pursuant to paragraph (3).

(7) In any instance where the tenants are not the successful purchaser of the housing accommodation, the mortgagee shall provide evidence of compliance with this section by filing an affidavit of compliance with the attorney general, the secretary of the executive office and the registry of deeds for the county and district where the property is located within 7 days of the sale.

(8) An owner shall not evict a tenant to avoid application of this subsection.

(9) An aggrieved tenant may seek damages under chapter 93A and may file a complaint with the attorney general. A tenant may seek damages, including compensatory relief in the form of a percentage of the sales price, injunctive relief in the form of specific performance to compel transfer of the property or both compensatory and injunctive relief. Nothing in this subsection shall be construed to limit or constrain the rights tenants currently have under applicable laws, including, but not limited to, chapters 186 and 186A. At all times, all parties shall negotiate in good faith.

3866 (10) The attorney general shall enforce this subsection and shall promulgate rules and
3867 regulations necessary for enforcement. The attorney general may seek injunctive, declaratory and
3868 compensatory relief on behalf of tenants and the commonwealth in a court of competent
3869 jurisdiction. The attorney general shall post a sample intent to sell notice, sample proof of notice
3870 to tenants, sample notice of offer and other necessary documents.

3871 (n)(1) When a mortgagee seeks judicial determination of the right to foreclose, the
3872 mortgagee shall provide a copy of the complaint by regular and certified mail to the tenants of
3873 the housing accommodation and to the municipality adopting this section. The mortgagee shall
3874 also provide tenants and the municipality, by regular and certified mail, with a copy of any order
3875 of notice issued by the land court, if applicable, within 5 days of issuance.

3876 (2) The mortgagee shall provide each tenant household and the municipality adopting this
3877 section, by regular and certified mail, a copy of all notices of sale published pursuant to section
3878 14 of chapter 244. A copy shall be provided simultaneously with the successive publication
3879 notices.

3880 (3) Not later than 5 business days before the auction of a housing accommodation, the
3881 tenants shall inform the mortgagee, in writing, if a group of tenants representing at least 51 per
3882 cent of the households occupying the housing accommodation or an entity to which they have
3883 assigned their right of first refusal intend to exercise their right of first refusal at auction and
3884 desire to receive information relating to the proposed auction.

3885 (4)(A) A group of tenants representing at least 51 per cent of the households occupying
3886 the housing accommodation or an entity to which they have assigned their right of first refusal

3887 may exercise their collective right to purchase the housing accommodation, in the event of a
3888 third party offer at auction that the mortgagee receives; provided, that the group of tenants shall:

3889 (i) submit to the mortgagee reasonable evidence that the tenants of at least 51 per cent of
3890 the occupied homes in the housing accommodation have approved the purchase of the housing
3891 accommodation;

3892 (ii) submit to the mortgagee a proposed purchase and sale agreement on substantially
3893 equivalent terms and conditions to that received by the mortgagee in the third-party offer within
3894 60 days of receipt of notice of the bid made under paragraph (3);

3895 (iii) obtain a binding commitment for any necessary financing or guarantees within an
3896 additional 90 days after execution of the purchase and sale agreement; and

3897 (iv) close on such purchase within an additional 90 days after the end of the 90-day
3898 period under clause (iii).

3899 (B) No mortgagee shall unreasonably refuse to enter into, or unreasonably delay, the
3900 execution or closing on a purchase and sale with tenants who have made a bona fide offer to
3901 meet the price and substantially equivalent terms and conditions of a bid received at auction.
3902 Failure of the tenants to submit such a purchase and sale agreement within the first 60-day
3903 period, to obtain a binding commitment for financing within the additional 90-day period or to
3904 close on the purchase within the second 90-day period, shall serve to terminate the rights of such
3905 tenants to purchase. The time periods provided in this paragraph may be extended by agreement.

3906 (C) Nothing herein shall be construed to require a mortgagee to provide financing to such
3907 tenants. A group or association of tenants that has the right to purchase hereunder, at its election,

3908 may assign its purchase right hereunder to the city, town, housing authority, or agency of the
3909 commonwealth, nonprofit, community development corporation, affordable housing developer,
3910 or land trust for the purpose of permanently continuing the use of the housing accommodation as
3911 affordable rental housing.

3912 (D) If there are no third-party bids at auction for the housing accommodation, the tenants
3913 shall have a right of first refusal whenever the mortgagee seeks to sell the housing
3914 accommodation. The tenants shall be notified of any offers the mortgagee intends to accept and
3915 shall be given an opportunity to meet the price and substantially the terms of a third-party offer
3916 based on the same timeline described in paragraph (4).

3917 (5) The right of first refusal created herein shall inure to the tenants for the time periods
3918 herein before provided, beginning on the date of notice to the tenants under paragraph (1).

3919 (6) In any instance where the tenants are not the successful purchaser of the housing
3920 accommodation, the seller of such unit shall provide evidence of compliance with this section by
3921 filing an affidavit of compliance with the attorney general, the secretary of the executive office
3922 and the registry of deeds for the county and district where the property is located within 7 days of
3923 the sale.

3924 (7) An owner shall not evict a tenant to avoid application of this subsection.

3925 (8) An aggrieved tenant may seek damages under chapter 93A and may file a complaint
3926 with the attorney general. A tenant may seek damages including a percentage of the sales price
3927 or injunctive relief in the form of specific performance to compel transfer of property, or both
3928 compensatory and injunctive relief. Nothing in this subsection shall be construed to limit or

3929 constrain in any way the rights tenants currently have under applicable laws, including, but not
3930 limited to, chapters 186 and 186A. At all times, all parties shall negotiate in good faith.

3931 (9) The attorney general shall enforce this subsection and shall promulgate rules and
3932 regulations necessary for enforcement. The attorney general may seek injunctive, declaratory,
3933 and compensatory relief on behalf of tenants and the commonwealth in a court of competent
3934 jurisdiction. The attorney general shall post a sample intent to sell notice, sample proof of notice
3935 to tenants, sample notice of offer, and other necessary documents.

3936 SECTION 133A1/4. Chapter 270 of the General Laws is hereby amended by adding the
3937 following section:-

3938 Section 30. (a) For the purposes of this section, the following words shall, unless the
3939 context clearly requires otherwise, have the following meanings:

3940 “Department”, the department of public health.

3941 “Food”, a food, food product, food ingredient, dietary ingredient, dietary supplement or
3942 beverage for human consumption.

3943 “Kratom product”, a food product or dietary ingredient containing any part of the leaf of
3944 the *Mitragyna speciosa* plant, or a kratom extract, manufactured as a food, powder, capsule, pill,
3945 beverage or other edible product, including, but not limited to, any material, compound, mixture
3946 or preparation containing kratom.

3947 “Kratom retailer”, a person or entity who sells maintains or distributes kratom or
3948 advertises, represents or holds itself out as selling, maintaining or distributing kratom products.

3949 “Manufacture”, the production, preparation, compounding or processing of a kratom
3950 product, either directly or indirectly or by extraction from substances of natural origin, or
3951 independently by means of chemical synthesis or by a combination of extraction and chemical
3952 synthesis; provided, that manufacture shall include, but shall not be limited to, any packaging or
3953 repackaging of a kratom product or labeling or relabeling of its container.

3954 (b) A kratom retailer shall not sell, distribute or offer for sale a kratom product without a
3955 label clearly stating: (i) the name and address of its manufacturer; (ii) a full list of its ingredients;
3956 and (iii) directions for its safe and effective use, including the recommended serving size.

3957 (c) A kratom retailer shall not distribute, advertise, sell or offer for sale:

3958 (i) a kratom product that is contaminated with a dangerous non-kratom substance;
3959 provided, that a kratom product shall be considered to be contaminated with a dangerous non-
3960 kratom substance if the kratom product contains a poisonous or otherwise deleterious non-
3961 kratom ingredient, including, but not limited to, a controlled substance or controlled substance
3962 analogue as both are defined in section 1 of chapter 94C;

3963 (ii) a kratom product containing a level of 7-hydroxymitragynine in the alkaloid fraction
3964 that is greater than 2 per cent of the overall alkaloid composition of the product; or

3965 (iii) a kratom product containing any synthetic alkaloids including synthetic mitragynine,
3966 synthetic 7-hydroxymitragynine or any other synthetically derived compounds of the kratom
3967 plant.

3968 (d) A kratom retailer shall not knowingly distribute, sell or offer for sale any kratom
3969 product to an individual under 21 years of age.

3970 (e) A kratom retailer who violates subsection (b) or subsection (c) shall be subject to an
3971 administrative fine of not more than \$500 for the first offense and not more than \$1,000 for a
3972 second or subsequent offense. Upon the request of a person to whom an administrative fine is
3973 issued, the department shall conduct a hearing in accordance with chapter 30A.

3974 (f) A kratom retailer shall not be in violation of subsection (b) or subsection (c) if it can
3975 show by a preponderance of the evidence that it relied in good faith upon the representations of a
3976 manufacturer, processor, packer or distributor of a kratom product or food represented to be a
3977 kratom product that such product was in compliance with this section.

3978 (g) A kratom retailer who violates subsection (d) shall be punished by a fine of \$1,000 for
3979 the first offense, \$2,000 for a second offense and \$5,000 for a third or subsequent offense. Upon
3980 the request of a person to whom an administrative fine is issued, the department shall conduct a
3981 hearing in accordance with chapter 30A.

3982 (h) The department shall promulgate rules and regulations for the administration and
3983 enforcement of this section, including, but not limited to, standards for accurate labeling and for
3984 testing kratom products for safety.

3985 SECTION 133A1/2. Section 5B of chapter 271 of the General Laws, as appearing in the 2024
3986 Official Edition, is hereby amended by striking out, in lines 55 and 56, the words “whether live
3987 or simulcast” and inserting in place thereof the following words:- whether live, simulcast or
3988 historical.

3989 SECTION 133B1/3. Section 17A of said chapter 271, as so appearing, is hereby amended
3990 by inserting after the word “5C”, in line 20, the following words:- or section 5D.

3991 SECTION 133AA 1/4. Chapter 175 of the General Laws is hereby amended by striking
3992 out section 162Z and inserting in place thereof the following section:-

3993 Section 162Z. (a) As used in this section, the following words shall, unless the context
3994 clearly requires otherwise, have the following meanings:

3995 “Designated responsible producer” or “DRP”, a person responsible for the limited lines
3996 travel insurance producer’s compliance with the travel insurance laws, rules and regulations.

3997 “Limited lines travel insurance producer”, a: (i) managing general agent or third-party
3998 administrator; (iii) licensed insurance producer, including a limited lines producer; or (iii) travel
3999 administrator.

4000 “Offer and disseminate”, to provide general information, including a description of the
4001 coverage and price, as well as processing the application, collecting premiums.

4002 “Travel administrator”, a person who directly or indirectly underwrites, collects charges,
4003 collateral or premiums from, or adjusts or settles claims on residents of the commonwealth, in
4004 connection with travel insurance; provided, that a person shall not be considered a travel
4005 administrator if that person’s only actions that would otherwise cause it to be considered a travel
4006 administrator are among the following:

4007 (i) a person working for a travel administrator to the extent that the person’s activities are
4008 subject to the supervision and control of the travel administrator;

4009 (ii) an insurance producer selling insurance or engaged in administrative and claims-
4010 related activities within the scope of the producer’s license;

4011 (iii) a travel retailer offering and disseminating travel insurance and registered under the
4012 license of a limited lines travel insurance producer in accordance with this section;

4013 (iv) an individual adjusting or settling claims in the normal course of that individual's
4014 practice or employment as an attorney-at-law and who does not collect charges or premiums in
4015 connection with insurance coverage; or

4016 (v) a business entity that is affiliated with a licensed insurer while acting as a travel
4017 administrator for the direct and assumed insurance business of an affiliated insurer.

4018 "Travel insurance", insurance coverage for personal risks incidental to planned travel as
4019 defined in section 1 of chapter 175M.

4020 "Travel retailer", a business entity that makes, arranges or offers planned travel and may
4021 offer and disseminate travel insurance as a service to its customers on behalf of and under the
4022 direction of a limited lines travel insurance producer.

4023 (b)(1) The commissioner may issue to an individual or business entity a limited lines
4024 travel insurance producer license if that individual or business entity has filed an application for
4025 a limited lines travel insurance producer license with the commissioner in a form and manner
4026 prescribed by the commissioner. A limited lines travel insurance producer license may authorize
4027 a limited lines travel insurance producer to sell, solicit or negotiate travel insurance through a
4028 licensed insurer. No person shall act as a limited lines travel insurance producer or travel retailer
4029 unless properly licensed or registered, respectively.

4030 (2) A travel retailer may offer and disseminate travel insurance under a limited lines
4031 travel insurance producer license if the following conditions are met:

4032 (i) the limited lines travel insurance producer or travel retailer provides to purchasers of
4033 travel insurance: (A) a description of the material terms or the actual material terms of the
4034 insurance coverage; (B) a description of the process for filing a claim; (C) a description of the
4035 review or cancellation process for the travel insurance policy; and (D) the identity and contact
4036 information of the insurer and limited lines travel insurance producer;

4037 (ii) at the time of licensure, the limited lines travel insurance producer shall establish and
4038 maintain a register, on a form prescribed by the commissioner, of each travel retailer that offers
4039 travel insurance on the limited lines travel insurance producer's behalf; provided, however, that
4040 the register shall be maintained and updated annually by the limited lines travel insurance
4041 producer and shall include the name, address and contact information of the travel retailer and an
4042 officer or person who directs or controls the travel retailer's operations and the travel retailer's
4043 federal tax identification number; provided further, that the limited lines travel insurance
4044 producer shall submit the register to the division of insurance upon reasonable request and shall
4045 certify that the travel retailer registered complies with 18 U.S.C. section 1033; and provided
4046 further, that the grounds for the suspension, revocation and the penalties applicable to resident
4047 insurance producers under this chapter and chapter 176D shall be applicable to the limited lines
4048 travel insurance producers and travel retailers;

4049 (iii) the limited lines travel insurance producer has designated 1 of its employees, who is
4050 a licensed individual producer, as the DRP;

4051 (iv) the DRP, president, secretary, treasurer and any other officer or person who directs or
4052 controls the limited lines travel insurance producer's insurance operations shall comply with the

4053 fingerprinting requirements applicable to insurance producers in the resident state of the limited
4054 lines travel insurance producer;

4055 (v) the limited lines travel insurance producer has paid all applicable insurance producer
4056 licensing fees; and

4057 (vi) the limited lines travel insurance producer shall require each employee and
4058 authorized representative of the travel retailer, whose duties include offering and disseminating
4059 travel insurance, to receive a program of instruction or training, which may be subject, at the
4060 discretion of the commissioner, to review and approval by the commissioner; provided, however,
4061 that the training material shall, at a minimum, contain instructions on the types of insurance
4062 offered, ethical sales practices and required disclosures to prospective customers.

4063 (c) Any travel retailer offering or disseminating travel insurance shall make available to
4064 prospective purchasers, brochures or other written materials that have been approved by the
4065 travel insurer. Such materials shall include information which, at a minimum: (i) provides the
4066 identity and contact information of the insurer and the limited lines travel insurance producer; (ii)
4067 explains that the purchase of travel insurance is not required in order to purchase any other
4068 product or service from the travel retailer; and (iii) explains that an unlicensed travel retailer is
4069 permitted to provide general information about the insurance offered by the travel retailer,
4070 including a description of the coverage and price, but is not qualified or authorized to answer
4071 technical questions about the terms and conditions of the insurance offered by the travel retailer
4072 or to evaluate the adequacy of the customer's existing insurance coverage.

4073 (d) A travel retailer's employee or authorized representative who is not licensed as a
4074 limited lines travel insurance producer shall not: (i) evaluate or interpret the technical terms,

4075 benefits and conditions of the offered travel insurance coverage; (ii) evaluate or provide advice
4076 concerning a prospective purchaser's existing insurance coverage; or (iii) hold oneself out as a
4077 licensed insurer, licensed producer or insurance expert.

4078 (e) Notwithstanding any other provision in law, a travel retailer, whose insurance-related
4079 activities, and those of its employees and authorized representatives, are limited to offering and
4080 disseminating travel insurance on behalf of and under the direction of a limited lines travel
4081 insurance producer, meeting the conditions stated in this section, may receive related
4082 compensation, upon registration by the limited lines travel insurance producer as described in
4083 subsection (b).

4084 (f) Travel insurance may be provided under an individual policy or under a group or
4085 blanket policy.

4086 (g) As the insurer designee, the limited lines travel insurance producer shall be
4087 responsible for the acts of the travel retailer and shall use reasonable means to ensure compliance
4088 by the travel retailer with this section.

4089 (h) Any person licensed in a major line of authority as an insurance producer may sell,
4090 solicit and negotiate travel insurance. A property and casualty insurance producer shall not be
4091 required to become appointed by an insurer in order to sell, solicit or negotiate travel insurance.

4092 SECTION 133AA 1/2. The General Laws are hereby further amended by inserting after
4093 chapter 175M the following chapter:-

4094 Chapter 175N

4095 TRAVEL INSURANCE

4096 Section 1. (a) The purpose of this chapter shall be to promote the public welfare by
4097 creating a comprehensive legal framework within which travel insurance may be sold in the
4098 commonwealth.

4099 (b) The requirements of this chapter shall apply to travel insurance that covers any
4100 resident of the commonwealth, and is sold, solicited, negotiated or offered in the commonwealth,
4101 and policies and certificates are delivered or issued for delivery in the commonwealth. This
4102 chapter shall not apply to cancellation fee waivers or travel assistance services, except as
4103 expressly provided herein.

4104 (c) All other applicable provisions of the commonwealth’s insurance laws shall continue
4105 to apply to travel insurance except that the specific provisions of this chapter shall supersede any
4106 general provisions of law that would otherwise be applicable to travel insurance.

4107 Section 2. As used in this chapter, the following words shall, unless the context clearly
4108 requires otherwise, have the following meanings:

4109 “Aggregator site”, a website that provides access to information regarding insurance
4110 products from more than 1 insurer, including product and insurer information, for use in
4111 comparison shopping.

4112 “Blanket travel insurance”, a policy of travel insurance issued to any eligible group
4113 providing coverage for specific classes of persons defined in the policy with coverage provided
4114 to all members of the eligible group without a separate charge to individual members of the
4115 eligible group.

4116 “Cancellation fee waiver”, a contractual agreement between a supplier of travel services
4117 and its customer to waive some or all of the non-refundable cancellation fee provisions of the
4118 supplier’s underlying travel contract with or without regard to the reason for the cancellation or
4119 form of reimbursement. A cancellation fee waiver shall not be insurance.

4120 “Commissioner”, the commissioner of insurance.

4121 “Eligible group”, solely for the purposes of travel insurance, 2 or more persons who are
4122 engaged in a common enterprise or have an economic, educational or social affinity or
4123 relationship, including, but not limited to, any of the following:

4124 (i) any entity engaged in the business of providing travel or travel services, including, but
4125 not limited to: tour operators, lodging providers, vacation property owners, hotels and resorts,
4126 travel clubs, travel agencies, property managers, cultural exchange programs and common
4127 carriers or the operator, owner or lessor of a means of transportation of passengers, including, but
4128 not limited to, airlines, cruise lines, railroads, steamship companies and public bus carriers,
4129 wherein with regard to any particular travel or type of travel or travelers, all members or
4130 customers of the group shall have a common exposure to risk attendant to such travel;

4131 (ii) any college, school or other institution of learning, covering students, teachers,
4132 employees or volunteers;

4133 (iii) any employer covering any group of employees, volunteers, contractors, board of
4134 directors, dependents or guests;

4135 (iv) any sports team, camp or sponsor thereof, covering participants, members, campers,
4136 employees, officials, supervisors or volunteers;

4137 (v) any religious, charitable, recreational, educational or civic organization, or branch
4138 thereof, covering any group of members, participants or volunteers;

4139 (vi) any financial institution or financial institution vendor, or parent holding company,
4140 trustee or agent of or designated by 1 or more financial institutions or financial institution
4141 vendors, including accountholders, credit card holders, debtors, guarantors or purchasers;

4142 (vii) any incorporated or unincorporated association, including labor unions, having a
4143 common interest, constitution and bylaws and organized and maintained in good faith for
4144 purposes other than obtaining insurance for members or participants of such association covering
4145 its members;

4146 (viii) any trust or the trustees of a fund established, created or maintained for the benefit
4147 of and covering members, employees or customers, subject to the commissioner's permitting the
4148 use of a trust and the state's premium tax provisions in section 3 of 1 or more associations
4149 meeting the requirements of clause (vii);

4150 (ix) any entertainment production company covering any group of participants,
4151 volunteers, audience members, contestants or workers;

4152 (x) any volunteer fire department, ambulance, rescue, police, court or any first aid, civil
4153 defense or other such volunteer group;

4154 (xi) preschools, daycare institutions for children or adults and senior citizen clubs;

4155 (xii) any automobile or truck rental or leasing company covering a group of individuals
4156 who may become renters, lessees or passengers defined by their travel status on the rented or
4157 leased vehicles; provided, that the common carrier, the operator, owner or lessor of a means of

4158 transportation, or the automobile or truck rental or leasing company, shall be the policyholder
4159 under a policy to which this section applies; or

4160 (xiii) any other group where the commissioner has determined that the members are
4161 engaged in a common enterprise, or have an economic, educational or social affinity or
4162 relationship, and that issuance of the policy would not be contrary to the public interest.

4163 “Fulfillment materials”, documentation sent to the purchaser of a travel protection plan
4164 confirming the purchase and providing the travel protection plan’s coverage and assistance
4165 details.

4166 “Group travel insurance”, travel insurance issued to any eligible group.

4167 “Limited lines travel insurance producer”, as defined section 162Z of chapter 175.

4168 “Offer and disseminate”, as defined in section in section 162Z of chapter 175.

4169 “Primary certificate folder”, an individual person who elects and purchases travel
4170 insurance under a group policy.

4171 “Primary policyholder”, an individual person who elects and purchases individual travel
4172 insurance.

4173 “Travel administrator”, as defined in section 162Z of chapter 175.

4174 “Travel assistance services”, non-insurance services for which the consumer is not
4175 indemnified based on a fortuitous event, and where providing the service shall not result in
4176 transfer or shifting of risk that would constitute the business of insurance. Travel assistance
4177 services include, but shall not be limited to: security advisories, destination information,

4178 vaccination and immunization information services, travel reservation services, entertainment,
4179 activity and event planning, translation assistance, emergency messaging, international legal and
4180 medical referrals, medical case monitoring, coordination of transportation arrangements,
4181 emergency cash transfer assistance, medical prescription replacement assistance, passport and
4182 travel document replacement assistance, lost luggage assistance, concierge services and any
4183 other service that may be furnished in connection with planned travel. Travel assistance services
4184 shall not be insurance and not related to insurance.

4185 “Travel insurance”, insurance coverage for personal risks incidental to planned travel
4186 including, but not limited to: (i) an interruption or cancellation of trip or event; (ii) loss of
4187 baggage or personal effects; (iii) damages to accommodations or rental vehicles; (iv) sickness,
4188 accident, disability or death occurring during travel; (v) emergency evacuation; (vi) repatriation
4189 of remains; or (vii) any other contractual obligations to indemnify or pay a specified amount to
4190 the traveler upon determinable contingencies related to travel as approved by the commissioner;
4191 provided, however, that “travel insurance” shall not include major medical plans, which provide
4192 comprehensive medical protection for travelers with trips lasting longer than 6 months,
4193 including, for example, people working or residing overseas as an expatriate, or any other
4194 product that requires a specific insurance producer license.

4195 “Travel protection plans”, plans that provide 1 or more of the following: travel insurance,
4196 travel assistance services and cancellation fee waivers.

4197 “Travel retailer”, a business entity that makes, arranges or offers travel services and may
4198 offer and disseminate travel insurance as a service to its customers on behalf of and under the
4199 direction of a limited lines travel insurance producer.

4200 Section 3. (a) A travel insurer shall pay premium tax, as provided in section 22 of chapter
4201 63, on travel insurance premiums paid by any of the following:

4202 (i) an individual primary policyholder who is a resident of the commonwealth;

4203 (ii) a primary certificate holder who is a resident of the commonwealth who elects
4204 coverage under a group travel insurance policy; or

4205 (iii) a blanket travel insurance policyholder who is a resident in or has its principal place
4206 of business or the principal place of business of an affiliate or subsidiary that has purchased
4207 blanket travel insurance in the commonwealth for eligible blanket group members, subject to any
4208 apportionment rules which apply to the insurer across multiple taxing jurisdictions or that permit
4209 the insurer to allocate premium on an apportioned basis in a reasonable and equitable manner in
4210 those jurisdictions.

4211 (b) A travel insurer shall: (i) document the state of residence or principal place of
4212 business of the policyholder or certificate holder, as required in subsection (a); and (ii) report as
4213 premium only the amount allocable to travel insurance and not any amounts received for travel
4214 assistance services or cancellation fee waivers.

4215 Section 4. Travel protection plans may be offered for 1 price for the combined features
4216 that the travel protection plan offers in the commonwealth if:

4217 (i) the travel protection plan clearly discloses to the consumer, at or prior to the time of
4218 purchase, that it includes travel insurance, travel assistance services and cancellation fee waivers,
4219 as applicable, and provides information and an opportunity, at or prior to the time of purchase,
4220 for the consumer to obtain additional information regarding the features and pricing of each; and

4221 (ii) the fulfillment materials: (A) describe and delineate the travel insurance, travel
4222 assistance services and cancellation fee waivers in the travel protection plan; and (B) include the
4223 travel insurance disclosures and the contact information for persons providing travel assistance
4224 services, and cancellation fee waivers, as applicable.

4225 Section 5. (a) All persons offering travel insurance to residents of the commonwealth
4226 shall be subject to chapter 176D, except as otherwise provided in this section. In the event of a
4227 conflict between this chapter and other provisions of the commonwealth's laws regarding the
4228 sale and marketing of travel insurance and travel protection plans, the provisions of this chapter
4229 shall control.

4230 (b) Offering or selling a travel insurance policy that could never result in payment of any
4231 claims for any insured under the policy shall be an unfair trade practice under chapter 176D.

4232 (c)(1) All documents provided to consumers prior to the purchase of travel insurance,
4233 including, but not limited to, sales materials, advertising materials and marketing materials, shall
4234 be consistent with the travel insurance policy itself, including, but not limited to, forms,
4235 endorsements, policies, rate filings and certificates of insurance.

4236 (2) For travel insurance policies or certificates that contain pre-existing condition
4237 exclusions, information and an opportunity to learn more about the pre-existing condition
4238 exclusions shall be provided any time prior to the time of purchase and in the coverage's
4239 fulfillment materials.

4240 (3) The fulfillment materials and the information described in clause (i) of paragraph (2)
4241 of subsection (b) of section 162Z of chapter 175 shall be provided to a policyholder or certificate
4242 holder as soon as practicable, following the purchase of a travel protection plan. Unless the

4243 insured has either started a covered trip or filed a claim under the travel insurance coverage, a
4244 policyholder or certificate holder may cancel a policy or certificate for a full refund of the travel
4245 protection plan price from the date of purchase of a travel protection plan until at least: (i) 15
4246 days following the date of delivery of the travel protection plan's fulfillment materials by postal
4247 mail; or (ii) 10 days following the date of delivery of the travel protection plan's fulfillment
4248 materials by means other than postal mail. For the purposes of this section, delivery shall mean
4249 handing fulfillment materials to the policyholder or certificate holder or sending fulfillment
4250 materials by postal mail or electronic means to the policyholder or certificate holder.

4251 (4) The travel insurance company shall disclose in the policy documentation and
4252 fulfillment materials whether the travel insurance is primary or secondary to other applicable
4253 coverage.

4254 (5) Where travel insurance is marketed directly to a consumer through an insurer's
4255 website or by others through an aggregator site, it shall not be an unfair trade practice or other
4256 violation of law if an accurate summary or short description of coverage is provided on the web
4257 page; provided, that the consumer shall have access to the full provisions of the policy through
4258 electronic means.

4259 (d) No person offering, soliciting or negotiating travel insurance or travel protection plans
4260 on an individual or group basis shall do so by using negative option or opt out, which would
4261 require a consumer to take an affirmative action to deselect coverage, such as unchecking a box
4262 on an electronic form, when the consumer purchases a trip.

4263 (e) It shall be an unfair trade practice to market blanket travel insurance coverage as free.

(f) Where a consumer's destination jurisdiction requires insurance coverage, it shall not be an unfair trade practice to require that a consumer choose between the following options as a condition of purchasing a trip or travel package: (i) purchasing the coverage required by the destination jurisdiction through the travel retailer or limited lines travel insurance producer supplying the trip or travel package; or (ii) agreeing to obtain and provide proof of coverage that meets the destination jurisdiction's requirements prior to departure.

Section 6. (a) Notwithstanding any other provisions of this chapter, no person shall act or represent itself as a travel administrator for travel insurance in this state unless that person is a: (i) licensed property and casualty insurance producer in this state for activities permitted under that producer license; (ii) managing general agent in the commonwealth; or (iii) third-party administrator in the commonwealth.

(b) An insurer shall be responsible for the acts of a travel administrator administering travel insurance underwritten by the insurer and shall be responsible for ensuring that the travel administrator maintains all books and records relevant to the insurer to be made available by the travel administrator to the commissioner upon request.

Section 7. (a) Notwithstanding any other provision of this chapter, travel insurance shall be classified and filed for purposes of rates and forms under an inland marine line of insurance; provided, however, that travel insurance that provides coverage for sickness, accident, disability or death occurring during travel, either exclusively, or in conjunction with related coverages of emergency evacuation or repatriation of remains, or incidental limited property and casualty benefits such as baggage or trip cancellation, may be filed under either an accident and health line of insurance or an inland marine line of insurance.

4286 (b) Eligibility and underwriting standards for travel insurance may be developed and
4287 provided based on travel protection plans designed for individual or identified marketing or
4288 distribution channels; provided, that said standards shall meet the state’s underwriting standards
4289 for inland marine.

4290 Section 8. The commissioner may promulgate regulations to implement this chapter.

4291 SECTION 133AA 3/4. Section 1 of chapter 176J of the General Laws, as appearing in
4292 the 2024 Official Edition, is hereby amended by striking out the definition of “Health benefit
4293 plan” and inserting in place thereof the following definition:-

4294 “Health benefit plan”, any individual, general, blanket or group policy of health, accident
4295 and sickness insurance issued by an insurer licensed under chapter 175; an individual or group
4296 hospital service plan issued by a non-profit hospital service corporation under chapter 176A; an
4297 individual or group medical service plan issued by a nonprofit medical service corporation under
4298 chapter 176B; and an individual or group health maintenance contract issued by a health
4299 maintenance organization under chapter 176G. Health benefit plans shall not include: accident
4300 only, credit only, limited scope vision or dental benefits if offered separately; hospital indemnity
4301 insurance policies that provide a benefit to be paid to an insured or a dependent, including the
4302 spouse of an insured, on the basis of a hospitalization of the insured or a dependent, that are sold
4303 as a supplement and not as a substitute for a health benefit plan and that meet any requirements
4304 set by the commissioner by regulation; disability income insurance; coverage issued as a
4305 supplement to liability insurance; specified disease insurance that is purchased as a supplement
4306 and not as a substitute for a health plan and meets any requirements the commissioner by
4307 regulation may set; insurance arising out of a workers’ compensation law or similar law;

4308 automobile medical payment insurance; insurance under which benefits are payable with or
4309 without regard to fault and which is statutorily required to be contained in a liability insurance
4310 policy or equivalent self insurance; long-term care if offered separately; coverage supplemental
4311 to the coverage provided under 10 U.S.C. 55 if offered as a separate insurance policy; or any
4312 policy subject to chapter 176K or any similar policies issued on a group basis, Medicare
4313 Advantage plans or Medicare Prescription drug plans. A health plan issued, renewed or delivered
4314 within or without the commonwealth to an individual who is enrolled in a qualifying student
4315 health insurance program under section 18 of chapter 15A shall not be considered a health plan
4316 for the purposes of this chapter and shall be governed by said chapter 15A. The commissioner
4317 may by regulation define other health coverage as a health benefit plan for the purposes of this
4318 chapter.

4319 SECTION 133B. Section 1 of chapter 80 of the acts of 1929 is hereby amended by
4320 striking out the third paragraph, as appearing in section 1 of chapter 477 of the acts of 1989, and
4321 inserting in place thereof the following paragraph:-

4322 Beginning at point L in latitude sixteen thousand four hundred twenty-eight and sixteen
4323 one hundredths feet north and longitude four thousand five hundred thirty-four and seven one
4324 hundredths feet west, said point L being the most northerly point of the harbor line hereby
4325 established on the westerly side of Acushnet river, being located north four degrees, twenty-one
4326 minutes, fifty-five seconds east, true bearing, three hundred sixty-three and fifty-eight one
4327 hundredths feet from Mark 10 on the Manomet mill property in the city of New Bedford; thence
4328 south five degrees, twenty minutes, thirty-three seconds east, true bearing, three thousand seven
4329 hundred fifteen and three tenths feet to point M in latitude twelve thousand seven hundred
4330 twenty-nine feet north and longitude four thousand one hundred eighty-eight and fourteen one

4331 hundredths feet west, said point M being located north seventy-six degrees, forty-two minutes,
4332 fifty-seven seconds east, true bearing, one thousand seven hundred thirteen and forty-seven one
4333 hundredths feet from a stone monument at the southeasterly corner of Belleville avenue and
4334 Sawyer street in the city of New Bedford; thence south thirty-four minutes, two seconds west,
4335 true bearing, one thousand one hundred forty-four and eighty-eight one hundredths feet to point
4336 N in latitude eleven thousand five hundred eighty-four and seventeen one hundredths feet north
4337 and longitude four thousand one hundred ninety-nine and forty-eight one hundredths feet west,
4338 said point N being located south two degrees, thirty-two minutes, forty-nine seconds east, true
4339 bearing, fifty-nine and forty-eight one hundredths feet from Mark 11 on the Coggeshall street
4340 bridge near the city of New Bedford end; thence south twenty-seven degrees, thirteen minutes,
4341 eight seconds west, true bearing, one thousand one hundred two and seven one hundredths feet to
4342 point O in latitude ten thousand six hundred four and fifteen one hundredths feet north and
4343 longitude four thousand seven hundred three and fifty-five one hundredths feet west, said point O
4344 being located south twenty degrees, fifty-one minutes, sixteen seconds east, true bearing, two
4345 hundred eighty-five and seven one hundredths feet from Mark 12 at the easterly end of
4346 Washburn street in the city of New Bedford; thence south twelve degrees, sixteen minutes,
4347 twenty-nine seconds west, true bearing, one thousand five hundred fifty-three and forty-six one
4348 hundredths feet to point P1 in latitude nine thousand eighty-six and twenty one hundredths feet
4349 north and longitude five thousand thirty-three and eighty-two one hundredths feet west, said
4350 point P1 being located north eighty-three degrees, one minute, fifty-seven seconds east, true
4351 bearing, three hundred twenty-two and ninety one hundredths feet from Mark 13 near the
4352 southeasterly corner of Wamsutta wharf in the city of New Bedford; thence south three degrees,
4353 forty-six minutes, fifty seconds west, true bearing, three thousand ninety-eight and seventy-six

4354 one hundredths feet to point Q1 in latitude five thousand nine hundred ninety-four and eighteen
4355 one hundredths feet north and longitude five thousand two hundred thirty-eight and thirteen one
4356 hundredths feet west, said point Q1 being located north seventy-five degrees, thirty-four minutes,
4357 twenty-six seconds east, true bearing, six hundred thirty-six and fifteen one hundredths feet from
4358 a stone monument, at the intersection of the southerly line of Hillman street, extended easterly,
4359 and the westerly line of North Water street extended northerly, in the city of New Bedford;
4360 thence south three degrees, fifteen minutes, forty-four seconds east, true bearing, five hundred
4361 forty-seven and twelve one hundredths feet to point R1 in latitude five thousand four hundred
4362 forty-seven and ninety-five one hundredths feet north and longitude five thousand two hundred
4363 seven feet west, said point R1 being located south eighty-two degrees, nine minutes, twenty
4364 seconds east, true bearing, six hundred eleven and ninety-four one hundredths feet from a stone
4365 monument at the southwest corner of North street and North Water street in the city of New
4366 Bedford; thence south thirteen degrees, forty-five minutes, thirteen seconds east, true bearing,
4367 four hundred forty-eight and seven one hundredths feet to point S in latitude five thousand
4368 twelve and seventy-three one hundredths feet north and longitude five thousand one hundred and
4369 forty-seven one hundredths feet west, said point S being located north seventy-seven degrees,
4370 twenty-eight minutes, twenty-one seconds east, true bearing, fifteen and forty-four one
4371 hundredths feet from Mark 14 on the southerly side of the New Bedford and Fairhaven bridge
4372 near the city of New Bedford end; thence south nine degrees, thirty-seven minutes, fifty-six
4373 seconds east, true bearing, three hundred fifteen and ten one hundredths feet to point T1 in
4374 latitude four thousand seven hundred two and seven one hundredths feet north and longitude five
4375 thousand forty-seven and seventy-five one hundredths feet west, said point T1 being located
4376 north eighty degrees, twenty minutes, forty-six seconds east, true bearing, twenty-eight and three

4377 one hundredths feet from Mark 15 near the southeasterly corner of Union street railway wharf in
4378 the city of New Bedford; thence south forty-eight degrees, fifty-nine minutes, forty-one seconds
4379 east, true bearing, nine hundred sixty-one and thirty-one one hundredths feet to point U1 in
4380 latitude four thousand seventy-one and thirty-two one hundredths feet north and longitude four
4381 thousand three hundred twenty-two and twenty-nine one hundredths feet west, said point U1
4382 being located south sixty-five degrees, fifty-eight minutes, forty-four seconds east, true bearing,
4383 ninety-four and twenty-five one hundredths feet from Mark 16 near the northwesterly corner of
4384 the state pier in the city of New Bedford; thence south fourteen degrees, three minutes, ten
4385 seconds east, true bearing, four thousand three hundred four and five one hundredths feet to point
4386 V1A in latitude one hundred three and ninety-one one hundredths feet south and longitude three
4387 thousand two hundred seventy-seven and twenty-one one hundredths feet west, said point V1A
4388 being located south fifty-two degrees, three minutes, thirty-one seconds west, true bearing, three
4389 thousand two hundred sixty-four and twenty-four one hundredths feet from Mark 2 on the
4390 southwesterly corner of Atlas Tack Company's wharf in the town of Fairhaven; thence north
4391 thirty-one degrees, fifty minutes, one second east, true bearing, two thousand one hundred
4392 eighty-one and forty one hundredths feet to point V2 in latitude one thousand seven hundred
4393 forty-nine and thirty-seven hundredths feet north and longitude two thousand one hundred
4394 twenty-six and sixty-two hundredths feet west, said point V2 south eighty-three degrees, twenty-
4395 two minutes, fifty-six seconds west, true bearing, one thousand four hundred forty-eight and
4396 fifteen hundredths feet from said Mark 2 on the southwesterly corner of Atlas Tack Company's
4397 wharf in the town of Fairhaven; thence south twenty-eight degrees, fourteen minutes, five
4398 seconds east, true bearing, two thousand six hundred forty-seven and seventy-eight hundredths
4399 feet to point V3 in latitude five hundred eighty-three and thirty-six hundredths feet south and

4400 longitude eight hundred seventy-three and ninety-nine hundredths feet west, said point V3 being
4401 located south four degrees, fourteen minutes, nine seconds west, true bearing, two thousand five
4402 hundred six and fifty-four hundredths feet from said Mark 2 on the southwesterly corner of Atlas
4403 Tack Company's wharf in the town of Fairhaven. Point V3 being the southerly end of the harbor
4404 line is hereby established on the easterly side of New Bedford Harbor.

4405 SECTION 134. Section 7A of chapter 271 of the General Laws, as appearing in the 2024
4406 Official Edition, is hereby amended by striking out, in lines 140 and 141, the words "three
4407 bazaars in any single calendar year nor shall such organization conduct more than".

4408 SECTION 135. Item 7002-1509 of section 2 of chapter 140 of the acts of 2024 is hereby
4409 amended by adding the following words:- or other similar visa programs.

4410 SECTION 135A. Section 52 of chapter 206 of the acts of 2024 is hereby amended by
4411 adding the following subsection:-

4412 (f)(1) Notwithstanding subsection (c) and any other general or special law to the contrary,
4413 prior to the proposal process authorized pursuant to subsection (c) for Veterans Memorial skating
4414 rink in the town of Arlington, Flynn Memorial rink in the city of Medford, LoConte Memorial
4415 rink in the city of Medford and Veterans Memorial rink in the city of Waltham, the
4416 commissioner of capital asset management and maintenance, in consultation with the department
4417 of conservation and recreation, shall notify the city or town where the rink is located, in writing,
4418 of its intent to lease the property.

4419 (2) The commissioner of capital asset management and maintenance, in consultation with
4420 the department of conservation and recreation, shall, in the notice pursuant to paragraph (1),
4421 offer to lease and enter into other agreements with the relevant city or town pursuant to

4422 paragraph (1) under terms and conditions that the commissioner of capital asset management and
4423 maintenance, in consultation with the department of conservation and recreation, consider
4424 appropriate, including, but not limited to, rent and other consideration.

4425 (3) Not later than 30 days after the date of the commissioner's written notice, pursuant to
4426 paragraph (1), the city or town shall submit to the commissioner of capital asset management and
4427 maintenance and the department of conservation and recreation its intent to enter into a lease
4428 agreement.

4429 (4) If the city or town pursuant to paragraph (1) submits written notice of its intent to
4430 enter into a lease agreement, the commissioner of capital asset management and maintenance, in
4431 consultation with the department of conservation and recreation, shall promptly commence
4432 negotiations of the lease and other agreements for the use, operation, maintenance, repair and
4433 improvement of the state-owned ice skating rink and facility.

4434 (5) Any lease pursuant to this subsection shall be for a term not to exceed 30 years and
4435 shall include: (i) reservation policies; (ii) proposed reasonable rates that ensure continued public
4436 access; (iii) required financial audits; (iv) policies to encourage the use of the ice skating rink by
4437 persons of all races and nationalities; (v) safety and security plans; (vi) seasonal opening and
4438 closing dates; (vii) hours of operation; and (viii) how the operator will ensure that ice time at the
4439 ice skating rink shall be allocated to user groups in the following order of priority: (A) general
4440 public skating and nonprofit youth groups; (B) school hockey and for-profit youth groups; and
4441 (C) adult organizations or informal groups. Ice time may be allocated at the discretion of the
4442 operator; provided, however, that general public skating shall be booked in 2-hour continuous

4443 blocks at a minimum of 12 hours per week, with a range of times and days that reasonably allow
4444 for public skaters of all ages to participate in public skating sessions.

4445 SECTION 136. Section 3 of chapter 214 of the acts of 2024 is hereby amended by
4446 striking out the figure “2026” and inserting in place thereof the following figure:- 2029.

4447 SECTION 137. Said section 3 of said chapter 214 is hereby further amended by inserting
4448 after the word “Matching” the following words:- , Fiscal Resilience.

4449 SECTION 138. Section 4 of said chapter 214 is hereby further amended by inserting after
4450 the word “Matching” the following words:- , Fiscal Resilience.

4451 SECTION 139. Said chapter 214 is hereby further amended by inserting after section 4
4452 the following section:-

4453 SECTION 4A. Notwithstanding section 2EEEEEE of chapter 29 of the General Laws or
4454 any other general or special law to the contrary, the secretary of administration and finance shall
4455 expend \$200,000,000 from the Commonwealth Federal Matching, Fiscal Resilience and Debt
4456 Reduction Fund established in said section 2EEEEEE of said chapter 29, in consultation with the
4457 executive office of education, the executive office of labor and workforce development and the
4458 executive office of economic development, as a bridge funding reserve to support institutions of
4459 higher education in the commonwealth; provided, that \$175,000,000 shall be expended to
4460 support public institutions of higher education in the commonwealth; provided further, that
4461 \$25,000,000 shall be expended to support private institutions of higher education in the
4462 commonwealth that are nonprofit organizations; provided further, that said funds shall enable
4463 public and private institutions of higher education in the commonwealth to adapt to federal
4464 funding uncertainty, loss or diminishment of federal research funding, to encourage advancement

4465 of scientific research, enhance employment opportunities and talent development and to enable
4466 participation in partnerships and joint ventures related to research and innovation; provided
4467 further, that said amounts may be used as flexible funding support for public and private
4468 institutions of higher education in the commonwealth to fund direct and indirect costs of
4469 research, to retain talent and preserve the pace of scientific discovery in the commonwealth;
4470 provided further, that said amounts may be used as a talent retention and extension reserve to
4471 fund positions in research and teaching, including graduate, post doctorate and other early career
4472 research professionals that would otherwise be unfunded due to reductions in federal indirect
4473 rates, to build a bridge to future funding levels and sources; provided further, that said amounts
4474 may be used to fund research opportunities, partnerships and joint ventures to support research
4475 activity, employment and advance innovation and opportunity in the commonwealth, including
4476 considerations of regional impact and geographic equity, including, but not limited to,
4477 opportunities related to advanced manufacturing and technology, agricultural science and
4478 technology, bioengineering and life sciences, civil engineering and advanced construction
4479 materials, climate and environmental science, ecology, education and child development,
4480 electronics, energy, fisheries and wildlife science and management, forestry science and
4481 management, marine science and technology, medical science and technology, meteorology and
4482 atmospheric science, nursing science, public health and applied health sciences, and robotics;
4483 provided further, that the executive office for administration and finance shall submit quarterly
4484 reports to the clerks of the house of representatives and the senate and the house and senate
4485 committees on ways and means detailing expenditures under this section and said sums shall be
4486 made available through the fiscal year ending June 30, 2028; and provided further, that the

4487 executive office for administration and finance may transfer any funds available under this
4488 section as necessary to carry out the purposes of this section.

4489 SECTION 139A. (a) Notwithstanding section 4 of chapter 128C of the General Laws,
4490 section 11 of chapter 494 of the acts of 1978 or any other general or special law to the contrary,
4491 the running horse racing licensee in Suffolk county that conducted simulcasting as of December
4492 31, 2020 shall not be obligated to make any further payments into the Running Horse
4493 Promotional Trust Fund, established pursuant to said section 11 of said chapter 494.

4494 (b) All amounts in the Running Horse Promotional Trust Fund and in the Running Horse Capital
4495 Improvements Trust Fund, established pursuant to section 11 of chapter 494 of the acts of 1978,
4496 attributable to the running horse racing licensee in Suffolk county that conducted simulcasting as
4497 of December 31, 2020 shall be returned by the Massachusetts gaming commission to said
4498 licensee without further condition.

4499 SECTION 139B. Notwithstanding any general or special law to the contrary, including,
4500 but not limited to, any expiration or repeal of chapter 128A or chapter 128C of the General
4501 Laws, a racing licensee under said chapter 128A who offers in-person wagering on historical
4502 horse races pursuant to section 5D of said chapter 128A, as inserted by section 129B, shall
4503 continue to be a racing licensee for purposes of said section 5D of said chapter 128A and shall be
4504 authorized to continue to offer such wagering for a minimum period of 5 years from the date it
4505 first offers such wagering. Such authorization of any such licensee shall be automatically
4506 extended for successive 5-year periods; provided, that at the end of any 5-year period, the
4507 licensee shall be in good standing and in compliance with said section 5D of said chapter 128A

4508 and the rules and regulations promulgated by the Massachusetts gaming commission pursuant
4509 thereto.

4510 SECTION 140. Item 7002-1522 of section 2 of chapter 238 of the acts of 2024 is hereby
4511 amended by striking out the words “technologies developed with the assistance of” and inserting
4512 in place thereof the following words:- technologies, with preference for companies receiving.

4513 SECTION 141. Item 7002-1523 of said section 2 of said chapter 238 is hereby amended
4514 by striking out the words “proteins developed with the assistance of” and inserting in place
4515 thereof the following words:- proteins, with preference for companies receiving.

4516 SECTION 141A. Subsection (a) of section 280 of said chapter 238 is hereby amended by
4517 striking out the definition of “Tolling period” and inserting in place thereof the following
4518 definition:-

4519 “Tolling period”, the period from January 1, 2023 to January 1, 2027, inclusive.

4520 SECTION 141B. Paragraph (1) of subsection (b) of said section 280 of said chapter 238
4521 is hereby amended by striking out the words “2 years” and inserting in place thereof the
4522 following words:- 4 years.

4523 SECTION 142. Said chapter 238 is hereby further amended by striking out section 320
4524 and inserting in place thereof the following section:-

4525 SECTION 320. Subsection (ii) of section 6 of chapter 62 of the General Laws, inserted
4526 by section 194, and section 38UU of chapter 63 of the General Laws, inserted by section 212,
4527 shall take effect for taxable years beginning on or after January 1, 2027.

4528 SECTION 143. Said chapter 238 is hereby further amended by striking out section 324
4529 and inserting in place thereof the following section:-

4530 SECTION 324. Section 316 shall take effect on January 1, 2033.

4531 SECTION 144. Section 97 of chapter 14 of the acts of 2025 is hereby amended by
4532 striking out the words “January 1, 2026” and inserting in place thereof the following words:-
4533 September 1, 2027.

4534 SECTION 1441/2. Section 2A of chapter 101 of the acts of 2026 is hereby amended by
4535 striking out item 1599-8999 and inserting in place thereof the following item:-

4536 1599-8999 For a transfer to the Transition Age Youth Services Matching Fund established in
4537 section 2QQQQQQ of chapter 29 of the General Laws.....\$1,000,000

4538 SECTION 144A. (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the
4539 General Laws or any other general or special law to the contrary, the commissioner of the
4540 division of capital asset management and maintenance, on behalf of and in consultation with the
4541 board of trustees of the Massachusetts Maritime Academy, may lease, as tenant, real property
4542 comprising not less than 200,000 rentable square feet for the establishment and operation of a
4543 maritime workforce and education campus within a maritime industrial operating environment.

4544 (b) The premises leased pursuant to this section shall: (i) be located within a designated
4545 port area established pursuant to chapter 91 of the General Laws; (ii) have direct frontage on, and
4546 access to, deep water navigable by oceangoing vessels; and (iii) include, or be served by, a
4547 graving dock in excess of 1,000 linear feet in length.

4548 (c) The commissioner may enter into such lease for a term, including any extensions, not
4549 to exceed 50 years. The premises shall be used for the educational, training, research, workforce
4550 development and related purposes of the Massachusetts Maritime Academy and for other uses
4551 reasonably related thereto. The lease shall contain such terms and conditions, including as to
4552 consideration, as determined by the commissioner, in consultation with the board of trustees of
4553 the Massachusetts Maritime Academy. The commissioner may take such actions as are necessary
4554 or convenient to carry out this section without further compliance with the advertisement,
4555 proposal and competitive selection requirements otherwise applicable to the acquisition of real
4556 property by rental for the use of a state agency.

4557 SECTION 145. Notwithstanding any general or special law to the contrary, the members
4558 serving on the advisory board on employee ownership appointed by the governor pursuant to
4559 subsection (a) of section 204 of chapter 6, amended by section 3, on the effective date of this act
4560 shall continue to serve for the remainder of their current terms as originally appointed. Upon the
4561 expiration of the terms of such members, the governor shall appoint 2 members to serve for a
4562 term of 1 year, 3 members to serve a term of 2 years, 3 members to serve a term of 3 years and 3
4563 members to serve for a term of 4 years. Upon the expiration of such terms, the governor shall
4564 appoint all members to serve a term of 4 years.

4565 SECTION 146. Notwithstanding any general or special law to the contrary, any
4566 unexpended funds held by the Massachusetts Alternative and Clean Energy Investment Trust
4567 Fund established in section 35FF of chapter 10 of the General Laws and the Renewable Energy
4568 Trust Fund established in section 9 of chapter 23J of the General Laws shall transfer to the
4569 Climatetech Investment Fund established in section 15 of chapter 23J of the General Laws.

SECTION 146A. The Massachusetts Development Finance Agency shall study the Local Infrastructure Development Program established pursuant to chapter 23L of the General Laws and render recommendations for how to increase the utilization and effectiveness of the program for municipal infrastructure investments. The report shall include recommendations for including a pay-as-you-go infrastructure investment model and other forms of public-private partnerships, with particular consideration of empowering municipal governments to support new growth, job creation, housing development and how to attract private investment. The report shall be submitted to the clerks of the house of representatives and the senate and the chairs of the joint committee on economic development and the chairs of the joint committee on municipalities.

SECTION 147. (a) Notwithstanding any general or special law to the contrary, if the economic assistance coordinating council awards less than the full amount of tax credits authorized by subsection (c) of section 3D of chapter 23A of the General Laws, if the Massachusetts Life Science Center awards less than the full amount of tax credits authorized by subsection (d) of section 5 of chapter 23I of the General Laws or if the Massachusetts clean energy center awards less than the full amount of tax credits authorized by subsection (d) of section 16 of chapter 23J of the General Laws, then, in each case, the balance of unallocated tax credits and the funds budgeted to finance that balance may be carried forward to the next calendar year with the approval of the secretary of administration and finance, in consultation with the secretary of economic development.

(b) Notwithstanding any general or special law to the contrary, the secretary of administration and finance, in consultation with the secretary of economic development, shall have the discretion to reallocate some or all of the tax credits that are carried forward pursuant to subsection (a) among and between the tax credit programs established pursuant to section 3A of

chapter 23A of the General Laws, section 5 of chapter 23I of the General Laws or section 16 of chapter 23J of the General Laws. Any credits carried forward or reallocated shall increase, for the calendar year in which the carry forward or reallocation occurs, the annual cap or limitation otherwise applicable to the receiving program by the amount of such credits carried forward or reallocated.

(c) Annually, not later than March 1, the secretary of administration and finance, in consultation with the secretary of economic development, shall submit a report to the house and senate committees on ways and means setting forth the amount of tax credits, if any, carried forward and reallocated pursuant to subsections (a) and (b) in the prior calendar year. The report shall state the adjusted cap applicable to each tax credit program for the upcoming calendar year.

SECTION 147A. (a) For purposes of this section, the words “attacher”, “attachments”, “department”, “double pole”, “pole” and “stakeholder” shall have the same meanings as set forth in section 34B of chapter 164 of the General Laws.

(b) Not later than July 31, 2028, the department of public utilities and the department of telecommunications and cable shall establish a single visit transfer pilot program designed to expedite the removal of double poles by allowing a single qualified entity to move all participating stakeholder attachments during 1 visit rather than requiring separate visits from each attacher. The department may model the program after similar state initiatives and upon guidance from the working group established in section 34B of chapter 164 of the General Laws. The department may invite, but shall not require, stakeholders to participate in the program.

(c) Nothing in this section shall be construed to interfere with collective bargaining agreements governing the installation, transfer or removal of poles or attachments.

4615 SECTION 147B. (a) There shall be a special legislative commission established to
4616 investigate and study the feasibility of establishing a statewide Massachusetts Caribbean
4617 American cultural center in the city of Boston.

4618 (b) The commission shall investigate and study various methods for establishing a
4619 Massachusetts Caribbean American cultural center in the city of Boston, including, but not
4620 limited to, the creation of a nonprofit organization to oversee the construction and management
4621 of the Massachusetts Caribbean American cultural center. The commission shall consider the
4622 representation of the over 300-year history of Caribbeans in the commonwealth and shall
4623 evaluate the costs associated with each method.

4624 (c)(1) The commission shall consist of the following members: 4 members of the house
4625 of representatives, 3 of whom shall be of Caribbean descent or represent a district with a
4626 significant population of Caribbean people, 2 of whom shall be appointed by the speaker of the
4627 house of representatives and 1 of whom shall be appointed by the house minority leader; 4
4628 members of the senate, 3 of whom shall be of Caribbean descent or represent a district with a
4629 significant population of Caribbean people, 2 of whom shall be appointed by the senate president
4630 and 1 of whom shall be appointed by the senate minority leader; 1 person to be appointed by the
4631 mayor of the city of Boston; 1 person to be appointed by the governor; and not more than 20
4632 members from across the commonwealth, whose appointments shall be determined by 3
4633 members of the house of representatives and 3 members of the senate. The commission shall
4634 elect 2 co-chairs from among its members.

4635 (d) All appointments to the commission shall be made not later than June 30, 2027.

(e) Not later than December 31, 2028, the commission shall submit its findings, including any recommendations for legislation, to the clerks of the house of representatives and the senate, the chairs of the house and senate committees on ways and means and the chairs of the joint committee on economic development.

SECTION 147C. The executive office of health and human services shall conduct an evaluation of the impact of removal of the licensing examination requirement for licensed certified social workers under sections 131 and 132 of chapter 112 of the General Laws, as amended by sections 120I and 120K. The executive office shall contract with an independent evaluation consultant to perform the evaluation. The evaluation shall include, but shall not be limited to: (i) an analysis of the impact of removing the examination requirement on alleviating shortages of qualified social workers; (ii) review of maintaining high-quality patient care; (iii) expanding access to quality behavioral health services; (iv) increasing the diversity of the social worker workforce among diverse language skills, race, ethnicity and cultural backgrounds; and (v) the impact of any increase in diversity on patient care, particularly for vulnerable populations. In preparing the evaluation, the consultant shall meet with representatives of organizations representing social workers, social work education, social work testing, social work patients, behavioral health advocacy organizations and other groups that may assist the evaluation. The evaluation and analysis shall be conducted independently of the executive office. Not later than July 31, 2028, the executive office shall submit the evaluation to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on higher education and the joint committee on mental health, substance use and recovery.

4658 SECTION 147D. (a) There shall be a special commission to review any economic
4659 impacts to Cape Cod and the Islands due to the Massachusetts Department of Transportation's
4660 Cape Cod Bridges program set to begin construction in 2027 to replace the Sagamore bridge.
4661 The commission shall identify ways to support the economic development of the Cape Cod and
4662 the Islands regions during the Sagamore bridge replacement, including: (i) exploring ways to
4663 improve mobility and accessibility for residents, the tourism industry and employees who
4664 typically access the Sagamore bridge to commute to work; (ii) exploring ways to ensure business
4665 success, including supporting the millions of tourists who travel to the regions each year; (iii)
4666 ensuring workforce reliability during significant construction, including identifying ways to
4667 reduce congestion and provide reliable and safe means to travel throughout the regions; (iv)
4668 supporting the lodging and hospitality industries to ensure access to the regions; (v) attracting
4669 seasonal workforce during the planned construction; (vi) identifying alternative means of
4670 transportation, including, but not limited to, ferry services, trains and buses; (vii) identifying cost
4671 saving measures for deliveries, transportation, freight and other transport required to Cape Cod
4672 and the Islands during the construction; and (viii) supporting the arts and cultural sectors during
4673 the construction.

4674 (b) The commission shall consist of the following members: the executive director of the
4675 Massachusetts office of travel and tourism; 1 representative of the Cape Cod Chamber of
4676 Commerce; 1 representative from the Nantucket Island Chamber of Commerce, 1 representative
4677 from the Martha's Vineyard Chamber of Commerce; 1 representative from the Steamship
4678 Authority; the chairs of the joint committee on tourism, arts and cultural development; 1 member
4679 of the Massachusetts Department of Transportation board of directors; the Massachusetts
4680 Department of Transportation highway administrator, or their designee; the general manager of

4681 the Massachusetts Bay Transportation Authority, or their designee; 2 representatives from the
4682 Cape Cod Regional Transit Authority; 1 person to be appointed by the Massachusetts
4683 Association of Regional Transit Authorities; a representative from the Massachusetts Lodging
4684 Association; 5 residents of the Cape Cod and the Islands regions with a background in economic
4685 development or transportation to be appointed by the Cape Cod Chamber of Commerce, with 3
4686 of the members being from Bourne, Wareham or Sandwich. Two co-chairs shall be elected from
4687 among the members.

4688 (c) Not later than February 1, 2027, the commission shall file a report of its study and
4689 recommendations to ensure economic success with the clerks of the house of representatives and
4690 senate, the house and senate committees on ways and means, the joint committee on
4691 transportation, and the secretary of transportation.

4692 SECTION 148. (a) There shall be a working group on micromobility consisting of: the
4693 registrar of motor vehicles or a designee, who shall serve as chair; the administrator of the
4694 highway division of the Massachusetts Department of Transportation or a designee; the secretary
4695 of public safety and security or a designee; the commissioner of insurance or a designee; the
4696 commissioner of conservation and recreation or a designee; the commissioner of public health or
4697 a designee; 1 representative of the Massachusetts Municipal Association who shall appointed by
4698 the secretary of the Massachusetts Department of Transportation; 1 representative of the
4699 micromobility device industry who shall be appointed by the secretary of transportation; 1
4700 representative of a citizen advocacy group who shall be appointed by the secretary of
4701 transportation; 1 representative of the insurance industry who shall be appointed by the
4702 commissioner of insurance; 1 representative of the Fire Chiefs Association of Massachusetts who
4703 shall be appointed by the secretary of public safety and security; and 1 representative of the

4704 Massachusetts Chiefs of Police Association who shall be appointed by the secretary of public
4705 safety and security.

4706 (b) The working group shall develop recommendations for a regulatory scheme and
4707 legislation, if necessary, for the operation of micromobility devices, as provided in the report of
4708 the special commission on micromobility dated January 2026. The working group shall make
4709 recommendations for requirements for micromobility registration or identification decal,
4710 licensure to operate, clarification of the roles of dealers and manufacturers, education, speed
4711 restrictions, signage, travel allowances, insurance requirements, fines and penalties and
4712 additional operation and safety standards and requirements for micromobility devices, including
4713 whether operators and passengers of a powered micromobility device classified as speed tier 0
4714 shall be required to wear protective headgear, regardless of age.

4715 (c) The working group shall develop a standardized form to report crashes and incidents
4716 involving a motor vehicle, a vulnerable user, as defined in section 1 of chapter 90 of the General
4717 Laws, or any micromobility device, as defined in said section 1 of said chapter 90. The
4718 standardized form shall be used by any municipal, county or state law enforcement official or
4719 emergency medical services provider who responds to a crash or incident involving a motor
4720 vehicle, a vulnerable user or any micromobility device. The corresponding report for each crash
4721 or incident shall be transmitted to the registrar of motor vehicles. The registrar of motor vehicles
4722 shall maintain a publicly accessible database of the standardized form reports; provided,
4723 however, that no personally identifying information shall be published in the database.

4724 (d) Not later than December 31, 2027, the working group shall complete its work and
4725 issue a report of its findings, recommendations and any proposed legislation to be published on

4726 its website and filed with the clerks of the house of representatives and the senate and the joint
4727 committee on transportation.

4728 SECTION 148A. (a) Upon implementation of the Massachusetts secure choice savings
4729 program established pursuant to section 64H of chapter 29 of the General Laws, inserted by
4730 section 40 1/2, the Massachusetts secure choice savings board established pursuant to section
4731 64G of said chapter 29, inserted by said section 40 1/2, shall provide written confirmation to the
4732 department of revenue.

4733 (b) Upon receipt of the notice pursuant to subsection (a), the department of revenue shall
4734 immediately make publicly available a notice informing employers of the requirements of the
4735 Massachusetts secure choice savings program. The notice shall inform employers that rather than
4736 enrolling employees in the program, employers may sponsor an alternative plan, including, but
4737 not limited to, a defined benefit plan, a 401(k) plan, a Simplified Employee Pension (SEP) plan
4738 or a Savings Incentive Match Plan for Employees (SIMPLE) plan.

4739 (c) Notwithstanding section 64J of chapter 29 of the General Laws, inserted by section 40
4740 1/2, no penalty shall be assessed against an employer for noncompliance with section 64I of said
4741 chapter 29, inserted by said section 40 1/2, until 1 year after the department of revenue issues the
4742 notice required pursuant to subsection (b).

4743 SECTION 149. (a) Not later than 6 months after the effective date of this act, distribution
4744 companies shall file with the department of public utilities an economic development rate and
4745 guidelines for large new businesses locating to the commonwealth or large new businesses
4746 expanding in the commonwealth to seek a special contract, pursuant to section 152 of chapter
4747 164 of the General Laws, inserted by section 133.

(b) Upon receipt of the filing required pursuant to subsection (a), the department of public utilities shall conduct a proceeding to approve, deny or modify such proposal; provided, however, that the department may only approve such proposal if it finds that the proposed economic development rate and guidance does not shift costs to or increase costs to any other utility customers in the commonwealth; and provided further, that the proposal either supports or does not hinder the achievement of the statewide greenhouse gas emissions limits and sublimits under chapter 21N of the General Laws.

SECTION 150. Notwithstanding any general or special law to the contrary, the unexpended and unencumbered balances of the bond-funded authorizations in the following accounts shall cease to be available for expenditure 180 days after the effective date of this act: 7002-8041 and 7002-8049.

SECTION 151. Notwithstanding any general or special law to the contrary, to meet the expenditures necessary in carrying out section 2, the state treasurer shall, upon receipt of a request by the governor, issue and sell bonds of the commonwealth in an amount to be specified by the governor from time to time but not exceeding, in the aggregate, \$425,100,000. All bonds issued by the commonwealth, as aforesaid, shall be designated on their face "An Act Relative to Massachusetts Winning Global Investment, Talent, and Innovation" and shall be issued for a maximum term of years, not exceeding 30 years, as the governor may recommend to the general court pursuant to section 3 of Article LXII of the Amendments to the Constitution; provided, however, that all such bonds shall be payable not later than June 30, 2061. All interest and payments on account of principal on such obligations shall be payable from the General Fund. Bonds and interest thereon issued under the authority of this section shall, notwithstanding any other provision of this act, be general obligations of the commonwealth.

4771 SECTION 152. Notwithstanding any general or special law to the contrary, the first
4772 report required pursuant to subsection (f) of section 17 of chapter 23J of the General Laws,
4773 inserted by section 31, shall be due not later than 1 year after the effective date of this act.

4774 SECTION 152A. The regulations required under subsection (g) of section 8O of chapter
4775 90 of the General Laws, inserted by section 107A, shall be promulgated within 270 days after
4776 passage of this act.

4777 SECTION 153. Not later than 270 days after the effective date of this act, each electric
4778 company shall submit to the gridtech deployment advisory board established in section 17 of
4779 chapter 23J, inserted by section 31, the processes the electric company plans to implement to
4780 address gridtech deployment barriers internal to the electric company.

4781 SECTION 154. Not later than 270 days after the effective date of this act, the gridtech
4782 deployment advisory board established in section 17 of chapter 23J, inserted by section 31, shall
4783 develop and vote to file with the department of public utilities a process for the department to
4784 review, on an expedited basis, requests for limited waivers of prior department orders to alleviate
4785 gridtech deployment barriers. Such process shall be limited to reviewing waivers of prior
4786 department orders that are time-bound and finite in scope.

4787 SECTION 154A. Not later than October 1, 2026, the executive office of health and
4788 human services shall submit proposals to the federal Center for Medicare and Medicaid Services
4789 pursuant to subsection (b) of section 67B of chapter 118E of the General Laws, inserted by
4790 section 121A, as necessary to make supplemental payments for public ambulance services that
4791 make an intergovernmental transfer.

4792 SECTION 154B. Not later than December 1, 2026, the Massachusetts gaming
4793 commission shall promulgate regulations to implement historical horse racing as authorized by
4794 section 5D of chapter 128A of the General Laws, as inserted by section 129B. Notwithstanding
4795 section 9B of said chapter 128A or any other general or special law to the contrary, such
4796 regulations shall take immediate effect upon promulgation on an interim basis pending
4797 completion of the process set forth in said section 9B.

4798 SECTION 155. Not later than December 31, 2026, the executive office for administration
4799 and finance shall update regulations to effectuate and implement sections 86 to 97, inclusive, of
4800 chapter 150 of the acts of 2024.

4801 SECTION 156. Not later than 1 year after the effective date of this act, the commissioner
4802 of public health shall promulgate regulations as required by section 250 of chapter 111 of the
4803 General Laws, inserted by section 110.

4804 SECTION 157. Not later than 1 year after the effective date of this act, the executive
4805 office of housing and livable communities shall implement the training program in section 37 of
4806 chapter 23B of the General Laws, inserted by section 8.

4807 SECTION 157A. Notwithstanding any general or special law to the contrary, not later
4808 than December 31, 2032, the secretary of economic development shall conduct an economic
4809 impact study of video game development in the commonwealth and shall issue a report together
4810 with any recommendations. Annually, not later than December 31, the secretary shall file an
4811 economic report of all motion picture production activity in the commonwealth that receives a
4812 tax credit certificate pursuant to subsection (II) of section 6 of chapter 62 of the General Laws
4813 and section 38XX of chapter 63 of the General Laws. Annually, not later than December 31, the

4814 secretary shall file said report with the clerks of the house of representatives and the senate, the
4815 house and senate committees on ways and means and with the joint committee on economic
4816 development and emerging technologies.

4817 SECTION 157B. Not later than December 31, 2032, the department of revenue shall file
4818 a report with the clerks of the house of representatives and the senate, the house and senate
4819 committees on ways and means, the joint committee on revenue and the joint committee on
4820 economic development and emerging technologies detailing: (i) the amount of tax credit
4821 certificates issued to taxpayers established pursuant to subsection (II) of section 6 of chapter 62
4822 of the General Laws, section 38XX of chapter 63 of the General Laws and subsection (bbb) of
4823 section 6 of chapter 64H of the General Laws; (ii) the cost to the commonwealth of said tax
4824 credits; and (iii) the number of jobs created in Massachusetts as a result of the tax credits.

4825 SECTION 157C. Sections 130G and 130H shall take effect upon enactment.

4826 SECTION 157D. Section 133A 1/4 shall take effect 180 days following enactment.

4827 SECTION 158. Section 7 shall take effect on January 1, 2028.

4828 SECTION 159. Sections 42, 45 to 47, inclusive, 49 to 51, inclusive, 60, 62, 71 and 74
4829 shall take effect on July 1, 2027.

4830 SECTION 160. Sections 41 and 48 shall take effect for all municipalities upon the
4831 effective date of this act; provided, however, that for municipalities that adopted a zoning
4832 ordinance or by-law requiring some form of site plan review prior to the effective date of this act,
4833 sections 41 and 48 shall not be effective with respect to such zoning ordinance or by-law until 1
4834 year after the effective date of this act.

4835 SECTION 160A. Sections 120I and 120K shall take effect on January 1, 2027.

4836 SECTION 161. Section 134 shall take effect on January 1, 2027.

4837 SECTION 162. Sections 96, 101, 104, 105 and 107 to 109, inclusive, shall take effect on
4838 January 1, 2028.

4839 SECTION 162A. Sections 120J and 120L shall take effect on December 31, 2030.

4840 SECTION 162B. Section 109E shall take effect 5 years after the effective date of this act.

4841 SECTION 163. Sections 91 to 95, inclusive, 97 to 100, inclusive, 102, 103 and 106 shall
4842 take effect 90 days after the effective date of this act.

4843 SECTION 164. Sections 43, 61, 72 and 75 shall take effect on September 1, 2031.

4844 SECTION 165. Section 107A shall take effect 270 days after passage of this act.